



RFP N62742-26-R-1306

**WON 1696746, JFY 2022 PROJECT J-875,
BATTLE STAFF TRAINING FACILITY,
U.S. NAVSUPPACT MCB CAMP BLAZ,
GUAM**

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SOLICITATION, OFFER, AND AWARD <i>(Construction, Alteration, or Repair)</i>	1. SOLICITATION NUMBER	2. TYPE OF SOLICITATION	3. DATE ISSUED	PAGE OF PAGES
	N6274226R1306	☐ SEALED BID (IFB) ☐ INVITATION FOR BID ☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	10 Apr 2026	1 83

IMPORTANT - The "offer" section on the reverse must be fully completed by offeror.

4. CONTRACT NUMBER	5. REQUISITION/PURCHASE REQUEST NUMBER	6. PROJECT NUMBER
		J-875
7. ISSUED BY	CODE	8. ADDRESS OFFER TO
NAVFACSYSCOM PACIFIC 258 MAKALAPA DR STE 100, JBPHH 96860-3134 JBPHH, HI 96860-3134 UNITED STATES Jennifer Hue, Email: jennifer.m.hue.civ@us.navy.mil Telephone: 8086026755	HI	
9. FOR INFORMATION CALL:	a. NAME	b. TELEPHONE NUMBER (Include area code) (NO COLLECT CALLS)
	Jennifer Hue	8086026755

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS (Title, identifying number, date)

RFP NO. N62742-26-R-1306, JFY 2022 PROJECT J-875, BATTLE STAFF TRAINING FACILITY, U.S. NAVSUPACT, MCB CAMP BLAZ, GUAM

GENERAL DESCRIPTION: SEE SPECS 01 11 00, SECTION 1.1.1, Project Description

THIS PROCUREMENT IS UNRESTRICTED. North American Industry Classification System (NAICS) Code 236220, COMMERCIAL AND INSTITUTIONAL BUILDING CONSTRUCTION - Average Annual Receipts for the Past 3 Years - \$45M

ESTIMATED COST: BETWEEN \$25,000,000 and \$100,000,000.

DPAS RATING: DO-C2

ENFORCEABILITY OF PROPOSAL: The proposal must set forth full, accurate and complete information as required by this solicitation. The Government will rely on such information in the award of a contract. The awardee's proposal will be incorporated into the contract and all items proposed will become binding requirements of the contract. By submission of the offer, the offeror agrees that all items proposed (e.g. subcontractors with teaming agreements, etc.) will be utilized for the duration of the contract and any substitutions must be equal or better and will require prior approval by the Contracting Officer.

11. The contractor shall begin performance within <u>15</u> calendar days and complete it within <u>1157</u> calendar days after receiving ☐ award, ☒ notice to proceed. This performance period is ☒ mandatory ☐ negotiable. (See <u>00 73 00 Para 1.3</u>).	12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? <i>(If "YES", indicate within how many calendar days after award in Item 12b.)</i> ☒ YES ☐ NO	12b. CALENDAR DAYS 21
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13. ADDITIONAL SOLICITATION REQUIREMENTS:

a. Sealed offers in original and See 00 21 16 copies to perform the work required are due at the place specified in Item 8 by 02:00 PM (hour) local time 16 Jun 2026 (date). If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.

b. An offer guarantee ☒ is, ☐ is not required.

c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.

d. Offers providing less than 150 calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.

OFFER (Must be fully completed by offeror)

14. NAME AND ADDRESS OF OFFEROR (Include ZIP Code)		15. TELEPHONE NUMBER (Include area code)	
		16. REMITTANCE ADDRESS (Include only if different than Item 14.)	
CODE	FACILITY CODE		

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. (Insert any number equal to or greater than the minimum requirement stated in Item 13d. Failure to insert any number means the offeror accepts the minimum in Item 13d.)

AMOUNTS



18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NUMBER										
DATE										

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	20b. SIGNATURE	20c. OFFER DATE
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AWARD (To be completed by Government)

21. ITEMS ACCEPTED:

22. AMOUNT		23. ACCOUNTING AND APPROPRIATION DATA	
24. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)		ITEM	25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO THE UNITED STATES CODE AT ☐ 10 U.S.C. 3204(a) () ☐ 41 U.S.C. 3304(a) ()
26. ADMINISTERED BY		27. PAYMENT WILL BE MADE BY	

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT (Contractor is required to sign this document and return _____ copies to issuing office.) Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.		☐ 29. AWARD (Contractor is not required to sign this document.) Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.	
30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN (Type or print)		31a. NAME OF CONTRACTING OFFICER (Type or print)	
30b. SIGNATURE	30c. DATE	31b. UNITED STATES OF AMERICA BY	31c. DATE

SOLICITATION, OFFER AND AWARD (SF 1442), CONTINUED
PRICE PROPOSAL SCHEDULE
FOR
RFP NO. N62742-26-R-1306
JFY 2022 PROJECT J-875, BATTLE STAFF TRAINING FACILITY,
U.S. NAVSUPACT MCB CAMP BLAZ, GUAM

ITEM NO.	DESCRIPTION	QTY	UNIT OF ISSUE	UNIT PRICE	AMOUNT
0001AA	BASE ITEM: The basis for SLIN 0001AA is the price for all labor, material, and equipment for the entire work for WON 1696746 complete and in accordance with the drawings and specifications but not including work defined in any other Item No.	1	Lump Sum		\$ _____
0001AB	BASE ITEM: The basis for Item No. 0001AB is the price to perform the removal (over-excavation) of soft, yielding, or unsatisfactory soil materials, and the placement of satisfactory fill per Section 31 00 00 for the site work, in place and complete.	1,100	Cubic Yard	\$ _____/cy	= \$ _____
0001AC	BASE ITEM: The basis for Item No. 0001AC is the price to install Cement Deep Soil Mixing (CDSM) operations for the ground improvements at the site as required per drawings and Section 31 62 00, in place and complete.	7,920	Cubic Yard	\$ _____/cy	= \$ _____
				TOTAL Item No 0001 (0001AA through 0001AC)	= \$ _____
0002	OPTION ITEM 1: The basis for Item No. 0002 (OPTION ITEM 1) is the entire work for the pavilion, including site development and utilities as required to support the pavilion, complete and in accordance with the drawings and specifications except work identified in any other Item No.	1	Lump Sum		= \$ _____
0003	OPTION ITEM 2: The basis for Item No. 0003 (OPTION ITEM 2) is the entire work for the Standby Back-up Generator, Generator Building, Fuel Storage Yard, and Sand Filter, including site development and utilities as required to support them, complete and in accordance with the drawings and specifications except work identified in any other Item No. If Option Item 2 is accepted, the Emergency Generator at Room 130 will not be required.	1	Lump Sum		= \$ _____

SOLICITATION, OFFER AND AWARD (SF 1442), CONTINUED
PRICE PROPOSAL SCHEDULE
FOR
RFP NO. N62742-26-R-1306
JFY 2022 PROJECT J-875, BATTLE STAFF TRAINING FACILITY,
U.S. NAVSUPACT MCB CAMP BLAZ, GUAM

0004AA	PLANNED MODIFICATION: Furniture, Fixtures and Equipment (FF&E) and Specialty Collateral Equipment (CEQ). See Note 8.			Gov't Estimated Budget	= \$ <u>3,934,910.00</u>
0004AB	Handling and Administrative Rate (HAR) NTE 5%. See Note 8.			_____ %	= \$ _____ (DO NOT ROUND)
				TOTAL Item No. 0004 (0004AA + 0004AB)	= \$ _____

NOTES:

1. The Offeror SHALL include a price for ALL Item Nos. The Government will not adjust the quantities noted in the schedule at time of award (Ref: FAR 52.215-1(f)(5)).
2. Multiple awards will not be made (Ref: FAR 52.215-1(f)(6)).
3. CLINs 0001 through 0003 will be funded with Japan Fiscal Year 2022 funding. It is the Government's objective to award CLINs 0001 and 0003 within the funds available.
4. In accordance with FAR 52.217-5, Evaluation of Options, "[e]xcept when it is determined in accordance with FAR 17.202(b) not to be in the Government's best interests, the Government will evaluate offers for award purposes by adding the total price for the option to the total price for the basic requirement. Evaluation of the option will not obligate the Government to exercise the option." The total of the proposed price for CLINs 0001 through 0004 will form the basis for the evaluation noted in Document 00 22 00.
5. The Government may exercise Option Item 1 (CLIN 0002) and/or Option Item 2 (CLIN 0003) at the time of award or by written notice to the Contractor within 365 calendar days of contract award. Exercising Option Items 1 (CLIN 0002) and/or 2 (CLIN 0003) will not extend the contract completion date.
6. In the event there is a difference between a unit price and the extended total, the unit price will be held to be the intended offer and the extended total recomputed accordingly. If the offer provides a total but fails to enter a unit price, the total divided by the specified quantity will be held to be the intended unit price.
7. Payment for SLINs 0001AB and 0001AC shall be for actual quantities only. For SLINs 0001AB, the unit prices will be used to adjust the contract price for any increase or decrease in the estimated quantities subject to Document 00 73 00, Variation in Estimated Quantity. For SLIN 0001AC, refer to Specifications Section 31 62 00, paragraph 1.4.2.
8. The following notes apply to CLIN 0004 for Furniture, Fixtures, and Equipment (FF&E):
 - a. **Government Estimated Amount for FF&E and Specialty CEQ.** The Government Estimated Amount for FF&E and Specialty CEQ, as shown above (SLIN 0004AA), includes the material cost, freight, and installation charges. The Government Estimated Amount has been identified to provide Offerors with the projected magnitude of effort for FF&E. The total CLIN 0004 amount shall include all costs to procure, install, and store the Furniture, Fixtures and Equipment, and includes the Prime Contractor's proposed Handling and Administration Rate (HAR).

SOLICITATION, OFFER AND AWARD (SF 1442), CONTINUED
PRICE PROPOSAL SCHEDULE
FOR
RFP NO. N62742-26-R-1306
JFY 2022 PROJECT J-875, BATTLE STAFF TRAINING FACILITY,
U.S. NAVSUPACT MCB CAMP BLAZ, GUAM

- b. **Prime Contractor Handling and Administration Rate (HAR).** Offerors may propose a HAR fee in SLIN 0004AB, up to but not to exceed 5%, for the handling and administration of the FF&E and Specialty CEQ. This fee will account for all administrative costs; overhead; bonding fees, if any; administration of subcontractors; profit; and any other costs associated with and related to the coordination and processing of the procurement and installation of the FF&E and Specialty CEQ. The prime contractor's proposed HAR mark-up will be applied to the Government Estimated Amount to derive a total proposed price for CLIN 0004. In the event of a difference between the proposed HAR and the extended total, the HAR percentage will be held to be the intended offer and the total recomputed accordingly.
 - c. The prime contractor's HAR percentage rate will be incorporated into the contract as proposed and will not be adjusted regardless of fluctuations in the Government Estimated Amount. The HAR is a fixed percentage rate that will be utilized in calculating the final price for the planned modification. When the final FF&E Package and Specialty CEQ Package is priced, the contractor's proposed HAR percentage rate, as incorporated into the contract, will be applied to the selected supplier/vendor's quote to arrive at a total proposed price for final negotiation of the planned modification.
 - d. It is anticipated that a planned modification will be awarded at least six months prior to the completion of the work. The planned modification will be issued after the receipt of appropriate funding. A minimum of six months is required for the contractor to purchase, deliver, and install the FF&E and Specialty CEQ without impacting the overall completion date of the project. No schedule extension will be granted if the planned modification is awarded at least six months prior to the contract completion date. If the Government decides to negotiate and award the planned modification less than six months prior to the contract completion date, the contractor may be entitled to a contract extension.
9. **DFARS 252.247-7023, TRANSPORTATION OF SUPPLIES BY SEA.** Within 30 days of each shipment, the Contractor is required to provide an electronic copy of the carrier's bill of lading to the Contracting Officer and to MARAD via email. MARAD email: Cargo.MARAD@dot.gov (attn.: MIL team). In addition, the Contractor shall notify the Contracting Officer when oceanic shipments have been initiated within 3 working days of shipment.

Section 00 21 00 - Instructions

FAR Clauses Incorporated by Full Text

52.211-14 Notice of Priority Rating for National Defense, Emergency Preparedness, and Energy Program Use. (Apr 2008)

Notice of Priority Rating for National Defense, Emergency Preparedness, and Energy Program Use (Apr 2008)

Any contract awarded as a result of this solicitation will be [] DX rated order; [X] DO rated order certified for national defense, emergency preparedness, and energy program use under the Defense Priorities and Allocations System (DPAS) (15 CFR700), and the Contractor will be required to follow all of the requirements of this regulation.

(End of provision)

52.214-34 Submission of Offers in the English Language. (Apr 1991)

SUBMISSION OF OFFERS IN THE ENGLISH LANGUAGE (APR 1991)

Offers submitted in response to this solicitation shall be in the English language. Offers received in other than English shall be rejected.

(End of provision)

52.214-35 Submission of Offers in U.S. Currency. (Apr 1991)

SUBMISSION OF OFFERS IN U.S. CURRENCY (APR 1991)

Offers submitted in response to this solicitation shall be in terms of U.S. dollars. Offers received in other than U.S. dollars shall be rejected.

(End of provision)

52.215-1 Instructions to Offerors-Competitive Acquisition. (Deviation 2026-O0038) (Feb 2026)

INSTRUCTIONS TO OFFERORS-COMPETITIVE ACQUISITION (FEB 2026) (DEVIATION 2026-O0038)

(a) *Definitions.* As used in this provision-

In writing, writing, or written means any worded or numbered expression that can be read, reproduced, and later communicated, and includes electronically transmitted and stored information.

Proposal modification is a change made to a proposal before the request for proposal closing date and time, or made in response to an amendment, or made to correct a mistake at any time before award.

Proposal revision is a change to material elements of a proposal made after the request for proposal closing date, at the request of or as allowed by a Contracting Officer, as the result of negotiations.

Time, if stated as a number of days, is calculated using calendar days, unless otherwise specified, and will include Saturdays, Sundays, and legal holidays. However, if the last day falls on a Saturday, Sunday, or legal holiday, then the period shall include the next working day.

(b) *Amendments to requests for proposals.* If this request for proposal (RFP) is amended, all terms and conditions that are not amended remain unchanged. Offerors shall acknowledge receipt of any amendment to this RFP by the date and time specified in the amendment(s).

(c) Submission, modification, revision, and withdrawal of proposals.

(1) (i) Proposals and modifications to proposals shall be-

(A) Submitted using the method and the format specified in the RFP;

(B) Addressed to the office specified in the RFP; and

(C) Showing the time and date specified for receipt, the RFP number, and the name and address of the offeror.

(ii) Offerors using commercial carriers should ensure that the proposal is marked on the outermost wrapper with the information in paragraphs (c) (1)(i)(B) and (C) of this provision.

(2) The first page of the proposal must show-

- (i) The RFP number;
 - (ii) The name, address, and telephone number of the offeror (and electronic address if available);
 - (iii) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the RFP and agreement to furnish any or all items upon which prices are offered at the price set opposite each item;
 - (iv) Names, titles, and telephone number (and electronic addresses if available) of persons authorized to negotiate on the offeror's behalf with the Government in connection with this RFP; and
 - (v) Name, title, and signature of person authorized to sign the proposal. Proposals signed by an agent shall be accompanied by evidence of that agent's authority, unless that evidence has been previously furnished to the issuing office.
- (3)
- (i) Offerors are responsible for submitting proposals, and any modifications or revisions, so as to reach the Government office designated in the RFP by the time specified in the RFP. If no time is specified in the RFP, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that proposal or revision is due.
 - (ii)
 - (A) Any proposal, modification, or revision received at the Government office designated in the RFP after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and-
 - (1) If it was transmitted through an electronic commerce method authorized by the RFP, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of proposals; or
 - (2) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or
 - (3) It is the only proposal received.
 - (B) However, a late modification of an otherwise successful proposal that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.
 - (iii) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the proposal wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.
 - (iv) If an emergency or unanticipated event interrupts normal Government processes so that proposals cannot be received at the office designated for receipt of proposals by the exact time specified in the RFP, and urgent Government requirements preclude amendment of the RFP, the time specified for receipt of proposals will be deemed to be extended to the same time of day specified in the RFP on the first work day on which normal Government processes resume.
 - (v) Proposals may be withdrawn by written notice received at any time before award. Oral proposals in response to oral RFPs may be withdrawn orally. Proposals may be withdrawn in person by an offeror or an authorized representative, if the identity of the person requesting withdrawal is established and the person signs a receipt for the proposal before award.
- (4) Unless otherwise specified in the RFP, the offeror may propose to provide any item or combination of items.
- (5) Offerors shall submit proposals in response to this RFP in English, unless otherwise permitted by the RFP, and in U.S. dollars, unless the provision at FAR 52.225-17, Evaluation of Foreign Currency Offers, is included in the RFP.
- (6) Offerors may submit modifications to their proposals at any time before the RFP closing date and time, and may submit modifications in response to an amendment, or to correct a mistake at any time before award.
- (7) Offerors may submit revised proposals only if requested or allowed by the Contracting Officer.
- (8) Proposals may be withdrawn at any time before award. Withdrawals are effective upon receipt of notice by the Contracting Officer.
- (d) *Offer expiration date.* Proposals in response to this RFP will be valid for the number of days specified on the RFP cover sheet (unless a different period is proposed by the offeror).
- (e) *Restriction on disclosure and use of data.* Offerors that include in their proposals data that they do not want disclosed to the public for any purpose, or used by the Government except for evaluation purposes, shall-

- (1) Mark the title page with the following legend:

Mark the title page with the following legend: This proposal includes data that shall not be disclosed outside the Government and shall not be duplicated, used, or disclosed-in whole or in part-for any purpose other than to evaluate this proposal. If, however, a contract is awarded to this offeror as a result of, or in connection with, the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent provided in the resulting contract. This restriction does not limit the Government's right to use information contained in this data if it is

obtained from another source without restriction. The data subject to this restriction are contained in sheets *[insert numbers or other identification of sheets]*; and

(2) Mark each sheet of data it wishes to restrict with the following legend:

Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal.

(f) Contract award.

(1) The Government intends to award a contract or contracts resulting from this RFP to the responsible offeror(s) whose proposal(s) represents the best value after evaluation in accordance with the factors and subfactors in the RFP.

(2) The Government may reject any or all proposals if such action is in the Government's interest.

(3) The Government may waive informalities and minor irregularities in proposals received.

(4) The Government intends to evaluate proposals and award a contract without negotiations with offerors (except clarifications as described in FAR 15.202(b)). Therefore, the offeror's initial proposal should contain the offeror's best terms from a cost or price and technical standpoint. The Government reserves the right to conduct negotiations if the Contracting Officer later determines them to be necessary. If the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly evaluated proposals.

(5) The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit cost or prices offered, unless the offeror specifies otherwise in the proposal.

(6) The Government reserves the right to make multiple awards if, after considering the additional administrative costs, it is in the Government's best interest to do so.

(7) The Government may determine that a proposal is unacceptable if the prices proposed are materially unbalanced between line items or subline items. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more line items is significantly overstated or understated as indicated by the application of cost or price analysis techniques. A proposal may be rejected if the Contracting Officer determines that the lack of balance poses an unacceptable risk to the Government.

(8) If a cost realism analysis is performed, cost realism may be considered by the source selection authority in evaluating performance or schedule risk.

(9) A written award or acceptance of proposal mailed or otherwise furnished to the successful offeror within the time specified in the proposal shall result in a binding contract without further action by either party.

(10) If a post-award debriefing is given to requesting offerors, the Government shall disclose the following information, if applicable:

(i) The agency's evaluation of the significant weaknesses or deficiencies in the debriefed offeror's offer.

(ii) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror.

(iii) The overall ranking of all offerors, when any ranking was developed by the agency during source selection.

(iv) A summary of the rationale for award.

(v) For acquisitions of commercial products, the make and model of the product to be delivered by the successful offeror.

(vi) Reasonable responses to relevant questions posed by the debriefed offeror as to whether source-selection procedures set forth in the RFP, applicable regulations, and other applicable authorities were followed by the agency.

(vii) For DoD contracts in excess of \$10 million but not in excess of \$100 million with a small business or nontraditional defense contractor (10 U. S.C. 3014), an option for the contractor to request disclosure of the agency's written source selection decision document, redacted to protect the confidential and proprietary information of other offerors for the contract award.

(viii) For award of a DoD contract in excess of \$100 million, disclosure of the agency's written source selection decision document, redacted to protect the confidential and proprietary information of other offerors for the contract award.

(End of provision)

(a) Protests, (as defined in FAR 33.102), that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), must be served on the Contracting Officer identified in the solicitation by obtaining written and dated acknowledgment of receipt from them.

(b) The copy of any protest must be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

52.252-5 Authorized Deviations in Provisions.

(Nov 2020)

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Defense Acquisition Regulations System, Department of Defense (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

Section 00 21 16 - Instructions to Proposers

1.1 SITE VISIT

(a) The clauses at 52.236-2, Differing Site Conditions, and 52.236-3, Site Investigation and Conditions Affecting the Work, will be included in any contract awarded as a result of this solicitation. Accordingly, offerors or quoters are urged and expected to inspect the site where the work will be performed.

(b) A **one-time** pre-proposal site visit has been scheduled for **May 19, 2026, 9:00 a.m., Chamorro Standard Time (ChST)**. This site visit is to provide Offerors with an opportunity to familiarize themselves with the jobsite and conditions to be encountered and **is not** for the purpose of answering questions. **Photography is allowed with prior approval and a valid Camera Pass that must be brought on Site Visit day.** The following forms are located at the end of this Section 00 21 16:

(1) MCBCB VCC Base Access Request Forms

- a. Base Access Request
- b. Memorandum
- c. Company Letterhead Template

Note: Also included are the Cover Sheet Requirements for MCBCB Base Access Requests and Frequently Asked Questions

(2) SECNAV 5512/1 Form

(3) Naval Base Guam Foreign National Base Access Request Form

(4) FN Biometric Data

(5) Camera Pass Request

(6) New Application Requirements

(7) VCC Hours of Operations.

(c) Please submit the applicable information to jennifer.m.hue.civ@us.navy.mil on or before **April 17, 2026, 2:00 p.m., Hawaii Standard Time (HST)**.

(1) Current DBIDS. If an interested attendee has current DBIDS credentials for the **specific base where the project is located (for MCBCB, DBIDS issued by MCBCB VCC)**, submit the following:

a. **MCBCB VCC BASE ACCESS REQUEST FORMS:** Please ensure to read through the Cover Sheet Requirements for MCBCB Base Access Requests and Frequently Asked Questions. Provide the completed Base Access Request, Memorandum, and Company Letterhead Template (Government to complete the Sponsor information). Company Letterhead Template: One letter required per company. List attendees in alphabetical order (by last name) and indicate each attendees' NCAC number. Must be signed by a person authorized to provide the certification required.

b. **CAMERA PASS REQUEST:** Applicable only for those with DBIDS credentials who will be taking photos. DBIDS number is required on the form and submit to the POC in paragraph (c) for approval.

The completed MCBCB VCC Base Access Request Forms and Camera Pass Request (if applicable) will be returned once approved. The MCBCB VCC Base Access Request Forms may be emailed to the MCBCB VCC at mcb_camp_blaz_vcc@usmc.mil. Attendees should carry a printed copy of all approved documents during the site visit.

(2) No DBIDS Credentials (including DBIDS for other locations or issued by other than MCBCB VCC). Submit the following:

a. **MCBCB VCC BASE ACCESS REQUEST FORMS:** Please ensure to read through the Cover Sheet Requirements for MCBCB Base Access Requests and Frequently Asked Questions. Provide the completed Base Access Request, Memorandum, and Company Letterhead Template (Government to complete the Sponsor information). Company Letterhead Template: One letter required per company. List attendees in alphabetical order (by last name) and indicate each attendees' NCAC number. Must be signed by a person authorized to provide the certification required.

b. **SECNAV 5512/1 FORM:** Each attendee shall read, complete, and sign/date form. Typewritten is preferred. Any handwritten forms **MUST** be legible. Do not submit the SECNAV 5512/1 form to the Government. The Contractor is responsible for either hand-carrying or emailing this document to the MCBCB VCC along with any other pertinent document listed in this subparagraph.

c. **NAVAL BASE GUAM FOREIGN NATIONAL BASE ACCESS REQUEST FORM** (Applicable to foreign nationals only). Each attendee please read and complete.

d. **FN BIOMETRIC DATA FORM** (Applicable to foreign nationals only): Each attendee please read and complete.

Upon review by the Government, the completed MCBCB VCC Base Access Request Forms will be returned to the company point of contact. Each attendee without MCBCB DBIDS credentials will have to present the completed forms in person to the MCBCB VCC to get photographed and fingerprinted. If submitting three or less requests, the documents may be emailed to the MCBCB VCC at mcb_camp_blaz_vcc@usmc.mil. The processing of the forms by VCC may take **30 days**, therefore, it is the attendees' responsibility to ensure sufficient time is allowed prior to the date of the site visit. Do NOT expect VCC to expeditiously process the forms.

e. **CAMERA PASS REQUEST:** Applicable only for those with DBIDS credentials who will be taking photos. Once you have a routing number from the VCC for your DBIDS application, insert that number on the form and submit to the POC in paragraph (c) for approval.

The Camera Pass Request (if applicable) will be returned once approved. Attendees should carry a printed copy of all approved documents during the site visit.

(d) Sufficient processing time is required. Consequently, if submission of forms is received after the specified due date and time, attendees may not be approved to attend the site visit.

(e) The furnishing of the above information, including your Social Security Number, is voluntary. However, your failure to furnish all or part of the information request may result in the Government's denial of access to the jobsite. Any of the above information furnished by you and protected under the Privacy Act shall not be released unless permitted by law and/or you have consented to such release.

(f) Due to limited parking, it is recommended that contractors carpool. **Also, as the project site is an active construction site, ALL ATTENDEES MUST WEAR PERSONAL PROTECTIVE EQUIPMENT (I.E., HARD HAT, REFLECTIVE VEST, PROTECTIVE GLASSES, AND HARD SOLE, STEEL TOED BOOTS).**

1.2 NUMBER OF COPIES/TIME OF RECEIPT

a. PRICE PROPOSAL (PAPER): An original paper and one (1) paper copy of the price proposal shall be submitted on **June 16, 2026, 2:00 p.m., H.S.T.** in a sealed envelope and marked in the bottom right corner "PRICE PROPOSAL SUBMITTED UNDER RFP N62742-26-R-1306 - DO NOT OPEN IN MAILROOM." The PRICE PROPOSAL shall include the following:

(1) Manually (wet signature) signed and completed SF 1442 (Solicitation, Offer and Award)(NOTE: SF1442 Block 14 shall include the offeror's name and physical address exactly as shown in the System for Award Management registration. If mailing address is different from physical address, both addresses may be shown in Block 14, however both addresses shall be EXACTLY as shown in SAM)

(2) Signed and completed Bid Guarantee

(3) Completed Section 00 45 00 - Representations and Certifications. Also, see FAR 52.204-7, SYSTEM FOR AWARD MANAGEMENT-REGISTRATION and DFARS 252.204-7998, ALTERNATE A, ANNUAL REPRESENTATIONS AND CERTIFICATIONS in Section 00 70 00.

(4) Completed DFARS 252.236-7010, OVERSEAS MILITARY CONSTRUCTION - PREFERENCE FOR UNITED STATES FIRMS

(5) Information required by paragraph 1.6, Pre-Award Survey/Responsibility Determination

(6) Information required by paragraph 1.7, Partnerships, Joint Ventures (JV), Limited Liability Companies (LLC), Limited Partnerships (LP), Etc.

(7) Information required by paragraph 1.9, Complementary Pricing Information

(8) Information required by DFARS 252.204-7025 NOTICE OF CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS, paragraph (d) in Section 00 70 00.

b. TECHNICAL PROPOSAL (FACTORS 1, 2 AND 3) (PAPER): An original paper and three (3) paper copies of the technical proposal for Factors 1, 2, and 3 shall be submitted on **June 16, 2026, 2:00 p.m., H.S.T.** in a sealed envelope/package/box and marked in the bottom right corner "TECHNICAL PROPOSAL SUBMITTED UNDER RFP N62742-26-R-1306 - DO NOT OPEN IN MAILROOM." Identify the original proposal as "Original" on the cover of the proposal. The TECHNICAL PROPOSAL shall be submitted in a three-ring binder with table of contents and tabbed. The TECHNICAL PROPOSAL shall include the following:

(1) All information required by Factor 1, Experience

(2) All information required by Factor 2, Past Performance

(3) All information required by Factor 3, Safety

c. SUBCONTRACTING PLAN (PAPER): An original paper and one (1) paper copy of the subcontracting plan shall be submitted by **June 17, 2026, 2:00 p.m., H.S.T.** in a sealed envelope/package/box and marked in the bottom right corner "SUBCONTRACTING PLAN SUBMITTED UNDER RFP N62742-26-R-1306 - DO NOT OPEN IN MAILROOM." Identify the original proposal as "Original" on the cover of the proposal.

(1) All information required by 1.8, Small Business Subcontracting Plan

d. PRICE AND TECHNICAL PROPOSALS (ELECTRONIC): An electronic copy of the price and technical proposals shall be submitted in .pdf format on a CD-ROM with the paper copy of the subcontracting plan. The offeror is responsible for ensuring that all original paper and electronic copies are identical. Should there be a discrepancy between the paper and electronic versions, the paper copy shall govern.

e. Proposals shall be submitted as follows:

(1) If sent via U. S. Postal Mail/Express Courier:

NAVAL FACILITIES ENGINEERING SYSTEMS COMMAND, PACIFIC

Construction Contracts Branch (CON33)

258 Makalapa Drive, Suite 100

Pearl Harbor, HI 96860-3134

(2) If hand-carried (Delivery hours between 7:00 AM and 2:00 PM, Monday through Friday except Federal Holidays)

NAVAL FACILITIES ENGINEERING SYSTEMS COMMAND, PACIFIC

Construction Contracts Branch (CON33)

4256 Radford Drive, Building 62 (if facing the building office is on the right. DO NOT drop off at the Navy Federal Credit Union)

Honolulu, HI 96818-3296

1.3 INSTRUCTIONS FOR OBTAINING THE REQUEST FOR PROPOSAL

The RFP can be accessed at <https://sam.gov>. Printed copies of the RFP will not be issued.

1.4 INSTRUCTIONS FOR SUBMITTING QUESTIONS REGARDING SOLICITATION

Questions regarding the solicitation shall be submitted in **writing** in WORD format via electronic mail to Jennifer Hue, jennifer.m.hue.civ@us.navy.mil. Questions shall reference the drawing/detail and/or the specification section including paragraph number. Verbal queries will not be entertained. Responses to the questions will be provided in the form of a Notice and posted to the web site <https://sam.gov>. The Government may not respond to questions submitted less than 10 business days before the proposal receipt due date.

1.5 AMENDMENTS

Amendments will be posted to <https://sam.gov>. It is highly recommended that firms register on the SAM website as an interested vendor as this will be the only planholder's list available. It is the offeror's responsibility to check the website periodically for any amendments to the solicitation.

1.6 PREAWARD SURVEY/RESPONSIBILITY DETERMINATION

FAR 9.104 requires prospective contractors to demonstrate, among other things, that they have adequate financial resources to perform the contract or the ability to obtain them, capability to comply with the required performance schedule, a satisfactory performance record, and be otherwise eligible to receive an award under applicable laws and regulations. The pre-award survey is not a part of the technical proposal evaluation. The following information shall be submitted:

- a. The offeror shall submit a document that appoints, in writing, one or more individuals, by name, each of whom will have full and independent authority to bind the offeror with respect to any act connected with this solicitation, including but not limited to: the submission and revisions of a proposal or proposals by the company, the conduct of discussion or negotiations, the submission of a Final Proposal Revision (FPR), and the execution of a contract and associated documents including bonds. Documents of appointment by a supporting resolution of the board of directors in the case of a corporation and by an instrument of similarly binding character in the case of an unincorporated entity. If bonds are not signed manually (wet signature), documents of appointment must include specific authorization and corporate approval for the use of electronic and facsimile signatures by the appointed individual(s).
- b. Company financial statements (balance sheets and income statements) for past three years.
- c. Financial resources available to perform the contract. Submit evidence of availability of working/operating capital that will be used for the performance of the contract. If the offeror plans to rely on financial support from other sources, identify the maximum lines of credit that will be available to include documentation to support the amounts. The maximum lines of credit should be based upon the inclusion of this contract effort. For joint ventures discuss the financial responsibilities for each partner.
- d. Newly-formed entities (e.g. limited liability companies ("LLC's"), limited partnerships ("LTD's") and newly-created corporate subsidiaries) that is the entity liable for the contract ordinarily have no financial capability to support a responsibility determination. In such cases, the offeror may rely on the resources of the LLC member, parent, limited partner, or other entities related to the offeror for responsibility purposes where the offer submits a guaranty from the entity providing the resources. The offeror shall provide a guaranty agreement (See Form DCMA Form 1620 attached) for the contract price.
- e. A list of existing commercial and government business commitments to include contract numbers, names of Contracting Officers, telephone numbers, value of contract, completion date and percent complete. If the list of existing commitments is extensive, provide the required information on at least five projects of similar dollar value and a summary of the existing commitments to include number of contracts, total dollar value of all contracts, and total dollar value of work remaining.

f. Copy of the email confirmation of receipt notification of successful submission of the VETS-4212.

g. As a part of the pre-award survey, the contracting officer will verify that the offeror has a current CMMC status posted in the Supplier Performance Risk Assessment (SPRS) at the specified CMMC level or higher required by the solicitation (see DFARS 252.204-7021 Compliance with the Cybersecurity Maturity Model Certification Level Requirements and DFARS 252.204-7025 Notice of Cybersecurity Maturity Model Certification Level Requirements), prior to award.

The information submitted for the pre-award survey will not be considered in the technical proposal evaluation unless separately submitted pursuant to the technical proposal evaluation factor submission requirements.

1.7 PARTNERSHIPS, JOINT VENTURES (JV), LIMITED LIABILITY COMPANIES (LLC), LIMITED PARTNERSHIPS (LP), ETC.

Partnerships, Joint Ventures, Limited Liability Companies, Limited Partnerships and Mentor-Protege arrangements shall submit the following documentation regarding their business entities:

a. A copy of the Partnership Agreement, JV Agreement(s), LLC Operating Agreement(s), LP Agreement(s), and/or Mentor-Protege Agreement(s). Contractor shall provide an updated copy whenever any change is made to the agreement.

b. The proposal and each bond or other document submitted by or on behalf of the joint venture shall be executed by each joint venture partner and shall be accompanied by evidence of the authority of the signer. That authority shall be evidenced by a document satisfactory to the Contracting Officer, which would ordinarily be, in the case of a corporate joint venture partner, a certified copy of a resolution of the board of directors, and in the case of an unincorporated joint venture partner, an instrument of similarly binding character duly executed by that entity. If one individual signs for more than one partner, the individual must sign separately for each partner which he or she represents, and must state under each signature the capacity in which he or she is signing (See FAR 4.207).

c. Identify (by name and title) the personnel having the authority to legally bind the Offeror (including authority to execute the contract documents and bonds).

d. Procedures in the event the entity is dissolved.

e. A detailed statement outlining the following in terms of percentages where appropriate:

(1) The relationship of the partners/parties in terms of business ownership, capital contribution, profit distribution or loss sharing.

(2) The management approach in terms of who will conduct, direct, supervise, control, and the controlling partner's authority to obligate the entity.

(3) The structure and decision-making responsibilities of the partners/parties in terms of who will control the manner and method of performance of work.

f. Joint Ventures shall submit the following additional documentation regarding their business entities:

(1) Together with its proposal, each corporate joint venture partner shall submit evidence satisfactory to the Contracting Officer that its board of directors has approved its participation in the joint venture. Such evidence shall be in the form of a copy of a resolution of the board of directors, certified by the Secretary of the Corporation.

(2) Together with its proposal, each joint venture partner which is an unincorporated entity shall submit evidence satisfactory to the Contracting Officer that all persons or entities which must approve decisions affecting the joint venture partner have approved the participation of the joint venture partner in the joint venture.

1.8 SUBCONTRACTING PLAN

a. As stated in Document 00 22 00, paragraph 2.1, EVALUATION CRITERIA AND BASIS OF AWARD, this is a lowest priced technically acceptable source selection. Accordingly, small business subcontracting is not included as a technical evaluation factor. However, large business concerns must submit a Small Business Subcontracting Plan that addresses the following:

1. Identify in terms of dollar value and percentage of the total acquisition, the extent of work you will perform as the prime contractor. If submitting an offer as a Joint-Venture, identify the percentage of work each member will be responsible for and indicate the size status of each member, e.g., LB, SB, SDB, WOSB, HUBZone SB, etc.

2. In accordance with FAR 52.219-9, submit a Small Business Subcontracting Plan utilizing the template at the end of this section for this project. To demonstrate commitment in using small business concerns, the Small Business Subcontracting Plan may list all subcontractors by name. **If the proposed Small Business Subcontracting goals do not meet the minimum NAVFAC Small Business Subcontracting Targets, include a detailed explanation describing the actions taken to arrive at that determination, along with an explanation for the goals that actually were proposed.**

In accordance with FAR 52.219-9, Alternate II, "If the Offeror fails to submit and negotiate a subcontracting plan, the Offeror shall not be eligible for award of a contract."

b. NAVFAC's command-wide small business subcontracting targets are shown below. These may be higher or lower than percentages that would represent realistic, challenging small business subcontracting goals for this acquisition. Offerors shall document in their subcontracting plans the basis for all proposed goals. Plans shall be submitted with initial offers.

SB	40%
SDB	5%
HUBZone SB	3%
WOSB	9%
SDVOSB	5%

c. See the Small Business Subcontracting Plan (Template) at the end of Section 00 21 16 for format.

1.9 COMPLEMENTARY PRICING INFORMATION

Offeror's are requested to submit the attached Complementary Pricing Information (Template) at the end of Section 00 21 16 with its proposal. The Complementary Pricing Information is for Government information only and will not be used for the Price Evaluation specified in Document 00 22 00.

1.10 BRAND NAME OR EQUAL

(a) If an item in this solicitation is identified as "brand name or equal," the purchase description reflects the characteristics and level of quality that will satisfy the Government's needs. The salient physical, functional, or performance characteristics that "equal" products must meet are specified in the solicitation.

(b) To be considered for award, offers of "equal" products, including "equal" products of the brand name manufacturer, must--

(1) Meet the salient physical, functional, or performance characteristic specified in this solicitation;

(2) Clearly identify the item by--

(i) Brand name, if any; and

(ii) Make or model number;

(3) Include descriptive literature such as illustrations, drawings, or a clear reference to previously furnished descriptive data or information available to the Contracting Officer; and

(4) Clearly describe any modification the offeror plans to make in a product to make it conform to the solicitation requirements. Mark any descriptive material to clearly show the modification.

(c) The Contracting Officer will evaluate "equal" products on the basis of information furnished by the offeror or identified in the offer and reasonably available to the Contracting Officer. The Contracting Officer is not responsible for locating or obtaining any information not identified in the offer.

(d) Unless the offeror clearly indicates in its offer that the product being offered is an "equal" product, the offeror shall provide the brand name product referenced in the solicitation.

1.11 TERRITORY OF GUAM NOTICE CONCERNING TAXES, LICENSES, WITHHOLDINGS

(NOTE: The information in this Instructions to Proposers is provided by the Government of Guam, Department of Revenue and Taxation. Any questions concerning applicability or interpretation should be directed to that Agency at physical address: 1240 Army Drive, Barrigada, Guam, 96913; mailing address: Department of Revenue & Taxation, Taxpayer Services Division, PO Box 23607, Barrigada, Guam 96921; or by phone at (671) 635-1835. Business registration with the Government of Guam is not considered in determining contractor responsiveness or responsibility. Offerors attention is directed to the Clause in the solicitation entitled "PERMITS AND RESPONSIBILITIES.")(FAR 52.236-7).

1. All persons engaging in business in Guam must be licensed to do so by the Government of Guam prior to commencement of business in Guam. Engaging in business includes, but is not limited to, services provided by contractors. Applications for business licenses shall be made to the Department of Revenue and Taxation, License and Registration Branch.
2. All corporations, domestic (created under the laws of Guam) or foreign (not created under the laws of Guam) must register with the Department of Revenue and Taxation, License and Registration Branch.
3. Any person engaging in business on Guam must file monthly Business Privilege Tax returns with the Department of Revenue and Taxation.
4. All corporations with the Guam source of funds must file income tax returns to the Department of Revenue and Taxation on the prescribed forms.
5. All employers must deposit wage withholdings from their employees to the Treasurer of Guam. Guam Depository Receipts, as well as Quarterly Withholding Statements are required to be filed with the Department of Revenue and Taxation in the same manner as similar returns and statements required to be filed with the U.S. Internal Revenue Service.
6. Failure to comply with the above may result in criminal or civil penalties as provided by law.

1.12 GOVERNMENT OF JAPAN OBSERVERS

Offerors are advised that officials of the Government of Japan (GOJ) will be observing the source selection process, the evaluation of proposals, and the review of other documentation. Accordingly, submission of a proposal in response to this solicitation will be considered evidence of your consent and permission for the Contracting Officer to reveal your proposal and related submissions to participating GOJ officials (who will, in turn, sign Non-Disclosure Statements that will be retained in the contract files).

1.13 ALTERNATIVE MATERIALS

The Government may consider Requests for Information (RFI) concerning the acceptability of alternative materials (e.g., substitution of Japan Industrial Standard (JIS) materials for ASTM standard materials). Government consideration of alternative materials is contingent on the RFI clearly demonstrating (1) benefit to the Government, (2) equivalent or better quality, and (3) compatibility with overall contract intent, operational requirements, and sustainment requirements. Backup information must be provided that identify and address the specific differences between the proposed alternative material, and the referenced standard required by the contract. Refer to paragraph 1.4, Instructions for Submitting Questions Regarding Solicitation.

GUARANTY AGREEMENT FOR CORPORATE GUARANTOR

(Applicable to One or More Government Contracts)

The undersigned _____

(Insert Guarantor's Name)

(Insert Guarantor's Address)

for itself, its successors and assigns, hereinafter referred to as the Guarantor, requests the United States of America (Department of Defense) hereinafter called the Government, to award contract or contracts to

_____ a corporation

(Insert Contractor's Name)

organized under the laws of the State of _____ having its principal place of business

at _____

(Street Address)

in the City of _____ in the State of _____,

herein after called the Contractor. The undersigned Guarantor agrees to guarantee absolutely to the Government the full, complete and faithful performance of the Contractor of any and all contracts, hereinafter referred to as such contract, according to the terms and conditions thereof and at the time and in the manner provided therein.

In consideration of the award of any and all contracts to the Contractor, the undersigned Guarantor agrees as follows:

1. **Guaranty.** The Guarantor absolutely guarantees the full, complete and faithful performance by the Contractor of such contract, as such contract may be from time to time amended as authorized by its terms, according to the terms and conditions of such contract as so amended, and at the time and in the manner provided therein. The Guarantor agrees to provide the Contractor all necessary and required resources including financing, which are necessary to assure the full, complete and satisfactory performance of such contract.
2. **Extension of Time of Performance.** Any extension of the time of performance of such contract as so amended shall not release the undersigned Guarantor from liability hereon.
3. **Assignment.** This instrument shall bind the undersigned Guarantor, its successors and assigns. If any person, firm, corporation or entity other than the Contractor becomes obligated to perform the contract or any part thereof, whether by operation of law or otherwise, any and all rights of the Government against the Guarantor shall remain in full force.
4. **Default.** In the event of termination for default under the terms of such contract, or in the event of failure, insolvency, default, bankruptcy, arrangement, appointment of receiver of the Contractor or other liquidation of the Contractor, the Guaranty herein shall become absolute.
5. **Waiver of Notice.** The Guarantor waives notice of default on the part of the Contractor and agrees that its Guaranty shall become absolute without necessity for the giving of such notice.
6. **Continuation of Guaranty.** The Guaranty herein shall continue until full, complete and faithful performance of such contract as it may be from time to time amended as authorized by its terms.
7. **Default Liability.** In addition to all other guarantees contained in this Agreement, in the event that the Government terminates such contract for default and awards the uncompleted portion of such contract to another source at a fair and reasonable price, the Guarantor shall be liable for any excess costs incurred by the Government as a result of such procurement and for the repayment of any unrecouped payments (e.g., partial payments, Progress Payments, or Advance Payments) paid to the Contractor by the Government. In addition, the Guarantor shall be liable for all costs and expenses paid or incurred by the Government in enforcing this Guaranty. The Contracting Officer representing the Government in connection with such contract shall determine the total costs and expenses, if any, incurred by the Government.
8. **Enforcement.** This Guaranty Agreement shall inure to the benefit of and may be enforced by the Government.
9. **Construction.** Nothing in this Guaranty Agreement shall be construed to obligate the Government to award a contract to the Contractor.

10. Coverage, Termination, Waiver, and Expiration.

- a. Except as otherwise provided herein, this Guaranty Agreement refers to and shall be effective with respect to any and all contracts for supplies or services entered into, on or after the date of this Agreement between the Government and the Contractor. Unless otherwise indicated by the context the singular of the word "contract" as used in this Agreement shall mean the plural term "contracts" whenever this Agreement shall become effective with respect to more than one contract between the Government and the Contractor. For the purpose of any additional procurement of supplies or services called for by any agreement supplemental to a contract between the Government and the Contractor, the term "contract" shall refer to such supplemental agreement.

Additionally, this Agreement will include the contracts already in existence between the Contractor and the Government before the Agreement date, as specified here:

- b. The Guaranty Agreement is a continuing guaranty and shall remain in full force and effect until the later of (1) the performance in full of the guaranteed obligations, or under the guaranteed contracts. (2) the termination of all continuing obligations and commitments of the Contractor under the guaranteed contracts. In the case of termination of the continuing commitments of the Contractor on any guaranteed contract, the termination notices must be given in writing citing the affected contracts.
- c. When the Government Contracting Officer determines that it is in the best interest of the Government to do so, the Contracting Officer may, by written notice addressed to the Guarantor at the Guarantor's address shown herein, waive the effect of this Agreement with respect to any specifically identified individual contract between the Government and the Contractor entered into after the date of such written notice. A separate written notice shall be given with respect to each contract that the Contracting Officer determines shall not be subject to the effect of this Agreement.
- d. In the event that all of the contracts covered by this Guaranty Agreement have been satisfactorily completed by the Contractor including all continuing commitment of the Contractor under the contracts, the Guarantor may request the cognizant Government Contracting Officer for this Guaranty Agreement to issue a written notice which states that this Guaranty Agreement is considered to have expired.

Executed the _____ day of _____ year of _____.

(Guarantor)

By _____

(Title)

(Business Address)

Witness _____

Witness _____

I, _____, certify that I am the duly elected Secretary of the Corporation named as Guarantor herein; that _____ who signed this Agreement on behalf of the Guarantor, was then _____ of said Corporation, that said Agreement was duly signed for and in behalf of said Corporation by authority of its governing body, and is within the scope of its corporate powers.

Corporate Seal:

(Secretary)

Receipt of a copy of the above Guaranty Agreement is acknowledged.

THE UNITED STATES OF AMERICA

By _____

(Contracting Officer)

(Contracting Officer Address)

**SMALL BUSINESS SUBCONTRACTING PLAN
SOLICITATION/CONTRACT (Solicitation N62742-26-R-1306)**

INDIVIDUAL SMALL BUSINESS SUBCONTRACTING PLAN (Template)
Edit or delete red font text and complete fill-ins as applicable

This template is designed to be consistent with FAR 19.109, Small Business Subcontracting Plans and FAR clause 52.219-9, Small Business Subcontracting Plan ("subcontracting plan"). Other formats may be acceptable, including commercial or master subcontracting plans; however, failure to include the essential information exemplified in this individual plan template may be cause for delay in acceptance or rejection of a bid/offer.

(TO BE SUBMITTED BY OTHER THAN SMALL BUSINESSES ONLY)
(Also referred to as large businesses)

(CONTRACTOR'S NAME)
(ADDRESS)

(CONTRACTOR'S CORPORATE HEADQUARTERS ADDRESS)
[If same as above, so indicate].

(Solicitation or Contract Number)

(Title of the Project and Location)

(Date Prepared)

PLAN SUBMITTED BY:

Signature: _____ Date: _____

Printed Name: _____

Title: _____

REVIEWED:

Small Business Professional

Date

REVIEWED:

Small Business Administration
Procurement Center Representative

Date

**SMALL BUSINESS SUBCONTRACTING PLAN
SOLICITATION/CONTRACT (Solicitation N62742-26-R-1306)**

ACCEPTED:

Procuring Contracting Officer

Date

☐ The SBSP contains a zero goal in one or more small business category. Advice has been obtained and recommendations received from the cognizant Contract Administration Office have been considered. Detailed reasoning for recommending approval is provided below. NMCARS 5219.206-3 requires approval one level above the Contracting Officer.

REMARKS:

APPROVED: ONE LEVEL ABOVE THE CONTRACTING OFFICER (IF APPLICABLE)

Contracting Officer (one level above)

Date

☐ The SBSP contains a zero goal in one or more small business category. Based upon the detailed reasoning provided above, this SBSP is approved as required by NMCARS 5219. 206-3).

**SMALL BUSINESS SUBCONTRACTING PLAN
SOLICITATION/CONTRACT (Solicitation N62742-26-R-1306)**

SUBCONTRACTING PLAN

This document, together with any attachments, is submitted as a subcontracting plan to satisfy the requirements of Federal Acquisition Regulations (FAR) 19.109. The following goals are established for the contract (including base period and all option items/periods (if applicable)). **Attachment 1 provides breakdowns for the base year and option periods. Percentages may be rounded to nearest tenth of a percent. INCLUDE SUPPORTING RATIONALE FOR ALL PROPOSED GOALS AND ENSURE THIS PLAN IS CONSISTENT WITH ANY SMALL BUSINESS PARTICIPATION AND COMMITMENT STRATEGY ASSOCIATED WITH THIS ACQUISITION.**

1. a. Total Contract Value \$ _____
(including options)
- b. Total Subcontracted \$ _____ % of 1.a
(inclusive of all planned subcontracting to all businesses, regardless of size)
- c. Total Prime-performed \$ _____ % of 1.a

2. The following dollars and percentage goals are applicable to the contract cited above. (See FAR 52.219-9(d))

- a. Large Business \$ _____ % of 1.b

This number represents total planned subcontract dollars that will be awarded to other than small business concerns (including subcontracts awarded to Historically Black Colleges, Universities and Minority Institutions (HBCU/MIs).

- b. Small Business (SB) \$ _____ % of 1.b

This number represents total planned subcontract dollars that will be awarded to **small business concerns**** as well as subcontracts awarded under the AbilityOne Program to SourceAmerica (formerly NISH) and National Industries for the Blind (NIB) organizations and subcontracts awarded to Alaskan Native Corporations (ANCs) and Indian Tribes as prescribed in FAR 52.219-9 and DFARS 252.219-7996 (Deviation 2026-O0037)(b).

(** Small business concerns include SBs, Small Disadvantaged Businesses (SDB), Women-Owned Small Businesses (WOSB), Historically Underutilized Business Zone (HUBZone) Small Businesses, Veteran-Owned Small Businesses (VOSB) and Service-Disabled Veteran-Owned Small Businesses (SDVOSB))

(Include 2.c, 2.d, 2.e, 2.f, 2.g, 2.h, and 2.i, below).

Notes:

(1) *Lines 1.b + 1.c = 100% of Line 1.a*

(2) *Lines 2.a + 2.b = 100% of Line 1.b*

SMALL BUSINESS SUBCONTRACTING PLAN
SOLICITATION/CONTRACT (Solicitation N62742-26-R-1306)

(3) Lines 2.c, 2.d, 2.e, 2.f, 2.g, 2.h, and 2.i are calculated against Line 1.b, the total value of overall subcontract dollars.

(4) Subcontracts to companies that qualify in multiple categories of SB must be reported under each category. For example: if you are planning to subcontract \$100,000 to company ABC, a woman-owned SDB that is also a certified HUBZone SB, you will report \$100,000 on line 2.b (SB), 2.c (HUBZone), 2.d (WOSB) and 2.e (SDB). Accordingly, the sum of 2.c through 2.i will not necessarily equate to the value of 2.b.

(5) Designated HUBZone SBs must be certified by the Small Business Administration (SBA).

c. HUBZone SB \$ _____ % of 1.b

This number represents total planned subcontract dollars that will be awarded to qualified HUBZone small business concerns certified by SBA. (Included in total for 2.b, above)

d. WOSB \$ _____ % of 1.b

This number represents total planned subcontract dollars under that will be awarded to WOSBs. (Included in total for 2.b, above)

e. SDB \$ _____ % of 1.b

This number represents total planned subcontracting dollars that will be awarded to small business concerns owned and controlled by socially and economically disadvantaged individuals (include in this category the planned subcontracting dollars to ANCs and Indian Tribes shown in total for 2.i below). (Included in total for 2.b, above)

f. VOSB \$ _____ % of 1.b

This number represents total planned subcontract dollars that will be awarded to small business concerns owned and controlled by veterans (include in this category the planned subcontracting dollars for SDVOSBs shown in 2.g below). (Included in total for 2.b, above)

g. SDVOSB \$ _____ % of 1.b

This number represents total planned subcontract dollars under this contract that will be awarded to subcontractors who are small business concerns owned and controlled by service-disabled veterans. (Included in totals for 2.b and 2.f, above)

h. AbilityOne \$ _____ % of 1.b.

This number represents total planned subcontract dollars that will be awarded to AbilityOne associated nonprofit agencies through SourceAmerica and NIB. Per DFARS 252.219-7996 (Deviation 2026-O0037)(b), subcontracts awarded to qualified non-profit agencies for the blind or severely disabled may be counted toward the small business subcontracting goal. (Included in total for 2.b, above)

i. Alaskan Native
Corporations &
Indian Tribes \$ _____ % of 1.b.

SMALL BUSINESS SUBCONTRACTING PLAN
SOLICITATION/CONTRACT (Solicitation N62742-26-R-1306)

This number represents total planned subcontract dollars that will be awarded to ANCs and Indian Tribes and for which the prime contractor has been designated to receive SDB credit. *(See FAR 19.302-2(a)(2)(i) & FAR 52.219-9)* (Included in totals for 2.b and 2.e, above)

3. The following principal products and/or services will be subcontracted under this contract. *(See FAR 52.219-9(d)(3))*

a. Products/services planned to be subcontracted to LB concerns (including HBCU/MIs):

Firm subcontract commitments:

Name of Company/Unique Entity ID

Products or Services

b. Products/services planned to be subcontracted to SB concerns:

Firm subcontract commitments:

Name of Company/Unique Entity ID

Products or Services

c. Products/services planned to be subcontracted to certified HUBZone concerns:

Firm subcontract commitments:

Name of Company/Unique Entity ID

Products or Services

d. Products/services planned to be subcontracted to WOSB concerns:

**SMALL BUSINESS SUBCONTRACTING PLAN
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Firm subcontract commitments:

Name of Company/Unique Entity ID

Products or Services

- e. Products/services planned to be subcontracted to SDB concerns:

Firm subcontract commitments:

Name of Company/Unique Entity ID

Products or Services

- f. Products/services planned to be subcontracted to VOSB concerns:

Firm subcontract commitments:

Name of Company/Unique Entity ID

Products or Services

- g. Products/services planned to be subcontracted to SDVOSB concerns:

Firm subcontract commitments:

Name of Company/Unique Entity ID

Products or Services

- h. Products/services planned to be subcontracted to AbilityOne organizations:

**SMALL BUSINESS SUBCONTRACTING PLAN
SOLICITATION/CONTRACT (Solicitation N62742-26-R-1306)**

Firm subcontract commitments:

<u>Name of Organization/Unique Entity ID</u>	<u>Products or Services</u>
--	-----------------------------

_____	_____
_____	_____

- i. Planned products/services to be subcontracted to ANCs and Indian Tribe businesses (See 2.i above for explanation):

Firm subcontract commitments:

<u>Name of Company/Unique Entity ID</u>	<u>Products or Services</u>
---	-----------------------------

_____	_____
_____	_____

4. The following methods were used to develop the above subcontracting goals. *Include a statement explaining how the products and services to be subcontracted were established, how the products and services to be subcontracted to SB, SDB, WOSB, HUBZone, VOSB, SDVOSB concerns, AbilityOne program participants, ANCs and Indian Tribes were determined, and how their capabilities were assessed. (See FAR 52.219-9(d)(4))*

5. The following methods were/will be used to identify potential sources for solicitation purposes: ***(See FAR 52.219-9(d)(5))*** *The offeror may rely on the information contained in SAM as an accurate representation of a concern's size and ownership characteristics for the purposes of maintaining a SB, VOSB, SDVOSB, HUBZone, SDB, and WOSB source list. Use of SAM as a source list does not relieve the offeror of its responsibilities (e.g., outreach, assistance, counseling, or publicizing subcontracting opportunities.*

**SMALL BUSINESS SUBCONTRACTING PLAN
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6. Indirect and overhead costs ☐ have ☐ have not been included in the goals specified in 1. and 2. above. *If "have" is checked, explain the method used in determining the proportionate share of indirect costs to be incurred with SBs (including all subcategories delineated above). (See FAR 52.219-9(d)(6))*

7. The following employee will administer the subcontracting program: *(See FAR 52.219-9(d)(7))*

NAME: _____

ADDRESS: _____

TELEPHONE NO.: _____

EMAIL: _____

TITLE: _____

This individual has general overall responsibility for the company's small business program. This person should have knowledge of the federal small business programs and be knowledgeable about federal procurement practices. If the prime decides to change the person in this position, they must notify the Contracting Officer and the Small Business Professional. The administrator is responsible for the development, preparation and execution of this subcontracting plan, and for monitoring performance relative to contractual subcontracting requirements contained in this plan, including:

- a. Developing and maintaining bidders lists of SB, SDB, WOSB, HUBZone SB, VOSB, SDVOSB concerns, AbilityOne program participants, HBCU/MIs, ANCs, and Indian Tribes (hereafter referred to as the small business community) from all possible sources.
- b. Counsel and discuss subcontracting opportunities with representatives of the small business community.
- c. Ensuring that procurement packages are structured to permit the small business community to participate to the maximum extent possible.
- d. Assuring inclusion of the small business community in all solicitations for products or services, which they are capable of providing.
- e. Reviewing solicitations to remove statements, clauses, etc., which may tend to restrict or prohibit the small business community participation.
- f. Assign each subcontract the NAICS code and corresponding size standard that best describes the principal purpose of the subcontract.
- g. Confirm that a subcontractor representing itself as a HUBZone small business concern is certified by SBA as a HUBZone small business concern by SBA in accordance with 52.219-8(d)(2)
- h. Provide notice to subcontractors concerning penalties and remedies for misrepresentations of business status as small, veteran-owned small business, HUBZone small, small disadvantaged, or women-owned small business for the purpose of obtaining a subcontract that is to be included as part or all of a goal contained in the subcontracting plan.
- i. Ensuring periodic rotation of potential subcontractors on bidders lists.
- j. Ensuring that the bid proposal review board documents its reasons for not selecting low bids submitted by the small business community.

**SMALL BUSINESS SUBCONTRACTING PLAN
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- k. Ensuring the establishment and maintenance of records of solicitations and subcontract award activity.
- l. Attending or arranging for attendance of company counselors at Business Opportunity Workshops, Minority Business Enterprise Seminars, Trade Fairs, etc.
- m. Conducting or arranging for the motivational training for purchasing personnel pursuant to the intent of P.L. 95-507.
- n. Monitoring attainment of proposed goals.
- o. Preparing and submitting required periodic subcontracting reports.
- p. Coordinating contractor's activities during the conducting of compliance reviews by Federal agencies.
- q. Coordinating the conduct of contractor's activities involving its small business subcontracting program.
- r. Provide a list of additional duties or Check None ☐.

8. The following efforts will be taken to ensure that the small business community will have an equitable opportunity to compete for subcontracts. *(See FAR 52.219-9(d)(8))*

- a. Outreach efforts will be made by identifying:
 - Contacts with minority and small business trade associations.
 - Contacts with business development organizations.
 - Attendance at small and minority business procurement conference and trade fairs.
- b. Sources will be requested from the System for Award Management (SAM) website available at <https://www.sam.gov/> on the Internet.
Automated data base sources to be used, other than SAM, will be as follows.

- c. The following internal efforts will be made to guide and encourage buyers:
 - (i) Workshops, seminars and training programs will be conducted.
 - (ii) Activities will be monitored to evaluate compliance with this subcontracting plan.
 - (iii) Arrange interviews with the small business community.
- d. Describe how your small business database, source lists, guides, and other data will be maintained and utilized by buyers in soliciting subcontracts; e.g., rotation of firms in the data base, keeping data base current and useful.

9. **Contractor Name** agrees that the FAR clause 52.219-8 entitled "Utilization of Small Business Concerns" will be included in all subcontracts which offer further subcontracting opportunities, and all subcontractors, except SB concerns, that receive subcontracts in excess of \$900,000 (\$2,000,000 for construction) will be required to adopt plans that comply with the requirements of the clause at 52.219-9, Small Business Subcontracting Plan. Such plans will be reviewed by comparing them with the

SMALL BUSINESS SUBCONTRACTING PLAN
SOLICITATION/CONTRACT (Solicitation N62742-26-R-1306)

provisions of P.L. 95-507 and assuring that all minimum requirements of an acceptable subcontracting plan have been satisfied. The acceptability of percentage goals shall be determined on a case-by-case basis depending on the supplies/services involved, the availability of potential small and small disadvantaged subcontractors, and prior experience. Once approved and implemented, plans will be monitored through the submission of periodic reports, and/or, as time and availability of funds permit, periodic visits to review subcontracting program progress. *(See FAR 19.109(a) and FAR 52.219-9(d)(9))*

10. Contractor Name will submit such periodic reports and cooperate in any studies or surveys as may be required by the contracting agency or the Small Business Administration in order to determine the extent of compliance by the offeror (contractor) with the subcontracting plan and with FAR clause 52.219-8. *(See FAR 52.219-9(d)(10))*

Contractor Name will:

- a. Submit the Individual Subcontract Report (ISR) and the Summary Subcontract Report (SSR) using ~~eSRS~~ and <https://sam.gov> (SAM.gov). Although FAR Clause 52.219-9 and DFARS Clause 252.219-7996 (Deviation 2026-O0037) state to use eSRS, eSRS has been retired as of 20 February 2026. However, the reporting dates will remain as follows:

1 st reporting period – Oct 1 through March 31	Submit NLT 30 April
2 nd reporting period – Oct 1 through September 30	Submit NLT 30 October

Reports are required when due, regardless of whether there has been any subcontracting activity since the inception of the contract or the previous reporting period. When a Contracting Officer rejects a report, a revised report shall be submitted within 30 days of the notice of report rejection.

A separate “Final” ISR is required at contract completion.

Upon award of the contract, the identity of the individual(s) responsible for acknowledging receipt or rejecting the ISR and the SSR will be provided to the awardee.

- b. After November 30, 2017, include subcontracting data for each order when reporting subcontracting achievements for indefinite-delivery, indefinite quantity contracts intended for use by multiple agencies;
- c. Ensure that its large business subcontractors with subcontracting plans agree to submit the ISR and/or the SSR using SAM.gov
- d. Provide its prime contract number and its unique entity identifier, and the e-mail address of the Government or contractor official responsible for acknowledging or rejecting the reports, to all first-tier large business subcontractors with subcontracting plans so they can enter this information into SAM.gov when submitting their ISRs;
- e. Require that each large business subcontractor with a subcontracting plan provide the prime contract number and its own unique entity identifier, and the e-mail address of the Government or contractor official responsible for acknowledging or rejecting the reports, to its large business subcontractors with subcontracting plans; and

**SMALL BUSINESS SUBCONTRACTING PLAN
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- f. Ensure that the identified Contracting Officer and Small Business Professional assigned to the contract are included on the SAM.gov email notification distribution for each report.

****Note 1: If contract value is \$40,000 or more and the solicitation includes FAR Clause 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards, ensure additional reporting requirements are met in SAM.gov in accordance with this clause-***

11. **Contractor Name** will maintain at least the following types of records to document compliance with this subcontracting plan: ***(See FAR 52.219-9(d)(11))***
- a. Source lists, guides, and other data identifying small business, HUBZone small business, women-owned small business, small disadvantaged business, veteran-owned small business and service-disabled veteran-owned small business.
 - b. Organizations contacted to locate small business, HUBZone small business, women-owned small business, small disadvantaged business, veteran-owned small business and service-disabled veteran-owned small business.
 - c. On a contract-by-contract basis, records on all subcontract solicitations over the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, and indicating for each solicitation:
 - (i) whether small business, HUBZone SBs, WOSBs, SDBs, VOSBs and SDVOSBs were solicited, and if not, why not; and
 - (ii) reason why the award was not made to a small business concern.
 - (iii) written designations from ANCs or Indian Tribes, in accordance with FAR 52.219-9(d)(1)(ii)(C), if applicable.
 - d. Records to support other outreach efforts, e.g., contacts with small business trade associations, business development organizations, and attendance at small business procurement conferences and trade fairs, and frequency of accessing SAM.
 - e. Maintain records of internal guidance and encouragement to buyers through:
 - (i) Workshops, seminars, training; and
 - (ii) Monitoring performance to evaluate compliance with the program's requirement.
 - f. On a contract-by-contract basis, records to support award data submitted by the contractor to the Government including the name, address, and business size of each subcontractor.
12. **Contractor Name** will make a good faith effort to acquire articles, equipment, supplies, services, or materials, or obtain the performance of construction work from the small business concerns that the offeror used in preparing the bid or proposal, in the same or greater scope, amount, and quality used in preparing and submitting the bid or proposal. Responding to a request for a quote does not constitute use in preparing a bid or proposal. An offeror used a small business concern in preparing the bid or proposal if – ***(See FAR 52.219-9(d)(12))***
- a. The offeror identifies the small business concern as a subcontractor in the bid or proposal or associated small business subcontracting plan, to furnish certain supplies or perform a portion of the contract; or
 - b. The offeror used the small business concern's pricing or cost information or technical expertise in preparing the bid or proposal, where there is written evidence of an intent or understanding that the small business concern will be awarded a subcontract for the related work if the offeror is awarded the contract.

SMALL BUSINESS SUBCONTRACTING PLAN
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13. Contractor Name will provide the Contracting Officer with a written explanation if the contractor fails to acquire articles, equipment, supplies, services or materials or obtain the performance of construction work as described in paragraph 12 of this plan. This written explanation will be submitted to the Contracting Officer within 30 days of contract completion. *(See FAR 52.219-9(d)(13))*
14. Contractor Name will not prohibit a subcontractor from discussing with the Contracting Officer any material matter pertaining to payment to or utilization of a subcontractor. *(See FAR 52.219-9(d)(14))*
15. Contractor Name will pay its small business subcontractors on time and in accordance with the terms and conditions of the subcontract, and notify the Contracting Officer if the offeror pays a reduced or an untimely payment to a small business subcontractor (see [52.242-5](#)). *(See FAR 52.219-9(d)(15))*

*****END OF PLAN*****

The original copy of this plan will be included in the file and made a material part of the contract.

Copy to:
Small Business Professional
SBA Procurement Center Representative

**BASE AND OPTION PERIODS SUBCONTRACTING GOALS
SOLICITATION (Solicitation N62742-26-R-1306)**

	<u>Base Item</u>	<u>Option Item 1</u>	<u>Option Item 2</u>	<u>Total (Base+Options)</u>
1.a <u>Total Contract</u>	\$ _____	\$ _____	\$ _____	\$ _____
1.b <u>Total Subcontracted</u>	\$ _____	\$ _____	\$ _____	\$ _____
<u>(% of Line 1.a)</u>	% _____	% _____	% _____	% _____
1.c <u>Total Prime</u>	\$ _____	\$ _____	\$ _____	\$ _____
<u>(% of Line 1.a)</u>	% _____	% _____	% _____	% _____
2.a <u>To LB</u>	\$ _____	\$ _____	\$ _____	\$ _____
<u>(% of Line 1.b)</u>	% _____	% _____	% _____	% _____
2.b <u>To SB</u>	\$ _____	\$ _____	\$ _____	\$ _____
<u>(% of Line 1.b)</u>	% _____	% _____	% _____	% _____
2.c <u>To HUBZone SB</u>	\$ _____	\$ _____	\$ _____	\$ _____
<u>(% of Line 1.b)</u>	% _____	% _____	% _____	% _____
2.d <u>To WOSB</u>	\$ _____	\$ _____	\$ _____	\$ _____
<u>(% of Line 1.b)</u>	% _____	% _____	% _____	% _____
2.e <u>To SDB</u>	\$ _____	\$ _____	\$ _____	\$ _____
<u>(% of Line 1.b)</u>	% _____	% _____	% _____	% _____
2.f <u>To VOSB</u>	\$ _____	\$ _____	\$ _____	\$ _____
<u>(% of Line 1.b)</u>	% _____	% _____	% _____	% _____
2.g <u>To SDVOSB</u>	\$ _____	\$ _____	\$ _____	\$ _____
<u>(% of Line 1.b)</u>	% _____	% _____	% _____	% _____
2.h <u>To AbilityOne</u>	\$ _____	\$ _____	\$ _____	\$ _____
<u>(% of Line 1.b)</u>	% _____	% _____	% _____	\$ _____
2.i <u>To ANCs/Indian Tribes</u>	\$ _____	\$ _____	\$ _____	\$ _____
<u>(% of Line 1.b)</u>	% _____	% _____	% _____	% _____

Attachment 1

COMPLEMENTARY PRICING INFORMATION

DESCRIPTION	PRICE
Subtotal of Base Price (CLIN 0001) for the entire work for the Battle Staff Training Facility complete to the 5-foot line outside of the building in accordance with the drawings and specifications, but excluding work provided in another item	
Subtotal of Base Price (CLIN 0001) for the supporting facilities and site work, outside the primary facility 5-foot line, complete in accordance with the drawings and specifications, but excluding work described in another Item.	
Subtotal of Base Price (CLIN 0001) for other costs, complete in accordance with the drawings and specifications, but excluding work provided in another Item.	
TOTAL SHALL EQUAL CLIN 0001 of the PRICE PROPOSAL SCHEDULE	
Subtotal of Option Item 1 Price (CLIN 0002) for the entire work for the Pavilion complete to the 5-foot line outside of the building in accordance with the drawings and specifications, but excluding work provided in another Item.	
Subtotal of Option Item 1 Price (CLIN 0002) for the supporting facilities and site work, outside the primary facility 5-foot line, complete in accordance with the drawings and specifications, but excluding work described in another Item.	
TOTAL SHALL EQUAL CLIN 0002 of the PRICE PROPOSAL SCHEDULE	
Subtotal of Option Item 2 Price (CLIN 0003) for the entire work for the Standby Back-up Generator, Generator Building, Fuel Storage Yard, and Sand Filter, complete to the 5-foot line outside of the building in accordance with the drawings and specifications, but excluding work provided in another Item.	
Subtotal of Option Item 2 Price (CLIN 0003) for the supporting facilities and site work, outside the primary facility 5-foot line, complete in accordance with the drawings and specifications, but excluding work described in another Item.	
TOTAL SHALL EQUAL CLIN 0003 of the PRICE PROPOSAL SCHEDULE	

NOTE: The Complementary Pricing Information is for Government information only. It will not be used for evaluation of prices or contract administration.

Date:

To: Marine Corps Base Camp Blaz Visitor Control Center

From:

Subject: BASE ACCESS REQUEST

CONTRACT INFORMATION

Contract No./Title	N62742-26-R-1306: JFY 2022 PROJECT J-875, BATTLE STAFF TRAINING FACILITY, U.S. NAVSUPPACT MCB CAMP BLAZ, GUAM	
Contract Start & Expiration Date	SITE VISIT - ONE DAY ONLY: 19 May 2026; 9:00 am ChST	
Prime Contractor Name		
Prime Contractor Address		
Contractor Coordinator (Name, Title & Phone Number)		
Project Location(s) on Marine Corps Base Camp Blaz (Check mark all that apply)	☒ MCBCB Main Base ☐ SKAGGS UTC ☐ Mason LFTRC ☐ South Finegayan	
Required Access Dates: (Applies only when dates differ from contract dates stated above)	From:	To:
Required Access Days & Times: (e.g. MON-FRI/0600-1800)		

EMPLOYEE INFORMATION

On company letterhead, attach list of employee(s), requiring base access under this contract. List your sub-contractor employees separately. See attached page for format guidance.

SPONSOR INFORMATION

Name & Title	
Command	
Phone Number	
Email Address	
The above listed Prime Contractor is authorized to operate on-board Marine Corps Base Camp Blaz (MCBCB). The above listed Prime Contractor will provide and liaison directly with MCBCB Visitor Control Center, all required contractor employee information, to include sub-contractor employee information, for the purpose of securing authorized base access credentials.	
Government Sponsor Signature	

MEMORANDUM

From: OICC Marine Corps Marianas /

To: Visitor Control Center, Marine Corps Base Camp Blaz

Subj: MEMO FOR BASE ACCESS ICO (Name)

1. Requesting ____ day pass for

to

. Please see below for more information:

- a. Date and time:
- b. Location:
- c. Purpose of visit:
- d. Sponsor:

2. For any questions or concerns, I can be contacted at:

Gov: Name
 Email/Phone

Contractor: Name
 Email/Phone

***Government Sponsor will sign below.**

X _____

Name

Title

DIGITAL SIGNATURE / DODID NUMBER / DATE

*If unable to sign digitally, please visit the VCC to
sign this document during the day of processing.

CONTRACTOR COMPANY LETTERHEAD

DATE

CONTRACT NUMBER & TITLE: N62742-26-R-1306: JFY 2022 PROJECT J-875,
BATTLE STAFF TRAINING FACILITY, U.S. NAVSUPACT MCB CAMP BLAZ, GUAM
Name & Address of Sub-Contractor: (If applicable)

	Full Legal Name (Last, First, MI)	NCAC Holder
1		
2		
3		
4		
5		
6		
7		
8		
9		
10		
11		
12		
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14		
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CERTIFICATION:

"I hereby certify that all personnel listed above are either born U.S. citizens, naturalized U.S. citizens with the naturalization number shown, or legal aliens with the alien registration number indicated and declare under penalty and perjury that all of the information provided on this form is true, complete, and correct."

Contractor POC Printed Name & Title

Date

GOVERNMENT SPONSOR ACKNOWLEDGEMENT

Printed Name & Title

Date

COVER SHEET REQUIREMENTS
FOR MCBCB BASE ACCESS REQUESTS
(INCLUDING NEW & TRANSITIONING NCACS HOLDERS)

SPONSORING ORGANIZATION must provide:

Contract Number / Title
Contract / Project Expiration Date
Contractor (Prime) Name & Mailing Address
Specific Date / Time of Access required
Specific MCBCB Area(s) to be access
Name of Government POC
Department / Division Assigned & Phone Number
Official Mailing Address
Signature of POC & Date

COMPANY must provide:

Listing of Names (on Company Letterhead)
Completed SECNAV Form 5512/1 (All applicable fields must be completed by employee)
(Type written preferred; however Handwritten must be LEGIBLE)
Name of Company POC & Phone Number
Signature & Identifier

EMPLOYEE must provide:

Real ID compliant identification; OR Passport, social security card, driver's license, birth certificate
Foreign Nationals; Passport, permanent resident card (green card), copy of visa, i94 Form, i797A or i797b Form
Social security card (for employment if received)

The base sponsor may forward the above to VCC mcb_camp_blaz_vcc@usmc.mil.
Limit to 3 SECNAV 5512/1 per email via government network

The Company POC may hand-carry them (Company Requirements) to the Visitor Control Center (VCC), a VCC staff will assist the Company POC in receiving their hard copies.

NEW Company employees must visit VCC to have their photo and fingerprints taken. Without these, VCC will not be able to generate the DBIDS credential. Non-US citizens/foreign nationals are required to present other identifiers.

DBIDS CARD RETURN POLICY STATEMENT

DBIDS Cards must be returned to VCC upon completion of project, resignation or change of employment. Failure to do so will result in employee name(s) being placed on MCBCB barred list.

DBIDS PRE-ENROLLMENT SITE

<https://dbids-global-enroll.dmdc.mil/preenrollui/#/landing-page>

Pre-enrollment helps to expedite the processing time. There may be additional delays if the pre-enrollment is not completed in advance. (**Print copy of DBIDS registration confirmation**)

VCC STAFF will

Review/Accept or may return attachments with discrepancies;
Assign an appointment date for individual processing (after 5 working days for less than 10 requests turned in)
Conduct identity-proofing process and NCIC check



FREQUENTLY ASKED QUESTIONS

Q - Does everyone in a vehicle need to be registered in DBIDS?

A - All individuals 18 years and older that require access to the installation will need to register.

Q - What happens if I don't pre-enroll?

A - Pre-enrollment helps to expedite the processing time. There may be additional delays if the pre-enrollment is not completed in advance.

Q - If I have a DBIDS card at another base, do I need to register again for Camp Blaz?

A - Yes, go directly to the VCC with your DBIDS card and MCB Camp Blaz permissions can be loaded on your existing DBIDS card.

Q - What is a REAL ID? In the upper right-hand corner, REAL ID compliant credentials display a star

A - <https://www.dhs.gov/real-id>

Q - What if I want to host a special event aboard the base? (retirement, promotion, conference, funeral, wedding, MCCS club event, etc.)

A - The event sponsors/tenant commands are responsible for ensuring attendees are aware of base access policies/registration requirements. The primary access procedure for special events is for all unaffiliated attendees to go to the VCC and be processed for a pass at the VCC to attend the event. Passes can be obtained at the VCC in advance of the event (up to 30 days). When requested in advance, special access procedures may be authorized for large events and events occurring at times when the VCC is closed and advanced registration is NOT possible. The event sponsor must submit a special event waiver request to the Commanding Officer, Provost Marshal Office, at least 14 days prior to event.

Q - What are the disqualification criteria for base access?

A - The following is the criteria for disqualification for base access.

- (1) Marine Corps LE or VCC personnel are unable to verify the individual's claimed identity based on reasonable belief the person submitted fraudulent identity information in the attempt to gain access.
- (2) The individual has a conviction for espionage, sabotage, sedition, treason, terrorism, armed robbery, or murder.
- (3) The individual has a felony conviction for a firearms or explosives violation, regardless of the date of conviction.
- (4) The individual has been convicted of crimes encompassing sexual assault or rape.
- (5) The individual has been convicted of crime encompassing child molestation, or the possession or production of child pornography.
- (6) The individual has been convicted of trafficking in persons.
- (7) The individual is a registered sex offender.
- (8) The individual has been convicted of drug possession with intent to sell or distribute.
- (9) The individual has an active arrest warrant from federal, state, local, or other civil LE authorities, regardless of offense or violation.
- (10) The individual has a felony conviction within the last 10 years, regardless of the offense or violation.
- (11) The individual's name appears on any federal or state agency watch list for criminal behavior or terrorist activity.
- (12) The individual is debarred entry or access to a Marine Corps site, other DoD installations or facilities, or other federal site or facility.
- (13) The individual engaged in acts or activities designed to overthrow the U.S. Government by force.
- (14) The individual is known to be or reasonably suspected of being a terrorist or belongs to an organization with known terrorism links/support.
- (15) The individual is known to be, or suspected of being, a terrorist or belonging to an organization with known links to

terrorism or support of terrorist activity.

(16) The individual is on parole or probation.

(17) The individual has criminal arrest information that the site commander determines the person presents a threat to the good order, discipline, or health and safety on the Marine Corps site.

DEPARTMENT OF THE NAVY LOCAL POPULATION ID CARD/BASE ACCESS PASS REGISTRATION

PRIVACY ACT STATEMENT:

AUTHORITY: 10 U.S.C. 113, Secretary of Defense; DoD Directive 1000.25, DoD Personnel Identity Protection (PIP) Program; DoD Instruction 5200.08, Security of DoD Installations and Resources and the DoD Physical Security Review Board (PSRB); DoD 5200.08-R, Physical Security Program; DoD Directive 5200.27, Acquisition of Information Concerning Persons and Organizations not Affiliated with the Department of Defense (Exception to policy memos); Directive-Type Memorandum (DTM) 09-012, Interim Policy Guidance for DoD Physical Access Control; DTM 14-005, DoD Identity Management Capability Enterprise Services Application (IMESA) Access to FBI National Crime Information Center (NCIC) Files; and E.O. 9397 (SSN), as amended; OPNAVINST 5530.14E, Navy Physical Security and Law Enforcement Program; Marine Corps Order P5530.14, Marine Corps Physical Security Program Manual; SORN NM05512-2 Badge and Access Control System Records and DMDC 16, Identity Management Engine for Security and Analysis (IMESA); <http://dpcid.defense.gov/Privacy/SORNsIndex>

PURPOSE(S): To control physical access to Department of Defense (DoD), Department of the Navy (DON) or U.S. Marine Corps Installations/Units controlled information, installations, facilities, or areas over which DoD, DON, or U.S. Marine Corps has security responsibilities by identifying or verifying an individual through the use of biometric databases and associated data processing/information services for designated populations for purposes of protecting U.S./Coalition/allied government/national security areas of responsibility and information; to issue badges, replace lost badges, and retrieve passes upon separation; to maintain visitor statistics; collect information to adjudicate access to facility; and track the entry/exit times of personnel.

ROUTINE USE(S): To designated contractors, Federal agencies, and foreign governments for the purpose of granting Navy officials access to their facility.

DISCLOSURE: Providing registration information is voluntary. Failure to provide requested information may result in denial of access to benefits, privileges, and DoD installations, facilities and buildings.

IDENTITY PROOFING AND APPLICANT INFORMATION

1. LAST NAME:	2. FIRST NAME:	3. MIDDLE NAME:	4. NAME SUFFIX: ☐ Jr. ☐ Sr. ☐ I ☐ II ☐ III ☐ IV
5. RACE (Check one or more): ☐ AMERICAN INDIAN OR ALASKA NATIVE ☐ ASIAN ☐ BLACK OR AFRICAN AMERICAN ☐ HISPANIC OR LATINO ☐ NATIVE HAWAIIAN OR OTHER PACIFIC ISLANDER ☐ WHITE			
6. GENDER (Check one): ☐ MALE ☐ FEMALE	7. DATE OF BIRTH:	8. CITY OF BIRTH:	9. STATE OF BIRTH:
10. BIRTH COUNTRY:			
11. US CITIZEN (Check): ☐ YES ☐ NO		12. DUAL CITIZENSHIP: ☐ YES ☐ NO CITIZENSHIP IF OTHER THAN US (Country):	

U.S. Citizen Minimum Documentation Required:

By Birth - Social Security No and/or State ID/Drivers License.

Naturalized - Certification Number, Petition Number, Date, Place and Court, United States passport number, Social Security No and/or State ID/Drivers License.

Derived - Parent's certification number, Social Security No and/or State ID/Drivers License.

Alien Minimum Documentation Required:

Registration Number, Expiration date, Date of entry, Port of entry.

13. IDENTITY SOURCE DOCUMENTS PRESENTED:	14. DOCUMENT NUMBER:	15. ISSUED BY STATE/COURT:	16. ISSUED BY COUNTRY:	17. ISSUED:	18. EXPIRES:
☐ Social Security No.			United States		
☐ State ID/Drivers License			United States		
☐ Passport No.					
☐ Certification Number and Petition Number					
☐ Derived - Parent's Certification Number:			United States		
☐ Alien Registration No.			United States		
		Date of Entry:	Port of Entry:		

OTHER APPROVED IDENTITY SOURCE DOCUMENTS:

☐					
☐					
19. WEIGHT (Pounds):	20. HEIGHT (Inches):	21. HAIR COLOR (Check one): ☐ Blond ☐ Brown ☐ Black ☐ Gray ☐ Red ☐ White ☐ Silver ☐ Auburn ☐ Bald		22. EYE COLOR (Check one): ☐ Brown ☐ Green ☐ Blue ☐ Hazel ☐ Black ☐ Gray ☐ Violet ☐ Unknown	
23. HOME ADDRESS (Include city, state, zip code):				HOME PHONE (Include Area Code):	
24. BASE SPONSOR'S NAME:				SPONSOR PHONE (Include Area Code):	

EMPLOYMENT ACTIVITY INFORMATION

25. EMPLOYER NAME AND ADDRESS (Include city/state/zip code):

EMPLOYER PHONE (Include Area Code):

26. SUPERVISOR NAME AND ADDRESS (Include city/state/zip code):

SUPERVISOR PHONE (Include Area Code):

27. Check the applicable box for WORK HOURS box or check the OTHER box and enter the work hours, then check the applicable for WORK DAYS:

WORK HOURS: ☐ 0600-1800 ☐ 0800-1700 ☐ OTHERWORK DAYS: ☐ SN ☐ M ☐ T ☐ W ☐ TH ☐ F ☐ ST

PRIOR FELONY CONVICTIONS

28. Have you ever been convicted of a Felony?

☐ YES ☐ NO

Initial

REQUIREMENT TO RETURN LOCAL POPULATION ID CARD

29. I understand that I am required to return my Local Population Identification Card to the Base Pass Office when it expires or if my employment is terminated for any reason. (initial)

AUTHORIZATION AND RELEASE AND CERTIFICATION

30. I hereby authorize the DOD/DON and other authorized Federal agencies to obtain any information required from the Federal government and/or state agencies, including but not limited to, the Federal Bureau of Investigation (FBI), the Defense Security Service (DSS), the U.S. Department of Homeland Security (DHS).

I have been notified of DON right to perform minimal vetting and fitness determination as a condition of access to DON installation/facilities. I understand that I may request a record identifier; the source of the record and that I may obtain records from the State Law Enforcement Office as may be available to me under the law. I also understand that this information will be treated as privileged and confidential information.

I release any individual, including records custodians, any component of the U.S. Government or the individual State Criminal History Repository supplying information, from all liability for damages that may result on account of compliance, or any attempts to comply with this authorization. This release is binding, now and in the future, on my heirs, assigns, associates, and personal representative(s) of any nature. Copies of this authorization that show my signature are as valid as the original release signed by me.

FALSE STATEMENTS ARE PUNISHABLE BY LAW AND COULD RESULT IN FINES AND/OR IMPRISONMENT UP TO FIVE YEARS.

BEFORE SIGNING THIS FORM, REVIEW IT CAREFULLY TO MAKE SURE YOU HAVE ANSWERED ALL QUESTIONS FULLY AND CORRECTLY.

I DECLARE UNDER PENALTY OF PERJURY THAT THE STATEMENTS MADE BY ME ON THIS FORM ARE TRUE, COMPLETE AND CORRECT.

DATE

SIGNATURE

FINAL DETERMINATION ON YOUR ACCESS: The Base Commanding Officer has final authority for determination on granting physical access to DON controlled installations/facilities under his/her jurisdiction.

BELOW COMPLETED BY BASE REGISTRAR PERSON CONDUCTING IDENTITY PROOFING and NCIC CHECK

31. INFORMATION VERIFIED BY:

32. ENTERED IN C/S SYSTEM BY:

33. PASS ISSUE DATE:

34. PASS EXPIRATION DATE:

35. NCIC CHECK PERFORMED BY:

36. RESULTS OF NCIC CHECK:

☐ NO RECORDS ☐ RECORD IDENTIFIER

RECORD NUMBER:

37. RESULTS OF LOCAL RECORDS CHECK:

☐ NO RECORDS ☐ RECORD IDENTIFIER

RECORD NUMBER:

Office of Under Secretary of Defense, DoD Manual 5200.08 VOLUME 3, PHYSICAL SECURITY PROGRAM: "ACCESS TO DOD INSTALLATIONS," January 2, 2019. The DoD Manual requires DoD installation government representatives query the National Crime Information Center (NCIC) and Terrorist Screening Database to vet the claimed identity and to determine the fitness of non-federal government and non-DoD-issued card holders (i.e. visitors) who are requesting unescorted access to a DoD installation. The minimum criteria to determine the fitness of a visitor is: 1) not on a terrorist watch list; 2) not on an DoD installation debarment list; and 3) not on a FBI National Criminal Information Center (NCIC) felony wants and warrants list.

Additionally, SECNAV Memo, Policy for Sex Offender Tracking and Assignment and Access Restrictions within the Department of the Navy, of 7 Oct 08 and OPNAVINST 1752.3 established the Navy's policy on sex offenders, requiring Region Commanders (REGCOMs) and Installation Commanding Officers (COs) to prohibit sex offender access to DoN facilities and Navy owned, leased or PPV housing. This form describes the authority and purpose to collect and share the required information; and identifies the applicant/visitor and sponsor; and authorizes the DoD to perform the minimum vetting and fitness determination criteria. A favorable response on the vetting and fitness determination is required to receive access to DOD controlled installation/facilities.

Instruction for completing the Local Population Access Registration Form

INSTRUCTIONS: Please complete all information in black ink (printed) or by typing. By voluntarily providing your Personal Information, you agree to the following terms and restrictions:

RESTRICTIONS: Local Population Identification Card/Base Access Pass may only be used by person to whom they are issued and for the specific business/purpose issued. Applicants are reminded that soliciting (i.e., door-to-door sales) is prohibited on the base, and that such activity is grounds for cancellation of the Pass. Additionally, such action may result in debarment from the base and legal action. The Base Commanding Officer has discretion over specifying the period of validity for any Local Population ID Cards/Base Access Passes that are issued under his/her jurisdiction. Review the Privacy At Statement that is printed at the top of the form

Block 1: Enter the Last Name. Block 2: Enter the First Name. Block 3: Enter the Middle Name. Block 4: If applicable, check the box for Name Suffix. Block 5: Check the applicable box for Race. Block 6: Check the applicable box for Gender. Block 7: Enter Date of Birth. Block 8: Enter City of Birth. Block 9: Enter State of Birth. Block 10: Enter Country of Birth. Block 11: Check the applicable box for US Citizenship. Block 12: If not a US Citizen, enter the name of the Country of Citizenship. Block 13: Two forms of identity source documents from the list of acceptable documents listed below must be presented to the base registrar with this completed form. Check the box for the type of Documents that will be presented for identity proofing. If the document type is not listed, use the two rows under Other Approved Identity Source Documents to enter the type of document(s) that you will present. Block 14: Enter the Document Number located on the Identity Proofing Source document that was checked in Block 13. Block 15: Enter the State that issued the Identity Source Document. Block 16: Enter the Country that issued the Identity Source Document.	Block 17: Enter the Date that the Identity Source Document was issued. Block 18: Enter the Date that the Identity Source Document will expire. Block 19: Enter Weight in pounds. Block 20: Enter Height in inches. Block 21: Check the applicable box for Hair Color. Block 22: Check the applicable box for Eye Color. Block 23: Enter Home Address Including City, State, Zip Code, and Home Telephone Number. Block 24: Enter Name of Registrant's Base Sponsor and Base Sponsor's Telephone Number. Block 25: Enter Employer Name and address including City, State, Zip Code, and Employer's Telephone Number. Block 26: Enter Supervisor's Name including City, State, Zip Code, and Supervisor's Telephone Number. Block 27: Check the applicable box for Work Hours box or check the OTHER box and enter the work hours, then check applicable boxes for Work Days. Block 28: Check the applicable answer if you have been convicted of Felony and enter initials. Block 28: Check the applicable box for felony conviction. Block 29: Enter initials to accept terms for returning Local Population Identification Card. Block 30: Sign and date the form to attest that the foregoing information is true and complete to best of your knowledge.
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LIST OF ACCEPTABLE DOCUMENTS - All documents must not be expired.

Must present one selection from List A or a combination of one selection from List B and one selection from List C.

List A - Documents that Establish Identity and Employment Authorization	OR	List B - Documents that Establish Identity	AND	List C - Documents that Establish Employment Authorization
- U.S. Passport or U.S. Passport Card. - Permanent Resident Card or Alien Registration Receipt Card (Form I-551). - Foreign passport that contains a temporary I-551 stamp or temporary I-551 printed notation on a machine-readable immigrant visa. - Employment Authorization Document that contains a photograph (Form I-766). - For a nonimmigrant alien authorized to work for a specific employer because of his or her status: - Foreign Passport; and - Form I-94 or Form I-94A that has the following: - The same name as the passport; and - An endorsement of the alien's nonimmigrant status as long as that period of endorsement has not yet expired and the proposed employment is not in conflict with and restrictions or limitations identified on form. - Passport from the Federal States of Micronesia (FSM) or the Republic of the Marshall Islands (RM) with Form I-94 or Form I-94A indicating nonimmigrant admission under the Compact of Free Association Between the United States and FSM or RM.		- Driver's license or ID card issued by a State or outlying possession of the United States provided it contains a photograph or information such as name, date of birth, gender, height, eye color, and address. - ID card issued by federal, state or local government agencies or entities, provided it contains a photograph or information such as name, date of birth, gender, height, eye color, and address. - School ID card with a photograph - Voter's registration card. - U.S. Military card or draft record. - Military dependent's ID card. - U.S. Coast Guard Merchant Mariner Card. - Native American tribal document. - Driver's license issued by a Canadian government authority. For persons under age 18 who are unable to present a document listed above: - School record or report card. - Clinic, doctor, or hospital record. - Day-care or nursery school record.		- A Social Security Account Number card, unless the card includes one of the following restrictions: - NOT VALID FOR EMPLOYMENT - VALID FOR WORK ONLY WITH INS AUTHORIZATION. - VALID FOR WORK ONLY WITH DHS AUTHORIZATION. - Certification of Birth Abroad issued by the Department of State (Form FS-545). - Certification of Birth issued by the Department of State (Form DS-1360). - Original or certified copy of birth certificate issued by a State, county, municipal authority or territory of the United States bearing an official seal. - Native American tribal document. - U.S. Citizen ID Card (Form I-197). - Identification Card for Use of Resident Citizen in the United States (Form I-179). - Employment authorization document issued by the Department of Homeland Security.

The remainder of the form will be completed by the Base Registrar Person conducting Identify Proofing process and NCIC check.

AGENCY DISCLOSURE STATEMENT:

The public reporting burden for this collection of information, OMB 0703-0061, is estimated to average ten (10) minutes per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding the burden estimate or burden reduction suggestions to the Department of Defense, Washington Headquarters Services, Executive Services, at whs.mc-alex.esd.mbx.dd-dod-information-collections@mail.mil. Respondents should be aware that notwithstanding any other provision of law, no person shall be subject to any penalty for failing to comply with a collection of information if it does not display a currently valid OMB control number.

PLEASE DO NOT RETURN RESPONSE TO THE ABOVE ADDRESS.

Responses should be sent to the Base Registrar.

NAVAL BASE GUAM

FOREIGN NATIONAL BASE ACCESS REQUEST

Completion of this form is required by the Naval Criminal Investigative Service (NCIS). The information will be used solely for law enforcement and force protection purposes and will be handled according to pertaining laws and regulations. Every section of this form must be accurately completed and legible. For questions or concerns contact NCIS at {671}339-7220 or himi@ncis.navy.mil.

The information is necessary for validation of identity and determination of entry eligibility on to Naval Base Guam. Failure to provide this information may result in non-issuance determination by the issuing authority.

Sponsor Information

1. Name (Last, First, MI) _____
2. Status: ☐ Active Duty; ☐ Reserve; ☐ Retired; ☐ Military Dependent; ☐ Other: _____
3. Date of Birth (DD/MMM/YYYY, ex; 15/JAN/1990): _____
4. Command/Unit/Company (or closest affiliation): _____
5. Contact phone number and email address while on Guam: _____
6. Address/Residence/Lodging on Guam: _____

*** A copy of the sponsor valid identification must be provided ***

Sponsor Signature: _____ Date: _____

Visitor Information

7. Visitor Type: ☐ Sponsored Guest; ☐ Contractor; ☐ Other _____
8. Full Name(s) of Visitor(s): _____
9. Country of Citizenship: _____
10. Contact Phone Number on Guam: _____
11. Residence on Guam (include hotel room number if applicable): _____
12. Purpose of visit to Naval Base Guam Installation(s): _____
13. Intended on Base Destination(s): _____
14. Beginning and end time(s) requested for access to Naval Base Guam: _____

*** Copies of Passport, Visa and/or other valid identification is required for all sponsored visitors ***

-----FOR NBG VISITOR CONTROL CENTER-----

VCC staff that processed Name: _____
VCC Staff (Printed Name)

Signature: _____ DATE: _____

FN BIOMETRIC DATA

APPLICANT DATA ENTRY (Filled in by applicant not sponsor information)

ROUTING CODE: _____ DATE: _____

LAST NAME: _____ FIRST NAME: _____

MIDDLE NAME: _____ SUFFIX: _____

DATE OF BIRTH: _____ SSN: _____

SEX: _____ HEIGHT: _____

RACE: _____ WEIGHT: _____

EYE COLOR: _____ HAIR COLOR: _____

PLACE OF BIRTH: _____ CITIZENSHIP: _____

REASON FOR BIO-DATA: _____

OCCUPATION: _____

APPLICANT'S CURRENT RESIDENCE ADDRESS

STREET: _____

CITY: _____ STATE: _____ ZIP: _____

EMPLOYER INFORMATION

EMPLOYER/COMPANY NAME: _____

STREET: _____

CITY: _____ STATE: _____ ZIP: _____

FOR NBG VISITOR CONTROL CENTER

Data Entry Completed by: _____

VCC Staff (Printed Name)

Data Entry Completed by: _____ DATE: _____

VCC STAFF (Signature)

The information is necessary for validation of identity and determination of entry eligibility on to Naval Base Guam. Failure to provide this information may result in non-issuance determination by the issuing authority.



CAMERA PASS REQUEST

Marine Corps Base Camp Blaz

Date of Request: _____

Company Name or Individual Requesting: _____

Description of Work or Reason for Pass: (Please be specific)

Site Visit for: RFP N62742-26-R-1306, JFY 2022 PROJECT J-875, BATTLE STAFF TRAINING FACILITY,
U.S. NAVSUPPACT, MCB CAMP BLAZ, GUAM

Areas of Access (Should include Base Name, Location, and Building # if applicable):

N62742-26-R-1306, J-875, BATTLE STAFF TRAINING FACILITY Project Site

Dates Required: From: 5/19/2026 To: 5/19/2026

EMPLOYEE(S)

Last Name, First Name	Company	Position/Title	ID Card #
-----------------------	---------	----------------	-----------

1.

2.

3.

4.

5.

6.

Statement of Understanding. All designated photographers understand they cannot take imagery of the satellite equipment (golf balls, satellite dishes). All imagery must be cleared through MCBCB Communication Strategy and Operations before dissemination and use.

Name	Signature	Name	Signature
_____	_____	_____	_____
Name	Signature	Name	Signature
_____	_____	_____	_____
Name	Signature	Name	Signature
_____	_____	_____	_____

Encl: (1)



CAMERA PASS REQUEST

Marine Corps Base Camp Blaz

Endorsements

Provost Marshal's Office:

_____	_____	<u>Approved/Disapproved</u>
Print Name	Signature / Date	Circle

Justification (if needed): _____

COMMSTRAT:

_____	_____	<u>Approved/Disapproved</u>
Print Name	Signature / Date	Circle

Justification (if needed): _____

Encl: (1)

DBIDS APPLICATION REQUIREMENTS

U.S. CITIZENS

CONTRACT INFORMATION SHEET (CIS) / MEMORANDUM
APPROVED EMPLOYEE LISTING
REAL ID OR PASSPORT
SECNAV
PROOF OF SOCIAL SECURITY NUMBER

FSM/MICRONESIA

CONTRACT INFORMATION SHEET
APPROVED EMPLOYEE LISTING
REAL ID OR PASSPORT
SECNAV
I94
PROOF OF SOCIAL SECURITY NUMBER

FOREIGN NATIONALS (NOT A H1/H2)

CONTRACT INFORMATION SHEET
APPROVED EMPLOYEE LISTING
PASSPORT
SECNAV
VISA OR PERMANENT RESIDENT OR EMPLOYMENT CARD
(ESTA)
PROOF OF SOCIAL SECURITY NUMBER

FOREIGN NATIONALS (H1)

CONTRACT INFORMATION SHEET
APPROVED EMPLOYEE LISTING
PASSPORT
SECNAV
I94
VISA
PROOF OF SOCIAL SECURITY NUMBER

FOREIGN NATIONALS (H2)

CONTRACT INFORMATION SHEET
APPROVED EMPLOYEE LISTING
PASSPORT
SECNAV
I94
VISA
DEPARTMENT OF LABOR CARD
PROOF OF SOCIAL SECURITY NUMBER
I797 FORM (A OR B)

RENEWALS

SAME AS ABOVE
COPY FRONT AND BACK OF
OLD DBIDS
PROOF OF SSN NOT NEEDED

ADD-ONS

COPY OF IDENTIFIER (ID
OR PASSPORT)
COPY FRONT AND BACK
OF OLD DBIDS

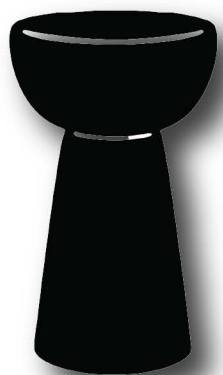
**IF DBIDS CREDENTIAL IS MISPLACED, LOST, ETC.
PLEASE PROVIDE A MEMORANDUM FROM THE
COMPANY.**

*****TO TAKE INTO CONSIDERATION*****

IF YOU DO NOT HAVE YOUR SSN CARD THESE DOCUMENTS CAN SERVE AS PROOF OF SSN:

W-WAGE/TAX STATEMENTS, SSA-99 FORMS, DD-214 FORM, AND PAY STUBS IF THEY SHOW ALL OF SSN.

IF UNSURE OF WHAT INFORMATION CAN BE USED, REFER TO PAGE 3 OF SECNAV FORM 5512/1



CAMP BLAZ VCC

HOURS OF OPERATION

MON: 0600-1500

TUE: 0600-1300

WEN: 0600-1500

THU: 0600-1300

FRI: 0600-1500

WALK-INS STOP BEING SERVED AT 14:30

Section 00 22 00 - Supplementary Instructions

DOCUMENT 00 22 00

EVALUATION FACTORS FOR AWARD

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(A) Construction Experience Data Sheet

(B) Past Performance Questionnaire

PART I. GENERAL

1.1 INTENT TO AWARD WITHOUT DISCUSSIONS

The Government intends to select the lowest reasonably priced technically acceptable offer and award a contract (within the funds available) without conducting discussions.

Only the three (3) lowest-priced proposals will be evaluated for fair and reasonable pricing and technical acceptability. If none of the three (3) lowest-priced proposals are found to be technically acceptable, then the next three (3) lowest-priced proposals will be evaluated for fair and reasonable pricing and technical acceptability. If none of the six (6) lowest priced proposals are found to be technically acceptable, then all remaining proposals will be evaluated for fair and reasonable pricing and technical acceptability.

The Government intends to select the lowest reasonably priced technically acceptable offer and award a contract (within the funds available) without conducting discussions.

1.2 COMPETITIVE RANGE

The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. If the Contracting Officer determines discussions are necessary, the Contracting Officer may conduct discussions with Offerors determined to be in the competitive range. The Government may limit the number of proposals in the competitive range to the most highly rated. If the Contracting Officer determines the number of proposals in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

1.3 ENFORCEABILITY OF PROPOSAL

The proposal must set forth full, accurate and complete information as required by this solicitation. The Government will rely on such information in the award of a contract. The awardee's proposal will be incorporated into the contract and all items proposed will become binding requirements of the contract. By submission of the offer, the Offeror agrees that all items proposed (e.g., subcontractors with teaming agreements, etc.) will be utilized for the duration of the contract and any substitutions must be equal or better and will require prior approval by the Contracting Officer.

PART II. EVALUATION FACTORS / RATING SCHEME

2.1 EVALUATION CRITERIA AND BASIS OF AWARD

The contract resulting from this solicitation will be awarded to that responsible Offeror whose offer, conforming to the solicitation, is determined to be the lowest evaluated price of proposals (within the funds available) meeting the acceptability standards for the technical evaluation factors. An overall technical factor rating must be at least "ACCEPTABLE" in order to be considered for award. An "UNACCEPTABLE" rating in any factor will result in the overall technical proposal being rated "UNACCEPTABLE" unless corrected through discussions. An overall technical rating of "UNACCEPTABLE" will make a proposal ineligible for award.

2.2 PRICE EVALUATION

- a. One or more of the following techniques may be used to evaluate the total evaluated price to ensure that it is fair and reasonable:

- Comparison of proposed prices received in response to the solicitation
- Comparison of proposed prices with the Independent Government Estimate

2.3 TECHNICAL EVALUATION FACTORS

The following evaluation factors shall be used to evaluate the technical proposals.

FACTOR 1:	EXPERIENCE
FACTOR 2:	PAST PERFORMANCE
FACTOR 3:	SAFETY

FACTOR 1 - EXPERIENCE:

(a) Solicitation Submittal Requirements:

The Offeror shall complete the attached Construction Experience Project Data Sheet (Attachment A) for each project submitted and complete all individual blocks. Attachment A and all information therein is MANDATORY and SHALL be used to evaluate experience. The Government will evaluate only the information provided in Attachment A and all other information provided on other than Attachment A will not be considered. The Offeror may expand individual blocks on the Attachment A; however, Attachment A for each project submitted shall not exceed a total of four (4) single-sided pages [or, two (2) double-sided pages], 8.5" x 11", 1" margin left/right/top/bottom, and 10-point font or larger. Information exceeding the four (4) single-sided pages [or two (2) double-sided pages] will not be evaluated. For all submitted projects, the description of the project shall clearly describe the scope of work performed and the relevancy to the project requirements of this RFP.

Submit a **maximum** of three (3) construction projects that best demonstrates the Offeror's experience that are similar in size, scope, and complexity to the types of projects described below. If the Offeror submits more than three (3) projects for evaluation, the Government will evaluate the first three (3) projects submitted and disregard any other project information after the first three (3).

RELEVANT CONSTRUCTION PROJECT: For purposes of this evaluation, a relevant construction project is defined as new construction of a multi-story administrative, office, training, or communications facility consisting of cast-in-place reinforced concrete building structure of approximately \$30 million or more in dollar value and completed or substantially completed no earlier than ten (10) years from the date of issuance of this solicitation. Building repair, renovation, conversion, and addition work will not be considered as a relevant project.

NOTES:

1. "Substantially completed" is defined as at least 90% physical completion.
2. A relevant construction project is further defined as a construction project performed under a single task order or contract. For multiple award and indefinite delivery/indefinite quantity type contracts, the contract as a whole shall not be submitted as a project; rather Offerors shall submit the work performed under a task order as a project.
3. There is a clear distinction between "experience" and "past performance". Experience is related to the types and amounts of projects previously accomplished. Past performance relates to how well a contractor has performed.

4. The "Offeror" is defined as the exact name in Block 14 of the Solicitation, Offer and Award (SF1442). If the Offeror is utilizing experience and past performance information of **any entity other than (1) the Offeror; (2) if the Offeror is a joint venture, its joint venture partners jointly and severally liable for the contract; or (3) a firm that has been acquired by the Offeror and is now part of the Offeror**, the Offeror shall provide in its proposal a fully-executed teaming agreement or other contractual agreement. The teaming agreement or other contractual agreement shall, at a minimum, (1) be signed by the Offeror and the other entity, (2) specifically reference this solicitation/contract, and (3) specify the work to be performed by the other entity such that it is clear that the other entity will be meaningfully involved in this contract. For item (3), clearly state the specific commitments of resources of the other entity in terms of the work it will specifically perform or manage in the performance of the contract at the worksite. Note that generalized statements concerning commitment of resources are not sufficient to demonstrate that an entity will be meaningfully involved in the performance of the contract. Examples of "generalized statements" include a commitment of resources merely based on an entity's "access" to resources and other generalized statements such as an entity will "provide support and expertise on the project." The government will only consider information provided in the teaming agreement for the purpose of determining whether the Offeror has clearly demonstrated that any entity (other than the Offeror and, if the offeror is a joint venture, its joint venture partners jointly and severally liable for the contract) will have meaningful involvement in the performance of the contract. For experience and past performance information of a firm that has been acquired and is no longer a separate legal entity, provide an explanation of the acquisition sufficient to demonstrate 1) that the predecessor firm is now part of the entity identified in Block 1 of Attachment A, and 2) that entity currently possesses assets and personnel from the predecessor firm sufficient for the predecessor firm's experience and past performance to be reasonably predictive of the entity's performance on this contract.

(b) Basis of Evaluation:

The basis of evaluation and acceptability include the Offeror's demonstrated experience in performing a minimum of one (1) relevant construction project as defined in the Solicitation Submittal Requirements.

FACTOR 2 - PAST PERFORMANCE:

(a) Solicitation Submittal Requirements:

If a completed Contractor Performance Assessment Reporting System (CPARS) or Construction Contractor Appraisal Support System (CCASS) evaluation is available, it shall be submitted with the proposal for each project included in Factor 1. If a completed CPARS or CCASS evaluation is not available, then submit Past Performance Questionnaires (Attachment B) for each project included in Factor 1. Past Performance Questionnaire (PPQ) shall be completed and signed by the contracting agent and/or their representative responsible for the construction contract administration. A PPQ shall not be from a prime contractor to a subcontractor. The Offeror shall provide completed PPQs in the proposal. Offerors may submit PPQs previously submitted for other solicitations.

Offerors may provide any information on problems encountered and the corrective actions taken on projects submitted under Factor 1. Offerors may also address any adverse past performance issues. Explanations shall not exceed two (2) double-sided pages (or four (4) single-sided pages) in total.

NOTES:

1. The Government reserves the right to contact references for verification or additional information. The Government's inability to contact any of the Offeror's references or the references unwillingness to provide the information requested may affect the Government's evaluation of this factor. In addition, the Government reserves the right to obtain information for use in the evaluation of past performance from any and all sources including sources outside of the Government. Other sources may include, but are not limited to, past performance information retrieved through the CPARS using all UEI/CAGE numbers of Contractors who are part of a partnership or joint venture identified in the Offeror's proposal, inquiries of owner representative(s), Federal Awardee Performance and Integrity Information System (FAPIIS), Electronic Subcontract Reporting System (eSRS), and any other known sources not provided by the Offeror.

2. Performance awards, letter of appreciation, certificates, or additional information submitted will not be considered.

3. See Notes for Factor 1.

(b) Basis of Evaluation:

The Offeror's past performance will be evaluated on how well the Offeror performed on the relevant projects submitted under Factor 1 - Experience and past performance on other relevant construction projects currently documented in known sources. In addition to the above, the Government may consider information in the Offeror's proposal as well as information gathered from other sources including former customers, Government agencies, Federal databases and other references. The information provided by the Offeror may provide the major portion of the information used in the Government's evaluation for past performance. The Government however, is not restricted to the information provided by the Offeror and may use other sources (such as those listed in the submittal requirements) to assess past performance information.

The Government will consider the currency and relevance of the information, the source of the information, and the context of the data in the Offeror's performance. This evaluation is separate and distinct from the Contracting Officer's responsibility determination. The assessment of the Offeror's past performance will be used as a means of evaluating the Offeror's probability to successfully meet the requirements of the RFP.

Offerors lacking relevant past performance history will not be evaluated favorably or unfavorably in past performance. The Offeror shall be determined to have unknown past performance. In the context of acceptability/unacceptability, unknown past performance shall be considered "acceptable".

The basis of evaluation will consider the Offeror's performance record that demonstrates the Offeror's ability to successfully perform the required effort or the Offeror's performance record is unknown or neutral. See also paragraph 2.4 below.

Factor 3 - Safety

(a) Solicitation Submittal Requirements:

The Offeror shall submit the following information: The Days Away from Work, Restricted Duty, or Job Transfer (DART) Rates and Total Case Rates (TCR) for the specified five (5) Calendar Years (CY), as well as a safety narrative, as described below. For a partnership, joint venture, and LLC the Offeror shall submit separate DART rates and TCR rates for the specified five (5) CY for each contractor who is part of the partnership/joint venture/LLC; however, only one safety narrative is required. Offerors must provide an explanation for any rates higher than 2.99 (DART) and/or 4.49 (TCR) and the actions taken to prevent future occurrences. Any fatalities experienced within this 5-year timeframe must be explained in detail, to include root cause and corrective actions.

NOTES:

1. If Offeror does not have OSHA DART or TCR rates, they must submit equivalent DART and TCR rates by utilizing the OSHA formulas shown below.
2. DART and TCR shall not be submitted for subcontractors.

MISHAP RATES

1. DART Rate: Submit five (5) previous, complete calendar years' [2025, 2024, 2023, 2022, and 2021] worth of data (not an overall average). If the Offeror has no DART rate, for any year, affirmatively state so and explain why.

a. DART cases include injuries or illnesses resulting in death, days away from work, and/or restricted work or transfer to another job days beyond the day of injury/illness.

b. Calculation of DART rate: Multiply the total number of DART cases by 200,000, and then divide by the number of employee labor hours worked.

$$\text{DART RATE} = \frac{\text{Number of DART Cases} \times 200,000}{\text{Total Number of Employee Labor Hours Worked}}$$

2. TCR Rate: Submit five (5) previous, complete calendar years' [2025, 2024, 2023, 2022, and 2021] worth of data (not an overall average). If the Offeror has no TCR rate, for any year, affirmatively state so and explain why.

a. TCR incidents include injuries or illnesses resulting in death, days away from work, restricted work or transfer to another job days beyond the day of injury/illness, medical treatment beyond first aid, or loss of consciousness.

b. Calculation of TCR rate: Multiply the total number of TCR incidents by 200,000, and then divide by the number of employee labor hours worked.

$$\text{TCR RATE} = \frac{\text{Number of TCR Incidents} \times 200,000}{\text{Total Number of Employee Labor Hours Worked}}$$

TECHNICAL APPROACH NARRATIVE

3. Technical Approach to Safety: Submit a narrative that addresses the following:

a. Describe the Offeror's approach to implementing and executing a Safety Management System (SMS) including Management/Leadership involvement, Employee involvement, Hazard prevention, Hazard control, Worksite analysis, and Safety and health training, to include the standard(s) used to benchmark the SMS.

b. Describe a methodical process of evaluating subcontractor's safety performance in their selection process.

c. Describe a logical management plan to hold themselves and their subcontractors accountable for adhering to the safety requirements of the contract.

4. There is no page limitation to address the Mishap Rates section above. The narrative to address the Technical Approach to Safety above shall not exceed two (2) pages, single-sided, 8.5" x 11", 1" margin left/right/top/bottom, and 10-point font or larger. Narrative pages shall contain the page number.

5. The Government reserves the right to review other available sources (public/Government internal) of information. These may include but are not limited to OSHA data, NAVFAC's Contractor Incident Reporting System (CIRS), Contractor Performance Assessment Reporting System (CPARS), Electronic Contract Management System (eCMS), etc.

(b) Basis of Evaluation:

The Government is seeking to determine that the Offeror has consistently demonstrated a commitment to safety and that the Offeror plans to properly manage and implement safety procedures for itself and its subcontractors. To meet the minimum requirements, the Offeror must demonstrate the following:

1. DART rates at or below 2.99

2. TCR Rates at or below 4.49

The basis of evaluation and acceptability are DART rates of 2.99 or less for five previous calendar years (2025, 2024, 2023, 2022, and 2021); TCR rates of 4.49 or less for the five previous calendar years (2025, 2024, 2023, 2022, and 2021); and an acceptable Technical Approach to Safety as defined in the Solicitation Submittal Requirements for Factor 3 and Paragraph 2.4 below.

NOTE: If the Offeror's rates exceed 2.99 (DART) and/or 4.49 (TCR) for any of the five calendar years, or the Offeror fails to provide acceptable explanations for any rates that exceed these levels and the action(s) taken to correct or prevent any safety issues, this will result in a deficiency.

2.4 RATING SCHEME

The following information is pertinent to the rating of the technical proposals:

(a) Deficiency: A material failure of the proposal to meet a Government requirement.

(b) If the proposal contains an "UNACCEPTABLE" rating for any of the Factors, the overall rating of the technical proposal will be "UNACCEPTABLE". An overall technical rating of "UNACCEPTABLE" makes a proposal ineligible for award.

FACTOR 1 - EXPERIENCE AND FACTOR 3 - SAFETY

ACCEPTABLE	Proposal meets the requirements of the solicitation.
UNACCEPTABLE	Proposal does not meet the requirements of the solicitation.

FACTOR 2 - PAST PERFORMANCE

A C C E P T A B L E	Based on the Offeror's performance record, the Government has a reasonable expectation that the Offeror will successfully perform the required effort, or the Offeror's performance record is unknown. Note: In the case of an Offeror without a record of relevant past performance or for whom information on past performance is not available or so sparse that no meaningful past performance rating can be reasonably assigned, the Offeror may not be evaluated favorably or unfavorably on past performance (see FAR 15.305(a)(2)(iv)). Therefore, the Offeror shall be determined to have unknown or neutral past performance. In the context of acceptability/unacceptability neutral shall be considered "acceptable."
U N A C C E P T A B L E	Based on the Offeror's performance record, the Government does not have a reasonable expectation that the Offeror will be able to successfully perform the required effort.

CONSTRUCTION EXPERIENCE PROJECT DATA SHEET

7. Construction Project:

Total Construction Award Amount: \$ _____ **Final Construction Price:** \$ _____

Type of Contract/Task Order: (Check ALL that apply)

☐ Design-Build ☐ Design-Bid-Build ☐ Delivery/Task Order (IDIQ) ☐ Other (explain):

8. Construction Project Details: Offerors shall complete the following information for each relevant individual feature: (For each item checked, provide a detailed description of the work in Block 9).

- Number of stories in facility: _____
 - Type of facility: ☐ Administrative ☐ Office ☐ Training ☐ Communications
☐ Other (explain): _____
- Cast-in-place reinforced concrete building structure? ☐ Yes ☐ No

9. Provide a detailed description of the project and the relevancy to the project requirements of this RFP. (e.g.: unique features, square footage, construction methods, any problems encountered and how it was resolved).

ATTACHMENT B

NAVFAC/USACE PAST PERFORMANCE QUESTIONNAIRE (Form PPQ-0)

CONTRACT INFORMATION (Contractor to complete Blocks 1-4)

1. Contractor Information

Firm Name:

CAGE Code:

Address:

SAM UEI:

Phone Number:

Email Address:

Point of Contact:

Contact Phone Number:

2. Work Performed as: ☐ Prime Contractor ☐ Sub Contractor ☐ Joint Venture ☐ Other (Explain)

Percent of project work performed:

If subcontractor, who was the prime (Name/Phone #):

3. Contract Information

Contract Number:

Delivery/Task Order Number (if applicable):

Contract Type: ☐ Firm Fixed Price ☐ Cost Reimbursement ☐ Other (Please specify):

Contract Title:

Contract Location:

Award Date (mm/dd/yy):

Contract Completion Date (mm/dd/yy):

Actual Completion Date (mm/dd/yy):

Explain Differences:

Original Contract Price (Award Amount):

Final Contract Price (to include all modifications, if applicable):

Explain Differences:

4. Project Description:

Complexity of Work ☐ High ☐ Med ☐ Routine

How is this project relevant to project of submission? (Please provide details such as similar equipment, requirements, conditions, etc.)

CLIENT INFORMATION (Client to complete Blocks 5-8)

5. Client Information

Name:

Title:

Phone Number:

Email Address:

6. Describe the client's role in the project:

7. Date Questionnaire was completed (mm/dd/yy):

8. Client's Signature:

NOTE: NAVFAC PACIFIC (ACQ33) REQUESTS THAT THE CLIENT COMPLETES THIS QUESTIONNAIRE AND SUBMITS DIRECTLY BACK TO THE OFFEROR. THE OFFEROR WILL SUBMIT THE COMPLETED QUESTIONNAIRE TO NAVFAC PACIFIC (ACQ33) WITH THEIR PROPOSAL, AND MAY DUPLICATE THIS QUESTIONNAIRE FOR FUTURE SUBMISSION ON NAVFAC PACIFIC SOLICITATIONS. CLIENTS ARE HIGHLY ENCOURAGED TO SUBMIT QUESTIONNAIRES DIRECTLY TO THE OFFEROR. HOWEVER, QUESTIONNAIRES MAY BE SUBMITTED DIRECTLY TO NAVFAC PACIFIC (ACQ33). PLEASE CONTACT THE OFFEROR FOR NAVFAC PACIFIC (ACQ33) POC INFORMATION. THE GOVERNMENT RESERVES THE RIGHT TO VERIFY ANY AND ALL INFORMATION ON THIS FORM.

<i>ADJECTIVE RATINGS AND DEFINITIONS TO BE USED TO BEST REFLECT YOUR EVALUATION OF THE CONTRACTOR'S PERFORMANCE</i>		
(E) Exceptional	Performance meets contractual requirements and exceeds many to the Government/Owner's benefit. The contractual performance of the element or sub-element being assessed was accomplished with few minor problems for which corrective actions taken by the contractor was highly effective.	An Exceptional rating is appropriate when the Contractor successfully performed multiple significant events that were of benefit to the Government/Owner. A singular benefit, however, could be of such magnitude that it alone constitutes an Exceptional rating. Also, there should have been NO significant weaknesses identified.
(VG) Very Good	Performance meets contractual requirements and exceeds some to the Government's/Owner's benefit. The contractual performance of the element or sub-element being assessed was accomplished with some minor problems for which corrective actions taken by the contractor were effective.	A Very Good rating is appropriate when the Contractor successfully performed a significant event that was a benefit to the Government/Owner. There should have been no significant weaknesses identified.
(S) Satisfactory	Performance meets minimum contractual requirements. The contractual performance of the element or sub-element contains some minor problems for which corrective actions taken by the contractor appear or were satisfactory.	A Satisfactory rating is appropriate when there were only minor problems, or major problems that the contractor recovered from without impact to the contract. There should have been NO significant weaknesses identified. Per DOD policy, a fundamental principle of assigning ratings is that contractors will not be assessed a rating lower than Satisfactory solely for not performing beyond the requirements of the contract.
(M) Marginal	Performance does not meet some contractual requirements. The contractual performance of the element or sub-element being assessed reflects a serious problem for which the contractor has not yet identified corrective actions. The contractor's proposed actions appear only marginally effective or were not fully implemented.	A Marginal is appropriate when a significant event occurred that the contractor had trouble overcoming which impacted the Government/Owner.
(U) Unsatisfactory	Performance does not meet most contractual requirements and recovery is not likely in a timely manner. The contractual performance of the element or sub-element contains serious problem(s) for which the contractor's corrective actions appear or were ineffective.	An Unsatisfactory rating is appropriate when multiple significant events occurred that the contractor had trouble overcoming and which impacted the Government/Owner. A singular problem, however, could be of such serious magnitude that it alone constitutes an unsatisfactory rating.
(N) Not Applicable	No information or did not apply to your contract	Rating will be neither positive nor negative.

Contractor Information (Firm Name): _____

Client Information (Name): _____

TO BE COMPLETED BY CLIENT

PLEASE CIRCLE THE ADJECTIVE RATING WHICH BEST REFLECTS YOUR EVALUATION OF THE						
1. QUALITY:						
a) Quality of technical data/report preparation efforts	E	VG	S	M	U	N
b) Ability to meet quality standards specified for technical performance	E	VG	S	M	U	N
c) Timeliness/effectiveness of contract problem resolution without extensive customer guidance	E	VG	S	M	U	N
d) Adequacy/effectiveness of quality control program and adherence to contract quality assurance requirements (without adverse effect on performance)	E	VG	S	M	U	N
2. SCHEDULE/TIMELINESS OF PERFORMANCE:						
a) Compliance with contract delivery/completion schedules including any significant intermediate milestones. <i>(If liquidated damages were assessed or the schedule was not met, please address below)</i>	E	VG	S	M	U	N
b) Rate the contractor's use of available resources to accomplish tasks identified in the contract	E	VG	S	M	U	N
3. CUSTOMER SATISFACTION:						
a) To what extent were the end users satisfied with the project?	E	VG	S	M	U	N
b) Contractor was reasonable and cooperative in dealing with your staff (including the ability to successfully resolve disagreements/disputes; responsiveness to administrative reports, businesslike and communication)	E	VG	S	M	U	N
c) To what extent was the contractor cooperative, businesslike, and concerned with the interests of the customer?	E	VG	S	M	U	N
d) Overall customer satisfaction	E	VG	S	M	U	N
4. MANAGEMENT/ PERSONNEL/LABOR						
a) Effectiveness of on-site management, including management of subcontractors, suppliers, materials, and/or labor force?	E	VG	S	M	U	N
b) Ability to hire, apply, and retain a qualified workforce to this effort	E	VG	S	M	U	N
c) Government Property Control	E	VG	S	M	U	N
d) Knowledge/expertise demonstrated by contractor personnel	E	VG	S	M	U	N
e) Utilization of Small Business concerns	E	VG	S	M	U	N
f) Ability to simultaneously manage multiple projects with multiple disciplines	E	VG	S	M	U	N
g) Ability to assimilate and incorporate changes in requirements and/or priority, including planning, execution and response to Government changes	E	VG	S	M	U	N
h) Effectiveness of overall management (including ability to effectively lead, manage and control the program)	E	VG	S	M	U	N

5. COST/FINANCIAL MANAGEMENT						
a) Ability to meet the terms and conditions within the contractually agreed price(s)?	E	VG	S	M	U	N
b) Contractor proposed innovative alternative methods/processes that reduced cost, improved maintainability or other factors that benefited the client	E	VG	S	M	U	N
c) If this is/was a Government cost type contract, please rate the Contractor's timeliness and accuracy in submitting monthly invoices with appropriate back-up documentation, monthly status reports/budget variance reports, compliance with established budgets and avoidance of significant and/or unexplained variances (under runs or overruns)	E	VG	S	M	U	N
d) Is the Contractor's accounting system adequate for management and tracking of costs? <i>If no, please explain in Remarks section.</i>	Yes			No		
e) If this is/was a Government contract, has/was this contract been partially or completely terminated for default or convenience or are there any pending terminations? <i>Indicate if show cause or cure notices were issued, or any default action in comment section below.</i>	Yes			No		
f) Have there been any indications that the contractor has had any financial problems? <i>If yes, please explain below.</i>	Yes			No		
6. SAFETY/SECURITY						
a) To what extent was the contractor able to maintain an environment of safety, adhere to its approved safety plan, and respond to safety issues? (Includes: following the users rules, regulations, and requirements regarding housekeeping, safety, correction of noted deficiencies, etc.)	E	VG	S	M	U	N
b) Contractor complied with all security requirements for the project and personnel security requirements.	E	VG	S	M	U	N
7. GENERAL						
a) Ability to successfully respond to emergency and/or surge situations (including notifying COR, PM or Contracting Officer in a timely manner regarding urgent contractual issues).	E	VG	S	M	U	N
b) Compliance with contractual terms/provisions (<i>explain if specific issues</i>)	E	VG	S	M	U	N
c) Would you hire or work with this firm again? (<i>If no, please explain below</i>)	Yes			No		
d) In summary, provide an overall rating for the work performed by this contractor.	E	VG	S	M	U	N

Please provide responses to the questions above (if applicable) and/or additional remarks. Furthermore, please provide a brief narrative addressing specific strengths, weaknesses, deficiencies, or other comments which may assist our office in evaluating performance risk (please attach additional pages if necessary):

Section 00 45 00 - Representations and Certifications**Request for Proposal No.:** RFP N62742-26-R-1306

Name and Address of Offeror: _____

Business Phone: () _____**Facsimile Phone:** () _____**CEC/UEI Number:** _____**TIN NUMBER:** _____**CAGE Number:** _____**Email Address:** _____**SUMMARY**

The following clauses are from the Federal Acquisition Regulations (FAR) and Department of Defense Federal Acquisition Regulation Supplement (DFARS). Complete the paragraphs below, and return with the proposal.

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7009	Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information.	Jan 2023		

FAR Clauses Incorporated by Full Text

52.203-11 Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. (Sep 2024)

CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS (SEP 2024)

(a) *Definitions.* As used in this provision-"Lobbying contact" has the meaning provided at 2 U.S.C. 1602(8). The terms "agency," "influencing or attempting to influence," "officer or employee of an agency," "person," "reasonable compensation," and "regularly employed" are defined in the FAR clause of this solicitation entitled "Limitation on Payments to Influence Certain Federal Transactions" (52.203-12).

(b) *Prohibition.* The prohibition and exceptions contained in the FAR clause of this solicitation entitled "Limitation on Payments to Influence Certain Federal Transactions" (52.203-12) are hereby incorporated by reference in this provision.

(c) *Certification.* The offeror, by signing its offer, hereby certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress on its behalf in connection with the awarding of this contract.

(d) *Disclosure.* If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(e) *Penalty.* Submission of this certification and disclosure is a prerequisite for making or entering into this contract imposed by 31 U.S.C. 1352. Any person who makes an expenditure prohibited under this provision or who fails to file or amend the disclosure required to be filed or amended by this provision, shall be subject to civil penalties as provided in 31 U.S.C. 1352. An imposition of a civil penalty does not prevent the Government from seeking any other remedy that may be applicable.

(End of provision)

52.209-7 Information Regarding Responsibility Matters. (Deviation 2026-O0038)

(Feb 2026)

INFORMATION REGARDING RESPONSIBILITY MATTERS (FEB 2026) (DEVIATION 2026-O0038)

(a) *Definitions.* As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means-

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
- (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in-

- (A) The payment of a monetary fine or penalty of \$5,000 or more; or
- (B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.209-13 Violation of Arms Control Treaties or Agreements-Certification. (Deviation 2026-O0038) (Feb 2026)

VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS-CERTIFICATION (FEB 2026) (DEVIATION 2026-O0038)

(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined in Federal Acquisition Regulation 2.101.

(b) *Certification.* [Offeror shall check either (1) or (2).]

☐ (1) The Offeror certifies that-

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of

the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; or

☐ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If such activity might have occurred, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

- (i) An inability to certify compliance.
- (ii) An inability to conclude compliance.
- (iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless-

- (1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or
- (2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has
 - (i) Waived application under 22 U.S.C. 2593e(d) or (e); or
 - (ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C. 2593e(b).

(e) *Remedies.* The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

52.222-56 Certification Regarding Trafficking in Persons Compliance Plan. (Deviation 2026-O0038) (Feb 2026)

CERTIFICATION REGARDING TRAFFICKING IN PERSONS COMPLIANCE PLAN (FEB 2026) (DEVIATION 2026-O0038)

(a) The term "commercially available off-the-shelf (COTS) item," is defined in the clause of this solicitation entitled "Combating Trafficking in Persons" (FAR clause 52.222-50).

(b) The apparent successful Offeror must submit, prior to award, a certification, as specified in paragraph (c) of this provision, for the portion (if any) of the contract that-

(1) Is for supplies, other than commercially available off-the-shelf items, to be acquired outside the United States, or services to be performed outside the United States; and

(2) Has an estimated value that exceeds \$700,000.

(c) The certification must state that-

(1) It has implemented a compliance plan to prevent any prohibited activities identified in paragraph (b) of the clause at 52.222-50, Combating Trafficking in Persons, and to monitor, detect, and terminate the contract with a subcontractor engaging in prohibited activities identified at paragraph (b) of the clause at 52.222-50, Combating Trafficking in Persons; and

(2) After having conducted due diligence, either-

(i) To the best of the Offeror's knowledge and belief, neither it nor any of its proposed agents, subcontractors, or their agents is engaged in any such activities; or

(ii) If abuses relating to any of the prohibited activities identified in 52.222-50(b) have been found, the Offeror or proposed subcontractor has taken the appropriate remedial and referral actions.

(End of provision)

52.229-11 Tax on Certain Foreign Procurements-Notice and Representation.

(Jun 2020)

TAX ON CERTAIN FOREIGN PROCUREMENTS-NOTICE AND REPRESENTATION (JUN 2020)

(a) *Definitions.* As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [*Offeror must select one*] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.203-7005 Representation Relating to Compensation of Former DoD Officials.

(Sep 2022)

REPRESENTATION RELATING TO COMPENSATION OF FORMER DOD OFFICIALS (SEP 2022)

(a) *Definition.* "Covered DoD official" is defined in the clause at 252.203-7000, Requirements Relating to Compensation of Former DoD Officials.

(b) By submission of this offer, the Offeror represents, to the best of its knowledge and belief, that all covered DoD officials employed by or otherwise receiving compensation from the Offeror, and who are expected to undertake activities on behalf of the Offeror for any resulting contract, are presently in compliance with all applicable post-employment restrictions, including those contained in 18 U.S.C. 207, 41 U.S.C. 2101-2107, 5 CFR part 2641, section 1045 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91), and Federal Acquisition Regulation 3.104-2.

(End of provision)

252.204-7008 Compliance with Safeguarding Covered Defense Information Controls.

(Oct 2016)

COMPLIANCE WITH SAFEGUARDING COVERED DEFENSE INFORMATION CONTROLS (OCT 2016)

(a) *Definitions.* As used in this provision-

"Controlled technical information," "covered contractor information system," "covered defense information," "cyber incident," "information system," and "technical information" are defined in clause 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting.

(b) The security requirements required by contract clause 252.204-7012, shall be implemented for all covered defense information on all covered contractor information systems that support the performance of this contract.

(c) For covered contractor information systems that are not part of an information technology service or system operated on behalf of the Government (see 252.204-7012(b)(2)-

(1) By submission of this offer, the Offeror represents that it will implement the security requirements specified by National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171 "Protecting Controlled Unclassified Information in Nonfederal Information Systems and Organizations" (see <http://dx.doi.org/10.6028/NIST.SP.800-171>) that are in effect at the time the solicitation is issued or as authorized by the contracting officer not later than December 31, 2017.

(2)(i) If the Offeror proposes to vary from any of the security requirements specified by NIST SP 800-171 that are in effect at the time the solicitation is issued or as authorized by the Contracting Officer, the Offeror shall submit to the Contracting Officer, for consideration by the DoD Chief Information Officer (CIO), a written explanation of-

(A) Why a particular security requirement is not applicable; or

(B) How an alternative but equally effective, security measure is used to compensate for the inability to satisfy a particular requirement and achieve equivalent protection.

(ii) An authorized representative of the DoD CIO will adjudicate offeror requests to vary from NIST SP 800-171 requirements in writing prior to contract award. Any accepted variance from NIST SP 800-171 shall be incorporated into the resulting contract.

(End of provision)

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.225-7055 Representation Regarding Business Operations with the Maduro Regime. (May 2022)

REPRESENTATION REGARDING BUSINESS OPERATIONS WITH THE MADURO REGIME (MAY 2022)

(a) *Definitions.* As used in this provision-

"Agency or instrumentality of the government of Venezuela," "business operations," "government of Venezuela," and "person" have the meaning given in the clause 252.225-7056, Prohibition Regarding Business Operations with the Maduro Regime, of this solicitation.

(b) *Prohibition.* In accordance with section 890 of the National Defense Authorization Act for Fiscal Year 2020 (Pub. L. 116-92), DoD is prohibited from entering into a contract for the procurement of products or services with any person that has business operations with an authority of the government of Venezuela that is not recognized as the legitimate government of Venezuela by the U.S. Government, unless the person has a valid license to operate in Venezuela issued by the Office of Foreign Assets Control of the Department of the Treasury.

(c) *Representation.* By submission of its offer, the Offeror represents that the Offeror is a person that-

(1) Does not have any business operations with an authority of the Maduro regime or the government of Venezuela that is not recognized as the legitimate government of Venezuela by the U.S. Government; or

(2) Has a valid license to operate in Venezuela issued by the Office of Foreign Assets Control of the Department of the Treasury.

(End of provision)

252.225-7057 Preaward Disclosure of Employment of Individuals Who Work in the People's Republic of China. (Aug 2022)

PREAWARD DISCLOSURE OF EMPLOYMENT OF INDIVIDUALS WHO WORK IN THE PEOPLE'S REPUBLIC OF CHINA (AUG 2022)

(a) *Definitions.* As used in this provision-

"Covered contract" and "covered entity" have the meaning given in the clause 252.225-7058, Postaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.

(b) *Prohibition on award.* In accordance with section 855 of the National Defense Authorization Act for Fiscal Year 2022 (Pub. L. 117-81, 10 U.S.C. 4651 note prec.), DoD may not award a contract to the Offeror if it is a covered entity and proposes to employ one or more individuals who will perform work in the People's Republic of China on a covered contract, unless the Offeror has disclosed its use of workforce and facilities in the People's Republic of China.

(c) *Preaward disclosure requirement.* At the time of submission of an offer for a covered contract, an Offeror that is a covered entity shall provide disclosures to include-

(1) The proposed use of workforce on a covered contract or subcontract, if the Offeror employs one or more individuals who perform work in the People's Republic of China;

(2) The total number of such individuals who will perform work in the People's Republic of China; and

(3) A description of the physical presence, including street address or addresses, in the People's Republic of China, where work on the covered contract will be performed.

(End of provision)

252.225-7059 Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation. (Jun 2023)

PROHIBITION ON CERTAIN PROCUREMENTS FROM THE XINJIANG UYGHUR AUTONOMOUS REGION-REPRESENTATION (JUN 2023)

(a) *Definitions.* "Forced labor" and "XUAR", as used in this provision, have the meaning given in the 252.225-7060, Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region, clause of this solicitation.

(b) *Prohibition.* DoD may not knowingly procure any products mined, produced, or manufactured wholly or in part by forced labor from XUAR or from an entity that has used labor from within or transferred from XUAR as part of any forced labor programs, as specified in paragraph (b) of the 252.225-7060, Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region, clause of this solicitation.

(c) *Representation.* By submission of its offer, the Offeror represents that it has made a good faith effort to determine that forced labor from XUAR will not be used in the performance of a contract resulting from this solicitation.

(End of provision)

Section 00 70 00 - Conditions of the Contract**Overall Contract Delivery Period**

From date of lead time event to beginning of performance

15 Calendar Days

Date of Notice to Proceed Receipt

From date of lead time event to completion of performance

1157 Calendar Days

Date of Notice to Proceed Receipt

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-3	Gratuities.	Apr 1984		
52.203-5	Covenant Against Contingent Fees.	May 2014		
52.203-6	Restrictions on Subcontractor Sales to the Government.	Jun 2020		
52.203-7	Anti-Kickback Procedures.	Jun 2020		
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.	May 2014		
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity.	May 2014		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.203-13	Contractor Code of Business Ethics and Conduct.	Nov 2021		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan 2011		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards. (Deviation 2026-O0038)	Feb 2026		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	Feb 2026		
52.208-90	Government Supply Sources. (Deviation 2026-O0038)	Feb 2026		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038)	Feb 2026		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters. (Deviation 2026-O0038)	Feb 2026		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	Feb 2026		
52.210-1	Market Research. (Deviation 2026-O0038)	Feb 2026		
52.211-13	Time Extensions.	Sep 2000		
52.211-15	Defense Priority and Allocation Requirements.	Apr 2008		
52.215-2	Audit and Records-Negotiation. (Deviation 2026-O0038)	Feb 2026		
52.215-10	Price Reduction for Defective Certified Cost or Pricing Data.	Aug 2011		
52.215-11	Price Reduction for Defective Certified Cost or Pricing Data-Modifications. (Deviation 2026-O0038)	Feb 2026		
52.215-12	Subcontractor Certified Cost or Pricing Data. (Deviation 2026-O0038)	Feb 2026		
52.215-13	Subcontractor Certified Cost or Pricing Data-Modifications. (Deviation 2026-O0038)	Feb 2026		
52.215-15	Pension Adjustments and Asset Reversions. (Deviation 2026-O0038)	Feb 2026		
52.215-18	Reversion or Adjustment of Plans for Postretirement Benefits (PRB) Other Than Pensions. (Deviation 2026-O0038)	Feb 2026		
52.215-19	Notification of Ownership Changes. (Deviation 2026-O0038)	Feb 2026		
52.215-21	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data-Modifications. (Deviation 2026-O0038)	Feb 2026		
52.219-8	Utilization of Small Business Concerns. (Deviation 2026-O0038)	Feb 2026		
52.219-9	Small Business Subcontracting Plan. (Deviation 2026-O0038) (Alternate II)	Feb 2026	Alternate II	Feb 2026
52.219-16	Liquidated Damages-Subcontracting Plan. (Deviation 2026-O0038)	Feb 2026		
52.222-1	Notice to the Government of Labor Disputes. (Deviation 2026-O0038)	Feb 2026		
52.222-3	Convict Labor. (Deviation 2026-O0038)	Feb 2026		
52.222-4	Contract Work Hours and Safety Standards-Overtime Compensation. (Deviation 2026-O0038)	Feb 2026		
52.222-6	Construction Wage Rate Requirements. (Deviation 2026-O0038)	Feb 2026		

52.222-7	Withholding of Funds. (Deviation 2026-O0038)	Feb 2026		
52.222-8	Payrolls and Basic Records. (Deviation 2026-O0038)	Feb 2026		
52.222-9	Apprentices and Trainees. (DEVIATION 2025-O0003)	Feb 2026	Deviation 2025-O0003	Mar 2025
52.222-10	Compliance with Copeland Act Requirements. (Deviation 2026-O0038)	Feb 2026		
52.222-11	Subcontracts (Labor Standards). (Deviation 2026-O0038)	Feb 2026		
52.222-12	Contract Termination-Debarment.	May 2014		
52.222-13	Compliance with Construction Wage Rate Requirements and Related Regulations.	May 2014		
52.222-14	Disputes Concerning Labor Standards. (Deviation 2026-O0038)	Feb 2026		
52.222-15	Certification of Eligibility.	May 2014		
52.222-35	Equal Opportunity for Veterans. (Deviation 2026-O0038)	Feb 2026		
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation 2026-O0038)	Feb 2026		
52.222-37	Employment Reports on Veterans. (Deviation 2026-O0038)	Feb 2026		
52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (Deviation 2026-O0038)	Feb 2026		
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	Feb 2026		
52.222-54	Employment Eligibility Verification. (Deviation 2026-O0038)	Feb 2026		
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026. (Deviation 2026-O0038)	Feb 2026		
52.223-2	Reporting of Biobased Products Under Service and Construction Contracts. (Deviation 2026-O0038)	Feb 2026		
52.223-5	Pollution Prevention and Right-to-Know Information.	May 2024		
52.223-23	Sustainable Products. (Deviation 2026-O0038)	Feb 2026		
52.224-1	Privacy Act Notification.	Apr 1984		
52.224-2	Privacy Act.	Apr 1984		
52.224-3	Privacy Training.	Jan 2017		
52.226-7	Drug-Free Workplace.	May 2024		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.227-1	Authorization and Consent.	Jun 2020		
52.227-2	Notice and Assistance Regarding Patent and Copyright Infringement.	Jun 2020		
52.227-4	Patent Indemnity-Construction Contracts.	Dec 2007		
52.228-2	Additional Bond Security.	Oct 1997		
52.228-4	Workers' Compensation and War-Hazard Insurance Overseas.	Apr 1984		
52.228-5	Insurance-Work on a Government Installation.	Jan 1997		
52.228-11	Pledges of Assets (DEVIATION 2020-O0016)	Feb 2021	Deviation 2020-O0016	Apr 2020
52.228-12	Prospective Subcontractor Requests for Bonds.	Dec 2022		
52.228-14	Irrevocable Letter of Credit.	Nov 2014		
52.228-15	Performance and Payment Bonds-Construction (Deviation 2020-O0016)	Jun 2020	Deviation 2020-O0016	Apr 2020
52.229-3	Federal, State, and Local Taxes.	Feb 2013		
52.229-12	Tax on Certain Foreign Procurements.	Feb 2021		
52.232-17	Interest.	May 2014		
52.232-23	Assignment of Claims.	May 2014		
52.232-27	Prompt Payment for Construction Contracts.	Jan 2017		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-1	Disputes. (Deviation 2026-O0038)	Feb 2026		
52.233-3	Protest after Award. (Deviation 2026-O0038)	Feb 2026		
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	Feb 2026		
52.236-2	Differing Site Conditions. (Deviation 2026-O0038)	Feb 2026		
52.236-3	Site Investigation and Conditions Affecting the Work. (Deviation 2026-O0038)	Feb 2026		
52.236-5	Material and Workmanship. (Deviation 2026-O0038)	Feb 2026		
52.236-6	Superintendence by the Contractor. (Deviation 2026-O0038)	Feb 2026		
52.236-7	Permits and Responsibilities. (Deviation 2026-O0038)	Feb 2026		
52.236-8	Other Contracts. (Deviation 2026-O0038)	Feb 2026		
52.236-9	Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements. (Deviation 2026-O0038)	Feb 2026		
52.236-10	Operations and Storage Areas. (Deviation 2026-O0038)	Feb 2026		
52.236-11	Use and Possession Prior to Completion. (Deviation 2026-O0038)	Feb 2026		
52.236-12	Cleaning Up. (Deviation 2026-O0038)	Feb 2026		
52.236-13	Accident Prevention. (Deviation 2026-O0038)	Feb 2026		
52.236-15	Schedules for Construction Contracts. (Deviation 2026-O0038)	Feb 2026		
52.236-16	Quantity Surveys. (Deviation 2026-O0038)	Feb 2026		
52.236-17	Layout of Work. (Deviation 2026-O0038)	Feb 2026		
52.236-21	Specifications and Drawings for Construction. (Deviation 2026-O0038)	Feb 2026		
52.236-21	Specifications and Drawings for Construction. (Alternate I)	Feb 2026	Alternate I	Apr 1984
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	Feb 2026		
52.240-93	Basic Safeguarding of Covered Contractor Information Systems. (Deviation 2026-O0038)	Feb 2026		
52.242-5	Payments to Small Business Subcontractors.	Jan 2017		
52.242-13	Bankruptcy.	Jul 1995		
52.242-14	Suspension of Work.	Apr 1984		

52.243-4	Changes. (Deviation 2026-O0038)	Feb 2026		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	Feb 2026		
52.246-12	Inspection of Construction.	Aug 1996		
52.246-21	Warranty of Construction. (Alternate I)	Mar 1994	Alternate I	Apr 1984
52.249-2	Termination for Convenience of the Government (Fixed-Price). (Alternate I)	Apr 2012	Alternate I	Sep 1996
52.249-10	Default (Fixed-Price Construction).	Apr 1984		
52.253-1	Computer Generated Forms. (Deviation 2026-O0038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7001	Prohibition on Persons Convicted of Fraud or Other Defense-Contract-Related Felonies.	Jan 2023		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.203-7003	Agency Office of the Inspector General.	Aug 2019		
252.203-7004	Display of Hotline Posters.	Jan 2023		
252.204-7000	Disclosure of Information.	Oct 2016		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	May 2024	Deviation 2024-O0013	May 2024
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.219-7996	Small Business Subcontracting Plan (DoD Contracts). (DEVIATION 2026-O0037)	Feb 2026	Deviation 2026-O0037	Feb 2026
252.222-7006	Restrictions on the Use of Mandatory Arbitration Agreements.	Jan 2023		
252.223-7006	Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials.	Sep 2014		
252.223-7008	Prohibition of Hexavalent Chromium.	Jan 2023		
252.223-7998	Prohibition on Procurement of Certain Items Containing Perfluorooctane Sulfonate or Perfluorooctanoic Acid. (Deviation 2022-O0010)	Apr 2023	Deviation 2022-O0010	Apr 2023
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.225-7052	Restriction on the Acquisition of Certain Magnets, Tantalum, and Tungsten.	May 2024		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7058	Postaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.225-7967	Prohibition Regarding Russian Fossil Fuel Business Operations (Deviation 2024-O0006, Revision 1)	Feb 2024	Deviation 2024-O0006	Feb 2024
252.225-7972	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024
252.226-7003	Drug-Free Work Force.	Aug 2024		
252.231-7000	Supplemental Cost Principles	Dec 1991		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.236-7000	Modification Proposals--Price Breakdown.	Dec 1991		
252.236-7013	Requirement for Competition Opportunity for American Steel Producers, Fabricators, and Manufacturers.	Jan 2023		
252.240-7997	NIST SP 800-171 DoD Assessment Requirements. (DEVIATION 2026-O0025)	Feb 2026	Deviation 2026-O0025	Feb 2026
252.240-7999	Prohibition on the Procurement of Covered Semiconductor Products and Services from Companies Providing Covered Semiconductor Products and Services to Huawei. (DEVIATION 2025-O0007)	Sep 2025	Deviation 2025-O0007	Sep 2025
252.243-7001	Pricing of Contract Modifications.	Dec 1991		
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.244-7999	Subcontracts for Commercial Products or Commercial Services. (DEVIATION 2026-O0015)	Feb 2026	Deviation 2026-O0015	Jan 2026
252.246-7003	Notification of Potential Safety Issues.	Jan 2023		
252.246-7007	Contractor Counterfeit Electronic Part Detection and Avoidance System.	Jan 2023		
252.246-7008	Sources of Electronic Parts.	Jan 2023		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. (Jan 2017)

PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS-REPRESENTATION (JAN 2017)

(a) *Definition.* As used in this provision-

Internal confidentiality agreement or statement, subcontract, and subcontractor , are defined in the clause at 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.

(b) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use funds appropriated (or otherwise made available) for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(c) The prohibition in paragraph (b) of this provision does not contravene requirements applicable to Standard Form 312, (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(d) *Representation.* By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(End of provision)

52.204-7 System for Award Management-Registration. (Deviation 2026-O0038) (Feb 2026)

SYSTEM FOR AWARD MANAGEMENT-REGISTRATION (FEB 2026) (DEVIATION 2026-O0038)

The Offeror shall have an active Federal Government contracts registration in the System for Award Management (SAM) when submitting an offer or quotation in response to this solicitation and at the time of award. As part of the SAM registration process, the Government collects information, as described in paragraphs (b) through (d) of this provision, that is necessary to identify the Offeror and for the Offeror to be awarded Federal Government contracts. To register in SAM, go to <https://www.sam.gov>. Allow for processing time when registering in SAM. If the Offeror is not registered in SAM, it should register immediately after receiving this solicitation.

(a) *Definitions.* As used in this provision-

Commercial and Government Entity (CAGE) code has the meaning provided in the clause at the Federal Acquisition Regulation (FAR) 52.204-13, System for Award Management-Maintenance, of this solicitation.

Electronic Funds Transfer (EFT) indicator means a bank account identifier to establish additional System for Award Management records for identifying alternative EFT accounts (see part 32) for the same entity.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest-level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees. There may be more than one immediate owner (e.g., joint ventures).

Predecessor means an entity whose assets were acquired by the offeror or another entity (most often through merger or acquisition) and whose affairs are now carried out by the offeror or the other entity under a new name.

Taxpayer identification number means the number required by the Internal Revenue Service (IRS) to be used by the offeror to report income tax and other returns. It may be either a Social Security Number or an Employer Identification Number.

Unique entity identifier (UEI) has the meaning provided in the clause at FAR 52.204-13, System for Award Management-Maintenance, of this solicitation.

(b) *Identifiers.* The Offeror shall obtain and provide the following identifying information:

(1) *Unique entity identifier (UEI).*

(i) The Offeror shall obtain a UEI to register in SAM. The Government will independently validate the existence and uniqueness of the Offeror before assigning a UEI to the Offeror. Go to <https://www.sam.gov> for instructions on obtaining a UEI.

(ii) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the UEI that identifies the Offeror's name and address exactly as stated in the offer. The Offeror shall also enter its EFT indicator, if applicable.

(iii) The Contracting Officer will use the UEI to verify that the Offeror has an active Federal Government contracts registration in SAM.

(2) *Taxpayer identification number (TIN).*

(i) The Offeror shall provide its TIN or related information to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d); reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M; and implementing regulations issued by the IRS. The Offeror shall consent for TIN validation; and

(3) *Commercial and Government Entity (CAGE) code.*

(i) The Offeror shall provide a CAGE code and legal business name (Do not use a "doing business as" name) for-

(A) Itself;

(B) Its immediate owner(s), if any;

(C) Its highest-level owner, if any; and

(D) Any predecessor(s), or predecessor of an Offeror's predecessor, that held a Federal contract or grant within the last three years.

(ii) If the Offeror is in the United States or its outlying areas and does not already have a CAGE code assigned, the DLA CAGE Branch will assign a CAGE code to the Offeror as a part of the SAM registration process. For information on obtaining a CAGE code go to <https://cage.dla.mil/>.

(iii) The Offeror shall get from any immediate and/or highest-level owner(s) their respective CAGE code(s) to provide the code(s) as part of the registration (FAR 52.204-7(b)(3)(i)).

(iv) If the Offeror is located outside of the United States or its outlying areas, and does not already have a CAGE code assigned, the Offeror may obtain a CAGE code as indicated in the following table.

If the Offeror is...	Then...
Located in a country that is a member of the North Atlantic Treaty Organization (NATO) or a sponsored nation	Contact the appropriate National Codification Bureau (https://www.nato.int/structur/ac/135/about/contacts)
Located in a country that is not a member of NATO or a sponsored nation	Contact the NATO Support and Procurement Agency (NSPA) (https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx)

(c) *Representations and certifications.*

(1) The following FAR solicitation provisions contain entity-level representations and certifications that the Offeror shall submit as part of their Federal Government contracts registration in SAM:

Provision	Title	Date
52.204-5	Women-Owned Business (Other Than Small Business)	Oct 2014

52.209-2	Prohibition on Contracting with Inverted Domestic Corporations-Representation	Nov 2015
52.209-5	Certification Regarding Responsibility Matters	Aug 2020
52.209-11	Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law	Feb 2016
52.219-1	Small Business Program Representations	Feb 2024
52.219-1 Alt I	Small Business Program Representations, with its Alternate I	Feb 2024
52.219-1 Alt II	Small Business Program Representations, with its Alternate II	Mar 2023
52.226-2	Historically Black College or University and Minority Institution Representation	Oct 2014

(2) By submitting its offer, the Offeror verifies that, as of the date of its offer, its representations and certifications posted electronically in SAM for the provisions listed in paragraph (c)(1) of this provision are current, accurate, and complete. The Offeror's representations and certifications in SAM are hereby incorporated by reference into its offer.

(d) *Other information.* The Offeror shall provide more information on its business operations and type that is necessary to be considered for award of certain contracts and financial information necessary to receive payment under contracts.

(End of provision)

52.204-19 Incorporation by Reference of Representations and Certifications.

(Dec 2014)

INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS (DEC 2014)

The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

52.211-12 Liquidated Damages-Construction.

(Sep 2000)

Liquidated Damages-Construction (Sept 2000)

(a) If the Contractor fails to complete the work within the time specified in the contract, the Contractor shall pay liquidated damages to the Government in the amount of **\$6,258.00** for each calendar day of delay until the work is completed or accepted.

(b) If the Government terminates the Contractor's right to proceed, liquidated damages will continue to accrue until the work is completed. These liquidated damages are in addition to excess costs of repurchase under the Termination clause.

(End of clause)

52.216-1 Type of Contract. (Deviation 2026-O0038)

(Feb 2026)

Type of Contract (Feb 2026) (Deviation 2026-O0038)

The Government contemplates award of a firm-fixed price contract resulting from this solicitation.

(End of provision)

52.217-5 Evaluation of Options. (Deviation 2026-O0038)

(Feb 2026)

EVALUATION OF OPTIONS (FEB 2026) (DEVIATION 2026-O0038)

Except when it is determined in accordance with FAR 17.202(b) not to be in the Government's best interests, the Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).

(End of provision)

52.217-7 Option for Increased Quantity-Separately Priced Line Item.

(Mar 1989)

Option for Increased Quantity-Separately Priced Line Item (Mar 1989)

The Government may require the delivery of the numbered line item, identified in the Schedule as an option item, in the quantity and at the price stated in the Schedule. The Contracting Officer may exercise **the options at the time of award or by written notice to the Contractor within 365 calendar days** from the date of contract award. Delivery of added items shall continue at the same rate that like items are called for under the contract, unless the parties otherwise agree.

(End of clause)

52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns. (Deviation 2026-O0038)

(Feb 2026)

NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (FEB 2026) (DEVIATION 2026-O0038)

(a) Evaluation preference.

(1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

(i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and

(ii) Otherwise successful offers from small business concerns.

(b) *Waiver of evaluation preference.* A HUBZone small business concern may choose to waive the evaluation preference. If the concern waives the preference, the factor will be added to its offer for evaluation purposes.

☐ Offeror chooses to waive the evaluation preference.

(c) *Joint venture.* A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of provision)

52.219-28 Postaward Small Business Program Rerepresentation. (Deviation 2026-O0038)

(Feb 2026)

POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (FEB 2026) (DEVIATION 2026-O0038)

(a) *Definitions.* As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under ____ NAICS Code assigned to ____ contract number.

(2) [Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.] The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) *HUBZone joint venture eligible under the HUBZone Program.* [*Complete only if the offeror is a HUBZone small business concern.*] The offeror represents, as part of its offer, that It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: .] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. [____ Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.222-5 Construction Wage Rate Requirements-Secondary Site of the Work. (Deviation 2026-O0038) (Feb 2026)

CONSTRUCTION WAGE RATE REQUIREMENTS-SECONDARY SITE OF THE WORK (FEB 2026) (DEVIATION 2026-O0038)

(a)

(1) The offeror must notify the Government if the offeror intends to perform work at any secondary site of the work, as defined in paragraph (a)(1)(ii) of the FAR clause at 52.222-6, Construction Wage Rate Requirements, of this solicitation.

(2) If the offeror is unsure if a planned work site satisfies the criteria for a secondary site of the work, the offeror must request a determination from the Contracting Officer.

(b)

(1) If the wage determination provided by the Government for work at the primary site of the work is not applicable to the secondary site of the work, the offeror must request a wage determination from the Contracting Officer.

(2) The due date for receipt of offers will not be extended as a result of an offeror's request for a wage determination for a secondary site of the work.

(End of provision)

52.223-1 Biobased Product Certification. (Deviation 2026-O0038) (Feb 2026)

BIOBASED PRODUCT CERTIFICATION (FEB 2026) (DEVIATION 2026-O0038)

As required by the Farm Security and Rural Investment Act of 2002 (7 U.S.C. 8101(4)) and the Energy Policy Act of 2005 (7 U.S.C. 8102(a)(2) (F)), the Offeror certifies, by signing this offer, that biobased products (within categories of products listed by the United States Department of Agriculture at <https://www.biopreferred.gov/resources/categories.html> to be used or delivered in the performance of the contract, other than biobased products that are not purchased by the Offeror as a direct result of this contract, will comply with the applicable specifications or other contractual requirements.

(End of provision)

52.223-3 Hazardous Material Identification and Safety Data. (Deviation 2026-O0038) (Feb 2026)

HAZARDOUS MATERIAL IDENTIFICATION AND SAFETY DATA (FEB 2026) (DEVIATION 2026-O0038)

(a) *Hazardous material*, as used in this clause, includes any material defined as hazardous under the latest version of Federal Standard No. 313 (including revisions adopted during the term of the contract).

(b) The Offeror must list any hazardous material, as defined in paragraph (a) of this clause, to be delivered under this contract. The hazardous material shall be properly identified and include any applicable identification number, such as National Stock Number or Special Item Number. This information shall also be included on the Safety Data Sheet submitted under this contract.

Material (If none, insert <i>None</i>)	Identification No.

_____	_____
_____	_____
_____	_____

(c) This list must be updated during performance of the contract whenever the Contractor determines that any other material to be delivered under this contract is hazardous.

(d) The apparently successful offeror agrees to submit, for each item as required prior to award, a Safety Data Sheet, meeting the requirements of 29 CFR 1910.1200(g) and the latest version of Federal Standard No. 313, for all hazardous material identified in paragraph (b) of this clause. Data shall be submitted in accordance with Federal Standard No. 313, whether or not the apparently successful offeror is the actual manufacturer of these items. Failure to submit the Safety Data Sheet prior to award may result in the apparently successful offeror being considered nonresponsible and ineligible for award.

(e) If, after award, there is a change in the composition of the item(s) or a revision to Federal Standard No. 313, which renders incomplete or inaccurate the data submitted under paragraph (d) of this clause, the Contractor shall promptly notify the Contracting Officer and resubmit the data.

(f) Neither the requirements of this clause nor any act or failure to act by the Government shall relieve the Contractor of any responsibility or liability for the safety of Government, Contractor, or subcontractor personnel or property.

(g) Nothing contained in this clause shall relieve the Contractor from complying with applicable Federal, State, and local laws, codes, ordinances, and regulations (including the obtaining of licenses and permits) in connection with hazardous material.

(h) The Government's rights in data furnished under this contract with respect to hazardous material are as follows:

(1) To use, duplicate and disclose any data to which this clause is applicable. The purposes of this right are to-

(i) Apprise personnel of the hazards to which they may be exposed in using, handling, packaging, transporting, or disposing of hazardous materials;

(ii) Obtain medical treatment for those affected by the material; and

(iii) Have others use, duplicate, and disclose the data for the Government for these purposes.

(2) To use, duplicate, and disclose data furnished under this clause, in accordance with subparagraph (h)(1) of this clause, in precedence over any other clause of this contract providing for rights in data.

(3) The Government is not precluded from using similar or identical data acquired from other sources.

(End of clause)

52.223-9 Estimate of Percentage of Recovered Material Content for EPA-Designated Items. (May 2008)

Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008)

(a) *Definitions.* As used in this clause-

Postconsumer material means a material or finished product that has served its intended use and has been discarded for disposal or recovery, having completed its life as a consumer item. Postconsumer material is a part of the broader category of "recovered material."

"Recovered material" means waste materials and by-products recovered or diverted from solid waste, but the term does not include those materials and by-products generated from, and commonly reused within, an original manufacturing process.

(b) The Contractor, on completion of this contract, shall-

(1) Estimate the percentage of the total recovered material content for EPA-designated item(s) delivered and/or used in contract performance, including, if applicable, the percentage of post-consumer material content; and

(2) Submit this estimate to Contracting Officer.

(End of clause)

52.225-11 Buy American-Construction Materials under Trade Agreements. (Deviation 2026-O0038) (Feb 2026)

Buy American-Construction Materials under Trade Agreements (Feb 2026) (Deviation 2026-O0038)

(a) *Definitions.* As used in this clause-

Caribbean Basin country construction material means a construction material that-

(1) Is wholly the growth, product, or manufacture of a Caribbean Basin country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a Caribbean Basin country into a new and different construction material distinct from the materials from which it was transformed.

Commercially available off-the-shelf (COTS) item-

(1) Means any item of supply (including construction material) that is-

(i) A commercial product (as defined in paragraph (1) of the definition of "commercial product" at Federal Acquisition Regulation (FAR) 2.101);

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

Component means an article, material, or supply incorporated directly into a construction material.

Construction material means an article, material, or supply brought to the construction site by the Contractor or subcontractor for incorporation into the building or work. The term also includes an item brought to the site preassembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, that are discrete systems incorporated into a public building or work and that are produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

Cost of components means-

(1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the construction material (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or

(2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

Critical component means a component that is mined, produced, or manufactured in the United States and deemed critical to the U.S. supply chain. The list of critical components is at FAR 25.105.

Critical item means a domestic construction material or domestic end product that is deemed critical to U.S. supply chain resiliency. The list of critical items is at FAR 25.105.

Designated country means any of the following countries:

(1) A World Trade Organization Government Procurement Agreement (WTO GPA) country (Armenia, Aruba, Australia, Austria, Belgium, Bulgaria, Canada, Croatia, Cyprus, Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Hong Kong, Hungary, Iceland, Ireland, Israel, Italy, Japan, Korea (Republic of), Latvia, Liechtenstein, Lithuania, Luxembourg, Malta, Moldova, Montenegro, Netherlands, New Zealand, North Macedonia, Norway, Poland, Portugal, Romania, Singapore, Slovak Republic, Slovenia, Spain, Sweden, Switzerland, Taiwan, Ukraine, or United Kingdom);

(2) A Free Trade Agreement (FTA) country (Australia, Bahrain, Chile, Colombia, Costa Rica, Dominican Republic, El Salvador, Guatemala, Honduras, Korea (Republic of), Mexico, Morocco, Nicaragua, Oman, Panama, Peru, or Singapore);

(3) A least developed country (Afghanistan, Angola, Bangladesh, Benin, Bhutan, Burkina Faso, Burundi, Cambodia, Central African Republic, Chad, Comoros, Democratic Republic of Congo, Djibouti, Equatorial Guinea, Eritrea, Ethiopia, Gambia, Guinea, Guinea-Bissau, Haiti, Kiribati, Laos, Lesotho, Liberia, Madagascar, Malawi, Mali, Mauritania, Mozambique, Nepal, Niger, Rwanda, Samoa, Sao Tome and Principe, Senegal, Sierra Leone, Solomon Islands, Somalia, South Sudan, Tanzania, Timor-Leste, Togo, Tuvalu, Uganda, Vanuatu, Yemen, or Zambia); or

(4) A Caribbean Basin country (Antigua and Barbuda, Aruba, Bahamas, Barbados, Belize, Bonaire, British Virgin Islands, Curacao, Dominica, Grenada, Guyana, Haiti, Jamaica, Montserrat, Saba, St. Kitts and Nevis, St. Lucia, St. Vincent and the Grenadines, Sint Eustatius, Sint Maarten, or Trinidad and Tobago).

Designated country construction material means a construction material that is a WTO GPA country construction material, an FTA country construction material, a least developed country construction material, or a Caribbean Basin country construction material.

Domestic construction material means-

(1) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both-

(i) An unmanufactured construction material mined or produced in the United States; or

(ii) A construction material manufactured in the United States, if-

(A) The cost of its components mined, produced, or manufactured in the United States exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered starting in calendar year 2029. Components of foreign origin of the same class or kind for which nonavailability determinations have been made are treated as domestic. Components of unknown origin are treated as foreign; or

(B) The construction material is a COTS item; or

(2) For construction material that consists wholly or predominantly of iron or steel or a combination of both, a construction material manufactured in the United States if the cost of foreign iron and steel constitutes less than 5 percent of the cost of all components used in such construction material. The cost of foreign iron and steel includes but is not limited to the cost of foreign iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the construction material and a good faith estimate of the cost of all foreign iron or steel components excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign. If the construction material contains multiple components, the cost of all the materials used in such construction material is calculated in accordance with the definition of "cost of components".

Fastener means a hardware device that mechanically joins or affixes two or more objects together. Examples of fasteners are nuts, bolts, pins, rivets, nails, clips, and screws.

Foreign construction material means a construction material other than a domestic construction material.

Foreign iron and steel means iron or steel products not produced in the United States. Produced in the United States means that all manufacturing processes of the iron or steel must take place in the United States, from the initial melting stage through the application of coatings, except metallurgical processes involving refinement of steel additives. The origin of the elements of the iron or steel is not relevant to the determination of whether it is domestic or foreign.

Free Trade Agreement country construction material means a construction material that-

(1) Is wholly the growth, product, or manufacture of a Free Trade Agreement (FTA) country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a FTA country into a new and different construction material distinct from the materials from which it was transformed.

Least developed country construction material means a construction material that-

(1) Is wholly the growth, product, or manufacture of a least developed country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a least developed country into a new and different construction material distinct from the materials from which it was transformed.

Predominantly of iron or steel or a combination of both means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.

Steel means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

United States means the 50 States, the District of Columbia, and outlying areas.

WTO GPA country construction material means a construction material that-

(1) Is wholly the growth, product, or manufacture of a WTO GPA country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a WTO GPA country into a new and different construction material distinct from the materials from which it was transformed.

(b) Construction materials.

(1) This clause implements 41 U.S.C. chapter 83, Buy American, by providing a preference for domestic construction material. In accordance with 41 U.S.C.1907, the domestic content test of the Buy American statute is waived for construction material that is a COTS item, except that for construction material that consists wholly or predominantly of iron or steel or a combination of both, the domestic content test is applied only to the iron and steel content of the construction material, excluding COTS fasteners. In addition, the Contracting Officer has determined that the WTO GPA and Free Trade Agreements (FTAs) apply to this acquisition. Therefore, the Buy American restrictions are waived for designated country construction materials.

(2) The Contractor shall use only domestic or designated country construction material in performing this contract, except as provided in paragraphs (b)(3) and (b)(4) of this clause.

(3) The requirement in paragraph (b)(2) of this clause does not apply to information technology that is a commercial product or to the construction materials or components listed by the Government as follows:

None.

(4) The Contracting Officer may add other foreign construction material to the list in paragraph (b)(3) of this clause if the Government determines that-

(i) The cost of domestic construction material would be unreasonable.

(A) *For domestic construction material that is not a critical item or does not contain critical components.*

(1) The cost of a particular domestic construction material subject to the restrictions of the Buy American statute is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent;

(2) [Reserved]

(3) [Reserved]

(B) *For domestic construction material that is a critical item or contains critical components.*

(1) The cost of a particular domestic construction material that is a critical item or contains critical components, subject to the requirements of the Buy American statute, is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent plus the additional preference factor identified for the critical item or construction material containing critical components listed at FAR 25.105.

(2) [Reserved]

(3) [Reserved]

(ii) The application of the restriction of the Buy American statute to a particular construction material would be impracticable or inconsistent with the public interest; or

(iii) The construction material is not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality.

(c) Request for determination of inapplicability of the Buy American statute.

(1)

(i) Any Contractor request to use foreign construction material in accordance with paragraph (b)(4) of this clause shall include adequate information for Government evaluation of the request, including-

(A) A description of the foreign and domestic construction materials;

(B) Unit of measure;

(C) Quantity;

(D) Price;

(E) Time of delivery or availability;

(F) Location of the construction project;

(G) Name and address of the proposed supplier; and

(H) A detailed justification of the reason for use of foreign construction materials cited in accordance with paragraph (b)(3) of this clause.

(ii) A request based on unreasonable cost shall include a reasonable survey of the market and a completed price comparison table in the format in paragraph (d) of this clause.

(iii) The price of construction material shall include all delivery costs to the construction site and any applicable duty (whether or not a duty-free certificate may be issued).

(iv) Any Contractor request for a determination submitted after contract award shall explain why the Contractor could not reasonably foresee the need for such determination and could not have requested the determination before contract award. If the Contractor does not submit a satisfactory explanation, the Contracting Officer need not make a determination.

(2) If the Government determines after contract award that an exception to the Buy American statute applies and the Contracting Officer and the Contractor negotiate adequate consideration, the Contracting Officer will modify the contract to allow use of the foreign construction material. However, when the basis for the exception is the unreasonable price of a domestic construction material, adequate consideration is not less than the differential established in paragraph (b)(4)(i) of this clause.

(3) Unless the Government determines that an exception to the Buy American statute applies, use of foreign construction material is noncompliant with the Buy American statute.

(d) *Data.* To permit evaluation of requests under paragraph (c) of this clause based on unreasonable cost, the Contractor shall include the following information and any applicable supporting data based on the survey of suppliers:

Foreign and Domestic Construction Materials Price Comparison			
Construction material description	Unit of measure	Quantity	Price (dollars)*
Item 1:			
Foreign construction material.	_____	_____	_____
Domestic construction material.	_____	_____	_____
Item 2:			
Foreign construction material.	_____	_____	_____
Domestic construction material.	_____	_____	_____

[* Include all delivery costs to the construction site and any applicable duty (whether or not a duty-free entry certificate is issued)].

[List name, address, telephone number, and contact for suppliers surveyed. Attach copy of response; if oral, attach summary.]

[Include other applicable supporting information.]

(End of clause)

52.225-12 Notice of Buy American Requirement-Construction Materials Under Trade Agreements. (May 2014)

NOTICE OF BUY AMERICAN REQUIREMENT-CONSTRUCTION MATERIALS UNDER TRADE AGREEMENTS (MAY 2014)

(a) *Definitions.* "Commercially available off-the-shelf (COTS) item," "construction material," "designated country construction material," "domestic construction material," and "foreign construction material," as used in this provision, are defined in the clause of this solicitation entitled "Buy American-Construction Materials Under Trade Agreements" (Federal Acquisition Regulation (FAR) clause 52.225-11).

(b) *Requests for determination of inapplicability.* An offeror requesting a determination regarding the inapplicability of the Buy American statute should submit the request to the Contracting Officer in time to allow a determination before submission of offers. The offeror shall include the information and applicable supporting data required by paragraphs (c) and (d) of FAR clause 52.225-11 in the request. If an offeror has not requested a determination regarding the inapplicability of the Buy American statute before submitting its offer, or has not received a response to a previous request, the offeror shall include the information and supporting data in the offer.

(c) Evaluation of offers.

(1) The Government will evaluate an offer requesting exception to the requirements of the Buy American statute, based on claimed unreasonable cost of domestic construction materials, by adding to the offered price the appropriate percentage of the cost of such foreign construction material, as specified in paragraph (b)(4)(i) of FAR clause 52.225-11.

(2) If evaluation results in a tie between an offeror that requested the substitution of foreign construction material based on unreasonable cost and an offeror that did not request an exception, the Contracting Officer will award to the offeror that did not request an exception based on unreasonable cost.

(d) Alternate offers.

(1) When an offer includes foreign construction material, other than designated country construction material, that is not listed by the Government in this solicitation in paragraph (b)(3) of FAR clause 52.225-11, the offeror also may submit an alternate offer based on use of equivalent domestic or designated country construction material.

(2) If an alternate offer is submitted, the offeror shall submit a separate Standard Form 1442 for the alternate offer, and a separate price comparison table prepared in accordance with paragraphs (c) and (d) of FAR clause 52.225-11 for the offer that is based on the use of any foreign construction material for which the Government has not yet determined an exception applies.

(3) If the Government determines that a particular exception requested in accordance with paragraph (c) of FAR clause 52.225-11 does not apply, the Government will evaluate only those offers based on use of the equivalent domestic or designated country construction material, and the offeror shall be required to furnish such domestic or designated country construction material. An offer based on use of the foreign construction material for which an exception was requested-

- (i) Will be rejected as nonresponsive if this acquisition is conducted by sealed bidding; or
- (ii) May be accepted if revised during negotiations.

(End of provision)

52.228-1 Bid Guarantee.

(Sep 1996)

BID GUARANTEE (SEPT 1996)

(a) Failure to furnish a bid guarantee in the proper form and amount, by the time set for opening of bids, may be cause for rejection of the bid.

(b) The bidder shall furnish a bid guarantee in the form of a firm commitment, *e.g.*, bid bond supported by good and sufficient surety or sureties acceptable to the Government, postal money order, certified check, cashier's check, irrevocable letter of credit, or, under Treasury Department regulations, certain bonds or notes of the United States. The Contracting Officer will return bid guarantees, other than bid bonds-

(1) To unsuccessful bidders as soon as practicable after the opening of bids; and

(2) To the successful bidder upon execution of contractual documents and bonds (including any necessary coinsurance or reinsurance agreements), as required by the bid as accepted.

(c) The amount of the bid guarantee shall be 20 percent of the bid price or \$3 million, whichever is less.

(d) If the successful bidder, upon acceptance of its bid by the Government within the period specified for acceptance, fails to execute all contractual documents or furnish executed bond(s) within 10 days after receipt of the forms by the bidder, the Contracting Officer may terminate the contract for default.

(e) In the event the contract is terminated for default, the bidder is liable for any cost of acquiring the work that exceeds the amount of its bid, and the bid guarantee is available to offset the difference.

(End of clause)

52.228-17 Individual Surety-Pledge of Assets (Bid Guarantee).

(Feb 2021)

INDIVIDUAL SURETY-PLEDGE OF ASSETS (FEB 2021)

(a) Offerors shall obtain from each person acting as an individual surety on a bid guarantee-

(1) A pledge of assets that meets the eligibility, valuation, and security requirements described in the Federal Acquisition Regulation (FAR) 28.203-1; and

(2) Standard Form 28, Affidavit of Individual Surety.

(b) The Offeror shall include with its offer the information required at paragraph (a) of this provision within the timeframe specified in the provision at FAR 52.228-1, Bid Guarantee, or as otherwise established by the Contracting Officer.

(c) The Contracting Officer may release the security interest on the individual surety's assets in support of a bid guarantee based upon evidence that the offer supported by the individual surety will not result in contract award.

(End of provision)

52.232-5 Payments under Fixed-Price Construction Contracts.

(May 2014)

PAYMENTS UNDER FIXED-PRICE CONSTRUCTION CONTRACTS (MAY 2014)

(a) *Payment of price.* The Government shall pay the Contractor the contract price as provided in this contract.

(b) *Progress payments.* The Government shall make progress payments monthly as the work proceeds, or at more frequent intervals as determined by the Contracting Officer, on estimates of work accomplished which meets the standards of quality established under the contract, as approved by the Contracting Officer.

(1) The Contractor's request for progress payments shall include the following substantiation:

(i) An itemization of the amounts requested, related to the various elements of work required by the contract covered by the payment requested.

(ii) A listing of the amount included for work performed by each subcontractor under the contract.

(iii) A listing of the total amount of each subcontract under the contract.

(iv) A listing of the amounts previously paid to each such subcontractor under the contract.

(v) Additional supporting data in a form and detail required by the Contracting Officer.

(2) In the preparation of estimates, the Contracting Officer may authorize material delivered on the site and preparatory work done to be taken into consideration. Material delivered to the Contractor at locations other than the site also may be taken into consideration if-

(i) Consideration is specifically authorized by this contract; and

(ii) The Contractor furnishes satisfactory evidence that it has acquired title to such material and that the material will be used to perform this contract.

(c) *Contractor certification.* Along with each request for progress payments, the Contractor shall furnish the following certification, or payment shall not be made: (However, if the Contractor elects to delete paragraph (c)(4) from the certification, the certification is still acceptable.)

I hereby certify, to the best of my knowledge and belief, that-

(1) The amounts requested are only for performance in accordance with the specifications, terms, and conditions of the contract;

(2) All payments due to subcontractors and suppliers from previous payments received under the contract have been made, and timely payments will be made from the proceeds of the payment covered by this certification, in accordance with subcontract agreements and the requirements of Chapter 39 of Title 31, United States Code;

(3) This request for progress payments does not include any amounts which the prime contractor intends to withhold or retain from a subcontractor or supplier in accordance with the terms and conditions of the subcontract; and

(4) This certification is not to be construed as final acceptance of a subcontractor's performance.

____ (Name)

____ (Title)

____ (Date)

(d) *Refund of unearned amounts.* If the Contractor, after making a certified request for progress payments, discovers that a portion or all of such request constitutes a payment for performance by the Contractor that fails to conform to the specifications, terms, and conditions of this contract (hereinafter referred to as the "unearned amount"), the Contractor shall-

(1) Notify the Contracting Officer of such performance deficiency; and

(2) Be obligated to pay the Government an amount (computed by the Contracting Officer in the manner provided in paragraph (j) of this clause) equal to interest on the unearned amount from the 8th day after the date of receipt of the unearned amount until-

(i) The date the Contractor notifies the Contracting Officer that the performance deficiency has been corrected; or

(ii) The date the Contractor reduces the amount of any subsequent certified request for progress payments by an amount equal to the unearned amount.

(e) *Retainage*. If the Contracting Officer finds that satisfactory progress was achieved during any period for which a progress payment is to be made, the Contracting Officer shall authorize payment to be made in full. However, if satisfactory progress has not been made, the Contracting Officer may retain a maximum of 10 percent of the amount of the payment until satisfactory progress is achieved. When the work is substantially complete, the Contracting Officer may retain from previously withheld funds and future progress payments that amount the Contracting Officer considers adequate for protection of the Government and shall release to the Contractor all the remaining withheld funds. Also, on completion and acceptance of each separate building, public work, or other division of the contract, for which the price is stated separately in the contract, payment shall be made for the completed work without retention of a percentage.

(f) *Title, liability, and reservation of rights*. All material and work covered by progress payments made shall, at the time of payment, become the sole property of the Government, but this shall not be construed as-

(1) Relieving the Contractor from the sole responsibility for all material and work upon which payments have been made or the restoration of any damaged work; or

(2) Waiving the right of the Government to require the fulfillment of all of the terms of the contract.

(g) *Reimbursement for bond premiums*. In making these progress payments, the Government shall, upon request, reimburse the Contractor for the amount of premiums paid for performance and payment bonds (including coinsurance and reinsurance agreements, when applicable) after the Contractor has furnished evidence of full payment to the surety. The retainage provisions in paragraph (e) of this clause shall not apply to that portion of progress payments attributable to bond premiums.

(h) *Final payment*. The Government shall pay the amount due the Contractor under this contract after-

(1) Completion and acceptance of all work;

(2) Presentation of a properly executed voucher; and

(3) Presentation of release of all claims against the Government arising by virtue of this contract, other than claims, in stated amounts, that the Contractor has specifically excepted from the operation of the release. A release may also be required of the assignee if the Contractor's claim to amounts payable under this contract has been assigned under the Assignment of Claims Act of 1940 (31 U.S.C.3727 and 41 U.S.C. 6305).

(i) *Limitation because of undefinitized work*. Notwithstanding any provision of this contract, progress payments shall not exceed 80 percent on work accomplished on undefinitized contract actions. A "contract action" is any action resulting in a contract, as defined in FAR subpart 2.1, including contract modifications for additional supplies or services, but not including contract modifications that are within the scope and under the terms of the contract, such as contract modifications issued pursuant to the Changes clause, or funding and other administrative changes.

(j) *Interest computation on unearned amounts*. In accordance with 31 U.S.C. 3903(c)(1), the amount payable under paragraph (d)(2) of this clause shall be-

(1) Computed at the rate of average bond equivalent rates of 91-day Treasury bills auctioned at the most recent auction of such bills prior to the date the Contractor receives the unearned amount; and

(2) Deducted from the next available payment to the Contractor.

(End of clause)

52.240-90 Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-O0038) (Feb 2026)

SECURITY PROHIBITIONS AND EXCLUSIONS REPRESENTATIONS AND CERTIFICATIONS (FEB 2026) (DEVIATION 2026-O0038)

(a) *Definitions*. As used in this provision--

Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component have the meanings provided in the clause 52.240-91, Security Prohibitions and Exclusions.

Business operations means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

Marginalized populations of Sudan means-

(1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and

(2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate-

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended.

Sensitive technology-

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically-

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) *Procedures.*

(1) *Covered telecommunications and video surveillance.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities excluded from receiving federal awards for "covered telecommunications equipment or services."

(2) *FASCSA Orders.*

(i) The Offeror shall search in SAM for the phrase "FASCSA order" for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.

(ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).

(iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(c) *Covered telecommunications equipment or services representations.* By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror's possession but does not need to include an internal or third-party audit)-

(1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and

(2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

(d) *FASCSA Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror's possession but does not need to include an internal or third-party audit.

(e) *Sudan certification.* By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.

(f) *Iran Representation and Certifications.*

(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), by submission of its offer-

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf of or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L. 104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds \$15,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>)

(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if-

(i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.

(iii) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(g) *Disclosure.*

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose within 72 hours to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:

(i) Contract number and order number, if applicable;

(ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);

(vii) Whether alternative products or services are available that would be compliant with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions undertaken or recommended.

(2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:

(i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.

(3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information.

(h) *Executive agency review of disclosures.* The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of provision)

52.248-3 Value Engineering-Construction.

(Oct 2025)

VALUE ENGINEERING-CONSTRUCTION (OCT 2025)

(a) *General.* The Contractor is encouraged to develop, prepare, and submit value engineering change proposals (VECP's) voluntarily. The Contractor shall share in any instant contract savings realized from accepted VECP's, in accordance with paragraph (f) of this clause.

(b) *Definitions.* "Collateral costs," as used in this clause, means agency costs of operation, maintenance, logistic support, or Government-furnished property.

Collateral savings, as used in this clause, means those measurable net reductions resulting from a VECP in the agency's overall projected collateral costs, exclusive of acquisition savings, whether or not the acquisition cost changes.

Contractor's development and implementation costs, as used in this clause, means those costs the Contractor incurs on a VECP specifically in developing, testing, preparing, and submitting the VECP, as well as those costs the Contractor incurs to make the contractual changes required by Government acceptance of a VECP.

Government costs, as used in this clause, means those agency costs that result directly from developing and implementing the VECP, such as any net increases in the cost of testing, operations, maintenance, and logistic support. The term does not include the normal administrative costs of processing the VECP.

Instant contract savings, as used in this clause, means the estimated reduction in Contractor cost of performance resulting from acceptance of the VECP, minus allowable Contractor's development and implementation costs, including subcontractors' development and implementation costs (see paragraph (h) of this clause).

Value engineering change proposal (VECP) means a proposal that-

- (1) Requires a change to this, the instant contract, to implement; and
- (2) Results in reducing the contract price or estimated cost without impairing essential functions or characteristics; *provided*, that it does not involve a change-
 - (i) In deliverable end item quantities only; or
 - (ii) To the contract type only.

(c) *VECP preparation.* As a minimum, the Contractor shall include in each VECP the information described in paragraphs (c)(1) through (7) of this clause. If the proposed change is affected by contractually required configuration management or similar procedures, the instructions in those procedures relating to format, identification, and priority assignment shall govern VECP preparation. The VECP shall include the following:

- (1) A description of the difference between the existing contract requirement and that proposed, the comparative advantages and disadvantages of each, a justification when an item's function or characteristics are being altered, and the effect of the change on the end item's performance.
- (2) A list and analysis of the contract requirements that must be changed if the VECP is accepted, including any suggested specification revisions.
- (3) A separate, detailed cost estimate for (i) the affected portions of the existing contract requirement and (ii) the VECP. The cost reduction associated with the VECP shall take into account the Contractor's allowable development and implementation costs, including any amount attributable to subcontracts under paragraph (h) of this clause.
- (4) A description and estimate of costs the Government may incur in implementing the VECP, such as test and evaluation and operating and support costs.
- (5) A prediction of any effects the proposed change would have on collateral costs to the agency.
- (6) A statement of the time by which a contract modification accepting the VECP must be issued in order to achieve the maximum cost reduction, noting any effect on the contract completion time or delivery schedule.
- (7) Identification of any previous submissions of the VECP, including the dates submitted, the agencies and contract numbers involved, and previous Government actions, if known.

(d) *Submission.* The Contractor shall submit VECP's to the Resident Engineer at the worksite, with a copy to the Contracting Officer.

(e) Government action.

(1) The Contracting Officer will notify the Contractor of the status of the VECP within 45 calendar days after the contracting office receives it. If additional time is required, the Contracting Officer will notify the Contractor within the 45-day period and provide the reason for the delay and the expected date of the decision. The Government will process VECP's expeditiously; however, it will not be liable for any delay in acting upon a VECP.

(2) If the VECP is not accepted, the Contracting Officer will notify the Contractor in writing, explaining the reasons for rejection. The Contractor may withdraw any VECP, in whole or in part, at any time before it is accepted by the Government. The Contracting Officer may require that the Contractor provide written notification before undertaking significant expenditures for VECP effort.

(3) Any VECP may be accepted, in whole or in part, by the Contracting Officer's award of a modification to this contract citing this clause. The Contracting Officer may accept the VECP, even though an agreement on price reduction has not been reached, by issuing the Contractor a notice to proceed with the change. Until a notice to proceed is issued or a contract modification applies a VECP to this contract, the Contractor shall perform in accordance with the existing contract. The decision to accept or reject all or part of any VECP is a unilateral decision made solely at the discretion of the Contracting Officer.

(f) Sharing-

(1) *Rates.* The Government's share of savings is determined by subtracting Government costs from instant contract savings and multiplying the result by-

(i) 45 percent for fixed-price contracts; or

(ii) 75 percent for cost-reimbursement contracts.

(2) *Payment.* Payment of any share due the Contractor for use of a VECP on this contract shall be authorized by a modification to this contract to-

(i) Accept the VECP;

(ii) Reduce the contract price or estimated cost by the amount of instant contract savings; and

(iii) Provide the Contractor's share of savings by adding the amount calculated to the contract price or fee.

(g) *Collateral savings.* If a VECP is accepted, the Contracting Officer will increase the instant contract amount by 20 percent of any projected collateral savings determined to be realized in a typical year of use after subtracting any Government costs not previously offset. However, the Contractor's share of collateral savings will not exceed the contract's firm-fixed-price or estimated cost, at the time the VECP is accepted, or \$100,000, whichever is greater. The Contracting Officer is the sole determiner of the amount of collateral savings.

(h) *Subcontracts.* The Contractor shall include an appropriate value engineering clause in any subcontract of \$90,000 or more and may include one in subcontracts of lesser value. In computing any adjustment in this contract's price under paragraph (f) of this clause, the Contractor's allowable development and implementation costs shall include any subcontractor's allowable development and implementation costs clearly resulting from a VECP accepted by the Government under this contract, but shall exclude any value engineering incentive payments to a subcontractor. The Contractor may choose any arrangement for subcontractor value engineering incentive payments; *provided*, that these payments shall not reduce the Government's share of the savings resulting from the VECP.

(i) *Data.* The Contractor may restrict the Government's right to use any part of a VECP or the supporting data by marking the following legend on the affected parts:

These data, furnished under the Value Engineering-Construction clause of contract ____, shall not be disclosed outside the Government or duplicated, used, or disclosed, in whole or in part, for any purpose other than to evaluate a value engineering change proposal submitted under the clause. This restriction does not limit the Government's right to use information contained in these data if it has been obtained or is otherwise available from the Contractor or from another source without limitations.

If a VECP is accepted, the Contractor hereby grants the Government unlimited rights in the VECP and supporting data, except that, with respect to data qualifying and submitted as limited rights technical data, the Government shall have the rights specified in the contract modification implementing the VECP and shall appropriately mark the data. (The terms "unlimited rights" and "limited rights" are defined in part 27 of the Federal Acquisition Regulation.)

(End of clause)

52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

FAR: <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide>

DFARS: https://www.acq.osd.mil/dpap/dars/class_deviations.html

(End of clause)

52.252-6 Authorized Deviations in Clauses.

(Nov 2020)

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Defense Acquisition Regulations System, Department of Defense (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.204-7021 Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirements.

(Nov 2025)

CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this clause-

"Controlled unclassified information" means information the Government creates or possesses, or information an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls (32 CFR 2002.4(h)).

"Current" means-

(1) With regard to Conditional Cybersecurity Maturity Model Certification (CMMC) Status-

(i) Not older than 180 days for Conditional Level 2 (Self) assessments and Conditional Level 2 (certified third-party assessment organization (C3PAO)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance by an affirming official (see 32 CFR 170.4); and

(ii) Not older than 180 days for Conditional Level 3 (Defense Industrial Base Cybersecurity Assessment Center (DIBCAC)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance by an affirming official;

(2) With regard to Final CMMC Status-

(i) Not older than 1 year for Final Level 1 (Self), with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.15); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official;

(ii) Not older than 3 years for Final Level 2 (Self) assessments and Final Level 2 (C3PAO) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(iii) Not older than 3 years for Final Level 3 (DIBCAC) assessments, with-

and (A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.18);

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(3) With regard to affirmation of continuous compliance (32 CFR 170.22), not older than 1 year with no changes in compliance with the requirements at 32 CFR part 170.

"Cybersecurity Maturity Model Certification (CMMC) status" means the result of meeting or exceeding the minimum required score for the corresponding assessment. The potential statuses are as follows:

- (1) Final Level 1 (Self).
- (2) Conditional Level 2 (Self).
- (3) Final Level 2 (Self).
- (4) Conditional Level 2 (C3PAO).
- (5) Final Level 2 (C3PAO).
- (6) Conditional Level 3 (DIBCAC).
- (7) Final Level 3 (DIBCAC).

"Cybersecurity Maturity Model Certification unique identifier (CMMC UID)" means 10 alpha-numeric characters assigned to each CMMC assessment and reflected in the Supplier Performance Risk System (SPRS) for each contractor information system.

"Federal contract information (FCI)" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government. It does not include information provided by the Government to the public, such as on public websites, or simple transactional information, such as information necessary to process payments.

"Plan of action and milestones" means a document that identifies tasks to be accomplished. It details resources required to accomplish the elements of the plan, any milestones in meeting the tasks, and scheduled completion dates for the milestones, as defined in National Institute of Standards and Technology Special Publication 800-115 (32 CFR 170.21).

(b) *Framework.* The Cybersecurity Maturity Model Certification (CMMC) is a framework for assessing a contractor's compliance with applicable information security protections (see 32 CFR part 170).

(c) *Duplication.* The CMMC assessments will not duplicate efforts from any other comparable DoD assessment, except for rare circumstances when a reassessment may be necessary, for example, when there are indications of issues with cybersecurity and/or compliance with CMMC requirements.

(d) *Requirements.* The Contractor shall-

(1)(i) Have and maintain for the duration of the contract a current CMMC status at the following CMMC level, or higher: **CMMC Level 1 (Self)** for all information systems used in performance of the contract, task order, or delivery order that process, store, or transmit FCI or CUI; and

(ii) Consult 32 CFR 170.23 related to the flowdown of the CMMC requirements, and flow down the correct CMMC level to subcontracts and other contractual instruments;

(2) Only process, store, or transmit FCI or CUI on contractor information systems that have a CMMC status at the CMMC level required in paragraph (d)(1) of this clause, or higher;

(3) Complete on an annual basis, and maintain as current, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required in paragraph (d)(1) of this clause in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) for each CMMC UID applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract;

(4) Ensure all subcontractors and suppliers complete prior to subcontract award, and maintain on an annual basis, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required for the subcontract or other contractual instrument for each of the subcontractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the subcontract; and

(5) If the Contractor has a CMMC Status of Conditional, successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(e) *Reporting.* The Contractor shall-

- (1) Submit to the Contracting Officer-

- (i) The CMMC UID(s) issued by SPRS for contractor information systems that will process, store, or transmit FCI or CUI during performance of the contract; and
- (ii) Any changes in the CMMC UIDs generated in SPRS throughout the life of the contract, task order, or delivery order, if applicable;
- (2) Enter into SPRS the results of a current self-assessment for each CMMC UID, not covered by a C3PAO assessment or DIBCAC assessment, applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract; and
- (3) Complete in SPRS on an annual basis and maintain as current an affirmation of continuous compliance by the affirming official (see 32 CFR 170.4) for each self-assessment, C3PAO assessment, or DIBCAC assessment required under the contract in SPRS.

(f) *Subcontracts*. The Contractor shall-

- (1) Insert the substance of this clause, including this paragraph (f) and excluding paragraph (e)(1), in subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services, excluding commercially available off-the-shelf items, if the subcontract or other contractual instrument will contain a requirement to process, store, or transmit FCI or CUI; and
- (2) Prior to awarding a subcontract or other contractual instrument, ensure that the subcontractor has a current CMMC certificate or current CMMC status at the CMMC level that is appropriate for the information that is being flowed down to the subcontractor based on the requirements at 32 CFR 170.23.

(End of clause)

252.204-7024 Notice on the Use of the Supplier Performance Risk System.

(Mar 2023)

NOTICE ON THE USE OF THE SUPPLIER PERFORMANCE RISK SYSTEM (MAR 2023)

(a) *Definitions*. As used in this provision-

"Item risk" means the probability that a product, based on intended use, will introduce performance risk resulting in safety issues, mission degradation, or monetary loss.

"Price risk" means a measure of whether a proposed price for a product or service is consistent with historical prices paid for that item or service.

"Supplier risk" means the probability that an award may subject the procurement to the risk of unsuccessful performance or to supply chain risk (see Defense Federal Acquisition Regulation Supplement 239.7301).

(b) The Supplier Performance Risk System (SPRS), available at <https://piee.eb.mil/>, will be used in the evaluation of the Quoter or Offeror's performance. SPRS retrieves item, price, quality, delivery, and contractor information on contracts from Government reporting systems in order to develop risk assessments.

(c) The Contracting Officer will consider SPRS risk assessments during the evaluation of quotations or offers received in response to this solicitation as follows:

(1) Item risk will be considered to determine whether the procurement represents a high performance risk to the Government.

(2) Price risk will be considered in determining if a proposed price is consistent with historical prices paid for a product or a service or otherwise creates a risk to the Government.

(3) Supplier risk, including but not limited to quality and delivery, will be considered to assess the risk of unsuccessful performance and supply chain risk.

(d) SPRS risk assessments are generated daily. Quoters or Offerors are able to access their risk assessments by following the access instructions in the SPRS user's guide available at <https://www.sprs.csd.disa.mil/reference.htm>. Quoters and Offerors are granted access to SPRS for their own risk assessment classifications only. SPRS reporting procedures and risk assessment methodology are detailed in the SPRS user's guide. The method to challenge a rating generated by SPRS is also provided in the user's guide. SPRS evaluation criteria are available at https://www.sprs.csd.disa.mil/pdf/SPRS_DataEvaluationCriteria.pdf.

(e) The Contracting Officer may consider any other available and relevant information when evaluating a quotation or an offer.

(End of provision)

252.204-7025 Notice of Cybersecurity Maturity Model Certification Level Requirements.

(Nov 2025)

NOTICE OF CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this provision, "controlled unclassified information (CUI)," "current," "Cybersecurity Maturity Model Certification (CMMC) status," "Cybersecurity Maturity Model Certification unique identifier (CMMC UID)," "Federal contract information (FCI)," and "plan of action and milestones" have the meaning given in the Defense Federal Acquisition Regulation Supplement 252.204-7021, Contractor Compliance With the Cybersecurity Maturity Model Certification Level Requirements, clause of this solicitation.

(b)(1) *Cybersecurity Maturity Model Certification (CMMC) level.* The CMMC level required by this solicitation is: **CMMC Level 1 (Self)**. This CMMC level, or higher (see 32 CFR part 170), is required prior to award for each contractor information system that will process, store, or transmit Federal contract information (FCI) or controlled unclassified information (CUI) during performance of the contract.

(2) The Offeror will not be eligible for award of a contract, task order, or delivery order resulting from this solicitation if the Offeror does not have, for each of the contractor information systems that will process, store, or transmit FCI or CUI and that will be used in performance of a contract resulting from this solicitation-

(i) The current CMMC status entered in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) at the CMMC level required by paragraph (b)(1) of this provision; and

(ii) A current affirmation of continuous compliance with the security requirements identified at 32 CFR part 170 in SPRS.

(c) *Plan of action and milestones.* If the Offeror has a CMMC Status of Conditional, the Offeror shall successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(d) *CMMC unique identifiers.* The Offeror shall provide, in the proposal, the CMMC unique identifier(s) (CMMC UIDs) issued by SPRS for each contractor information system that will process, store, or transmit FCI or CUI during performance of a contract, task order, or delivery order resulting from this solicitation. The Offeror also shall update the list when new CMMC UIDs are generated in SPRS. The CMMC UIDs are provided in SPRS after the Offeror enters the results of self-assessment(s) for each such information system.

(End of provision)

252.204-7998 Alternate A, Annual Representations and Certifications. (DEVIATION 2026-O0043) (Feb 2026) Alternate A (Feb 2026) Deviation 2026-O0043 (Feb 2026)

Alternate A, Annual Representations and Certifications (DEVIATION 2026-O0043)(FEB 2026)

Include the following paragraphs (e), (f), and (g) in the provision at FAR 52.204-7:

(e)(1) If the provision at FAR 52.204-7, System for Award Management - Registration, is included in this solicitation, paragraph (g) of this provision applies.

(2) If the provision at FAR 52.204-7, System for Award Management - Registration, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (g) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (g) applies.

☐ (ii) Paragraph (g) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(f)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment--Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services--Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)--Representation. Applies to solicitations when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)--Representation. Applies to solicitations when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer: [Contracting Officer check as appropriate.]

☒ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

☐ (ii) 252.225-7000, Buy American--Balance of Payments Program Certificate.

☐ (iii) 252.225-7020, Trade Agreements Certificate.

☐ Use with Alternate I.

☒ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

☐ (v) 252.225-7035, Buy American--Free Trade Agreements--Balance of Payments Program Certificate.

☐ Use with Alternate I.

☐ Use with Alternate II.

☐ Use with Alternate III.

☐ Use with Alternate IV.

☐ Use with Alternate V.

☐ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

☐ (vii) 252.232-7015, Performance-Based Payments--Representation.

(g) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov>. After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-7 and paragraph (f) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.203-1); except for the changes identified below [*Offeror to insert changes, identifying change by provision number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS provision No.	Title	Date	Change
—	—	—	—
—	—	—	—
—	—	—	—
—	—	—	—
—	—	—	—

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

252.208-7999 Ordering From Government Supply Sources. (DEVIATION 2026-00049)

(Mar 2026) Deviation 2026-00049 (Mar 2026)

ORDERING FROM GOVERNMENT SUPPLY SOURCES(DEVIATION 2026-00049) (MAR 2026)

(a) When placing orders under Federal Supply Schedules, Personal Property Rehabilitation Price Schedules, or Enterprise Software Agreements, the Contractor shall follow the terms of the applicable schedule or agreement and authorization. Include in each order:

(1) A copy of the authorization (unless a copy was previously furnished to the Federal Supply Schedule, Personal Property Rehabilitation Price Schedule, or Enterprise Software Agreement contractor).

(2) The following statement:

Any price reductions negotiated as part of an Enterprise Software Agreement issued under a Federal Supply Schedule contract shall control. In the event of any other inconsistencies between an Enterprise Software Agreement, established as a Federal Supply Schedule blanket purchase agreement, and the Federal Supply Schedule contract, the latter shall govern.

(3) The completed address(es) to which the Contractor's mail, freight, and billing documents are to be directed.

(b) When placing orders under nonmandatory schedule contracts and requirements contracts, issued by the General Services Administration (GSA) Office of Information Resources Management, for automated data processing equipment, software and maintenance, communications equipment and supplies, and teleprocessing services, the Contractor shall follow the terms of the applicable contract and the procedures in paragraph (a) of this clause.

(c) When placing orders for Government stock on a reimbursable basis, the Contractor shall--

(1) Comply with the requirements of the Contracting Officer's authorization, using FEDSTRIP or MILSTRIP procedures, as appropriate;

(2) Use only the GSA Form 1948-A, Retail Services Shopping Plate, when ordering from GSA Self-Service Stores;

(3) Order only those items required in the performance of Government contracts; and

(4) The Contractor shall pay invoices from Government supply sources promptly.

(A) The Contractor shall pay purchases made from DoD supply sources within 30 days of the date of a proper invoice.

(B) The Contractor shall annotate each invoice with the date of receipt.

(C) For the purposes of computing interest for late Contractor payments, the Government's invoice is deemed to be a demand for payment in accordance with the Interest clause of this contract.

(D) If the Contractor fails to pay or pays late that may also result in the DoD supply source refusing to honor the requisition (see DFARS 208-105-2(a)(4)(ii)) or in the Contracting Officer terminating the Contractor's authorization to use DoD supply sources.

(1) In the event the Contracting Officer decides to terminate the authorization due to the Contractor's failure to pay in a timely manner, the Contracting Officer will provide the Contractor with prompt written notice of the intent to terminate the authorization and the basis for such action.

(2) The Contractor shall have 10 days after receipt of the Government's notice in which to provide additional information as to why the authorization should not be terminated.

(3) Any such termination does not provide the Contractor with an excusable delay for failure to perform or complete the contract in accordance with the terms of the contract, and the Contractor shall be solely responsible for any increased costs.

(d) When placing orders for Government stock on a non-reimbursable basis, the Contractor shall--

(1) Comply with the requirements of the Contracting Officer's authorization; and

(2) When using electronic transactions to submit requisitions on a nonreimbursable basis only, place orders by authorizing contract number using the Defense Logistics Management System (DLMS) Supplement to Federal Implementation Convention 511R, Requisition; and acknowledge receipts by authorizing contract number using the DLMS Supplement 527R, Receipt, Inquiry, Response and Material Receipt Acknowledgement.

(e) Only the Contractor may request authorization for subcontractor use of Government supply sources. The Contracting Officer will not grant authorizations for subcontractor use without approval of the Contractor.

(f) Government invoices will be submitted to the Contractor's billing address, and Contractor payments shall be sent to the Government remittance address specified below:

Contractor's Billing Address (include point of contact and telephone number):

Government Remittance Address (include point of contact and telephone number):

(End of clause)

252.211-7003 Item Unique Identification and Valuation.

(Jan 2023)

ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)

(a) *Definitions.* As used in this clause-

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

"Concatenated unique item identifier" means-

(1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or

(2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

"Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

"Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.

"DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

"DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

"Enterprise" means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

"Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.

"Government's unit acquisition cost" means-

(1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;

(2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery; and

(3) For items produced under a time-and-materials contract, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery.

"Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at http://www.aimglobal.org/?Reg_Authority15459.

"Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.

"Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

"Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

"Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

"Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

"Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

"Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) *Unique item identifier.*

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items:

Contract Line, Subline, or

Exhibit Line Item Number

Item Description

_____	_____
_____	_____
_____	_____

(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or

Exhibit Line Item Number

Item Description

_____	_____
_____	_____
_____	_____

(If items are identified in the Schedule, insert "See Schedule in this table.")

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed repairables and DoD serially managed nonrepairables as specified in Attachment Number ____.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number ____.

(v) Any item not included in (i), (ii), (iii), or (iv) for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology - International symbology specification - Data matrix; ECC200 data matrix specification.

(4) *Data syntax and semantics of unique item identifiers.* The Contractor shall ensure that-

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology - Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) *Unique item identifier.*

(i) The Contractor shall-

(A) Determine whether to-

(1) Serialize within the enterprise identifier;

(2) Serialize within the part, lot, or batch number; or

(3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code-

(A) Shall not be placed on the item; and

(B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

(1) Unique item identifier.

(2) Unique item identifier type.

(3) Issuing agency code (if concatenated unique item identifier is used).

(4) Enterprise identifier (if concatenated unique item identifier is used).

- (5) Original part number (if there is serialization within the original part number).
- (6) Lot or batch number (if there is serialization within the lot or batch number).
- (7) Current part number (optional and only if not the same as the original part number).
- (8) Current part number effective date (optional and only if current part number is used).
- (9) Serial number (if concatenated unique item identifier is used).
- (10) Government's unit acquisition cost.
- (11) Unit of measure.
- (12) Type designation of the item as specified in the contract schedule, if any.
- (13) Whether the item is an item of Special Tooling or Special Test Equipment.
- (14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

- (1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.
- (2) Unique item identifier of the embedded subassembly, component, or part.
- (3) Unique item identifier type.**
- (4) Issuing agency code (if concatenated unique item identifier is used).**
- (5) Enterprise identifier (if concatenated unique item identifier is used).**
- (6) Original part number (if there is serialization within the original part number).**
- (7) Lot or batch number (if there is serialization within the lot or batch number).**
- (8) Current part number (optional and only if not the same as the original part number).**
- (9) Current part number effective date (optional and only if current part number is used).**
- (10) Serial number (if concatenated unique item identifier is used).**
- (11) Description.

** Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/>.

(2) Embedded items shall be reported by one of the following methods-

- (i) Use of the embedded items capability in WAWF;
- (ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/uidregistry/>; or
- (iii) Via WAWF as a deliverable attachment for exhibit line item number (fill in) ____, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) *Subcontracts*. If the Contractor acquires by subcontract, any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

252.215-7013 Supplies and Services Provided by Nontraditional Defense Contractors. (Jan 2023)

SUPPLIES AND SERVICES PROVIDED BY NONTRADITIONAL DEFENSE CONTRACTORS (JAN 2023)

Offerors are advised that in accordance with 10 U.S.C. 3457, supplies and services provided by a nontraditional defense contractor, as defined in DFARS 202.101, may be treated as commercial products or commercial services. The decision to apply commercial product or commercial service procedures to the procurement of supplies and services from a nontraditional defense contractor does not require a commercial product or commercial service determination and does not mean the supplies or services are commercial.

(End of provision)

252.215-7992 Only One Offer. (DEVIATION 2026-O0048) (Mar 2026) Deviation 2026-O0048 (Mar 2026)

ONLY ONE OFFER (DEVIATION 2026-O0048) (MAR 2026)

(a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to--

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-2(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7994, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation.* If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at 15.404).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable [*U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-1 with the notification*].

(4) As specified in FAR 15.403-1(d), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts.* Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

252.215-7994 Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data. (DEVIATION 2026-O0048) (Mar 2026) Deviation 2026-O0048 (Mar 2026)

REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA--BASIC (DEVIATION 2026-O0048) (MAR 2026)

(a) *Definitions.* As used in this provision--

"Market prices" means current prices that are established in the course of ordinary trade between buyers and sellers free to bargain and that can be substantiated through competition or from sources independent of the offerors.

"Non-Government sales" means sales of the supplies or services to non-Governmental entities for purposes other than governmental purposes.

"Relevant sales data" means information provided by an offeror on sales of the same or similar items that can be used to establish price reasonableness taking into consideration the age, volume, and nature of the transactions (including any related discounts, refunds, rebates, offsets, or other adjustments).

"Sufficient non-Government sales" means relevant sales data that reflects market pricing and contains enough information to make adjustments covered by FAR 15.404-1(b)(2)(ii).

"Uncertified cost data" means the subset of "data other than certified cost or pricing data" (see FAR 2.101) that relates to cost.

(b) *Exceptions from certified cost or pricing data.*

(1) In lieu of submitting certified cost or pricing data, the Offeror may submit a written request for exception by submitting the information described in paragraphs (b)(1)(i) and (ii) of this provision. The Contracting Officer may require additional supporting information, but only to the extent necessary to determine whether an exception should be granted and whether the price is fair and reasonable.

(i) *Exception for prices set by law or regulation - Identification of the law or regulation establishing the prices offered.* If the prices are controlled under law by periodic rulings, reviews, or similar actions of a governmental body, attach a copy of the controlling document, unless it was previously submitted to the contracting office.

(ii) *Commercial product or commercial service exception.* For a commercial product or commercial service exception, the Offeror shall submit, at a minimum, information that is adequate for determining commerciality and evaluating the reasonableness of the price for this acquisition, including prices at which the same product or service or similar products or services have been sold in the commercial market. Such information shall include--

(A) For products or services previously determined to be commercial, the contract number and military department, defense agency, or other DoD component that rendered such determination, and if available, a Government point of contact;

(B) For subsystems of a major weapon system and components and spare parts of a major weapon system or subsystem of a major weapon system that have not previously been determined to be commercial--

(1) The comparable commercial product the Offeror sells to the general public or nongovernmental entities;

(2) A comparison between the physical characteristics and functionality of the comparable commercial product and the subsystem, component, or spare part, including--

(i) For products under paragraph (3)(i) of the "commercial product" definition at FAR 2.101, a description of the modification and documentation to support that the modification is customarily available in the marketplace; or

(ii) For products under paragraph (3)(ii) of the "commercial product" definition at FAR 2.101, a detailed description of the modification and detailed technical data to demonstrate that the modification is minor (e.g., information on production processes and material differences); and

(3) The national stock number (NSN) for the comparable commercial product, if one is assigned, and the NSN for the subsystem, component, or spare part, if one is assigned; or

(4) If the Offeror does not sell a comparable commercial product to the general public or nongovernmental entities for purposes other than government purposes, the Offeror shall--

(i) Notify the Contracting Officer in writing that it does not sell such a comparable product; and

(ii) Provide the Contracting Officer with a comparison of the physical characteristics and functionality of the most comparable commercial product in the commercial market.

(C) For items priced based on a catalog--

(1) A copy of or identification of the Offeror's current catalog showing the price for that item; and

(2) If the catalog pricing provided with this proposal is not consistent with all relevant sales data, a detailed description of differences or inconsistencies between or among the relevant sales data, the proposed price, and the catalog price (including any related discounts, refunds, rebates, offsets, or other adjustments);

(D) For items priced based on market pricing, a description of the nature of the commercial market, the methodology used to establish a market price, and all relevant sales data. The description shall be adequate to permit DoD to verify the accuracy of the description;

(E) For items included on an active Federal Supply Service Multiple Award Schedule contract, proof that an exception has been granted for the schedule item; or

(F) For items provided by nontraditional defense contractors, a statement that the entity is not currently performing and has not performed, for at least the 1-year period preceding the solicitation of sources by DoD for the procurement or transaction, any contract or subcontract for DoD that is subject to full coverage under the cost accounting standards prescribed pursuant to 41 U.S.C. 1502 and the regulations implementing such section.

(2) The Offeror grants the Contracting Officer or an authorized representative the right to examine, at any time before award, books, records, documents, or other directly pertinent records to verify any request for an exception under this provision, and to determine the reasonableness of price.

(c) *Requirements for certified cost or pricing data.* If the Offeror is not granted an exception from the requirement to submit certified cost or pricing data, the following applies:

(1) The Offeror shall prepare and submit certified cost or pricing data and supporting attachments in accordance with the instructions contained in Table 15-1 of FAR 15.408-2, which is incorporated by reference with the same force and effect as though it were inserted here in full text. The instructions in Table 15-1 are incorporated as a mandatory format to be used in any resultant contract, unless the Contracting Officer and the Offeror agree to a different format and change this provision to use Alternate I.

(2) As soon as practicable after agreement on price, but before contract award (except for unpriced actions such as letter contracts), the Offeror shall submit a Certificate of Current Cost or Pricing Data, as prescribed by FAR 15.403-4.

(3) The Offeror is responsible for determining whether a subcontractor qualifies for an exception from the requirement for submission of certified cost or pricing data on the basis of adequate price competition, i.e., two or more responsible offerors, competing independently, submit priced offers that satisfy the Government's expressed requirement in accordance with FAR 15.403-2(c)(1)(ii).

(d) *Requirements for data other than certified cost or pricing data.*

(1) Data other than certified cost or pricing data submitted in accordance with this provision shall include the minimum information necessary to permit a determination that the proposed price is fair and reasonable, to include the requirements in Defense Federal Acquisition Regulation Supplement (DFARS) 215.402-70(a)(1), 215.404-170, and 234.7002(e).

(2) In cases in which uncertified cost data is required, the information shall be provided in the form in which it is regularly maintained by the Offeror or prospective subcontractor in its business operations.

(3) If the Offeror redacts data that identifies the customer (see DFARS 234.7002(e)(2)), then the Offeror shall include, for each sale, the following signed statement with the data submitted:

"By submission of this data, the Offeror [*Offeror insert company name*] certifies that the customer was [*Offeror insert one or more of the following as applicable: a government customer; a commercial customer purchasing the same or similar product for governmental purposes (e.g., Federal, state, local, or foreign government); or a commercial customer purchasing the same or similar product for a commercial, mixed, or unknown purpose*]."

(4) Within 10 days of a written request from the Contracting Officer for additional information to permit an adequate evaluation of the proposed price in accordance with FAR 15.403-1 or DFARS 234.7002(e), the Offeror shall provide either the requested information, or a written explanation for the inability to fully comply.

(5) *Subcontract price evaluation.*

(i) Offerors shall obtain from subcontractors the minimum information necessary to support a determination of price reasonableness, as described in FAR part 15 and DFARS part 215.

(ii) No cost data may be required from a prospective subcontractor in any case in which there are sufficient non-Government sales of the same item to establish reasonableness of price.

(iii) If the Offeror relies on relevant sales data for similar items to determine the price is reasonable, the Offeror shall obtain only that technical information necessary--

(A) To support the conclusion that items are technically similar; and

(B) To explain any technical differences that account for variances between the proposed prices and the sales data presented.

(e) *Subcontracts.* The Offeror shall insert the substance of this provision, including this paragraph (e), in subcontracts exceeding the simplified acquisition threshold defined in FAR part 2. The Offeror shall require prospective subcontractors to adhere to the requirements of--

(1) Paragraphs (c) and (d) of this provision for subcontracts above the threshold for submission of certified cost or pricing data in 215-403-3 (a); and

(2) Paragraph (d) of this provision for subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

252.215-7996 Notification to Offerors-Postaward Debriefings. (DEVIATION 2026-O0048) (Mar 2026) Deviation 2026-O0048 (Mar 2026)

NOTIFICATION TO OFFERORS--POSTAWARD DEBRIEFINGS(DEVIATION 2026-O0048) (MAR 2026)

(a) *Definition.* As used in this provision--

"Nontraditional defense contractor" means an entity that is not currently performing and has not performed any contract or subcontract for DoD that is subject to full coverage under the cost accounting standards prescribed pursuant to 41 U.S.C. 1502 and the regulations implementing such section, for at least the 1-year period preceding the solicitation of sources by DoD for the procurement (10 U.S.C. 3014).

(b) *Postaward debriefing.*

(1) Upon timely request, the Government will provide a written or oral postaward debriefing to successful or unsuccessful offerors for contract awards valued at \$15 million

(2) When required, the minimum postaward debriefing information will include the following:

(i) For contracts in excess of \$15 million and not in excess of \$150 million with a small business or nontraditional defense contractor, an option for the small business or nontraditional defense contractor to request disclosure of the agency's written source selection decision document, redacted to protect the confidential and proprietary information of other offerors for the contract award.

(ii) For contracts in excess of \$150 million, disclosure of the agency's written source selection decision document, redacted to protect the confidential and proprietary information of other offerors for the contract award.

(3) If a required postaward debriefing is provided--

(i) The debriefed Offeror may submit additional written questions related to the debriefing not later than 2 business days after the date of the debriefing;

(ii) The agency will respond in writing to timely submitted additional questions within 5 business days after receipt by the contracting officer; and

(iii) The postaward debriefing will not be considered to be concluded until the later of--

(A) The date that the postaward debriefing is delivered, orally or in writing; or

(B) If additional written questions related to the debriefing are timely received, the date the agency delivers its written response.

(c) *Contract performance.* The Government may suspend performance of or terminate the awarded contract upon notice from the Government Accountability Office of a protest filed within the time periods listed in paragraphs (c)(1) through (3) of this provision, whichever is later:

(1) Within 10 days after the date of contract award.

(2) Within 5 days after a debriefing date offered to the protestor under a timely debriefing request in accordance with Federal Acquisition Regulation (FAR) 15.301 unless an earlier debriefing date is negotiated as a result.

(3) Within 5 days after a postaward debriefing under FAR 15.301 is concluded in accordance with Defense Federal Acquisition Regulation Supplement 215.301-170.

(End of provision)

252.219-7000 Advancing Small Business Growth.

(Jun 2023)

ADVANCING SMALL BUSINESS GROWTH (JUN 2023)

(a) This provision implements 10 U.S.C. 4959.

(b) The Offeror acknowledges by submission of its offer that by acceptance of the contract resulting from this solicitation, the Offeror may exceed the applicable small business size standard of the North American Industry Classification System (NAICS) code assigned to the contract and would no longer qualify as a small business concern for that NAICS code. Small business size standards matched to industry NAICS codes are published by the Small Business Administration and are available at 13 CFR 121.201 and <https://www.sba.gov/document/support-table-size-standards>. The Offeror is therefore encouraged to develop the capabilities and characteristics typically desired in contractors that are competitive as other-than-small contractors in this industry.

(c) For procurement technical assistance, the Offeror may contact the nearest APEX Accelerator. APEX Accelerator locations are available at <https://www.apexaccelerators.us>.

(End of provision)

252.222-7000 Restrictions on Employment of Personnel

(Mar 2000)

RESTRICTIONS ON EMPLOYMENT OF PERSONNEL (MAR 2000) [See DFARS 222.70 for applicability]

(a) The Contractor shall employ, for the purpose of performing that portion of the contract work in Guam, individuals who are residents thereof and who, in the case of any craft or trade, possess or would be able to acquire promptly the necessary skills to perform the contract.

(b) The Contractor shall insert the substance of this clause, including this paragraph (b), in each subcontract awarded under this contract.

(End of clause)

252.223-7001 Hazard Warning Labels.

(Dec 1991)

HAZARD WARNING LABELS (DEC 1991)

(a) "Hazardous material," as used in this clause, is defined in the Hazardous Material Identification and Material Safety Data clause of this contract.

(b) The Contractor shall label the item package (unit container) of any hazardous material to be delivered under this contract in accordance with the Hazard Communication Standard (29 CFR 1910.1200 et seq). The Standard requires that the hazard warning label conform to the requirements of the standard unless the material is otherwise subject to the labelling requirements of one of the following statutes:

- (1) Federal Insecticide, Fungicide and Rodenticide Act;
- (2) Federal Food, Drug and Cosmetics Act;
- (3) Consumer Product Safety Act;
- (4) Federal Hazardous Substances Act; or
- (5) Federal Alcohol Administration Act.

(c) The Offeror shall list which hazardous material listed in the Hazardous Material Identification and Material Safety Data clause of this contract will be labelled in accordance with one of the Acts in paragraphs (b)(1) through (5) of this clause instead of the Hazard Communication Standard. Any hazardous material not listed will be interpreted to mean that a label is required in accordance with the Hazard Communication Standard.

MATERIAL (If None, Insert "None.")	ACT

(d) The apparently successful Offeror agrees to submit, before award, a copy of the hazard warning label for all hazardous materials not listed in paragraph (c) of this clause. The Offeror shall submit the label with the Material Safety Data Sheet being furnished under the Hazardous Material Identification and Material Safety Data clause of this contract.

(e) The Contractor shall also comply with MIL-STD-129, Marking for Shipment and Storage (including revisions adopted during the term of this contract).

(End of clause)

252.223-7997 Prohibition on Procurement of Certain Items Containing Perfluorooctane Sulfonate or Perfluorooctanoic Acid -- Representation. (Sep 2022) Deviation 2022-O0010 (Sep 2022) (Deviation 2022-O0010)

PROHIBITION ON PROCUREMENT OF CERTAIN ITEMS CONTAINING PERFLUOROOCTANE SULFONATE OR PERFLUOROOCTANOIC ACID - REPRESENTATION (DEVIATION 2022-O0010) (SEP 2022)

(a) Effective April 1, 2023, in accordance with section 333 of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (Pub. L. 116-283) the Department of Defense may not procure any covered items that contain perfluorooctane sulfonate (PFOS) or perfluorooctanoic acid (PFOA). A covered item includes:

- (1) Nonstick cookware or cooking utensils for use in galleys or dining facilities; and

(2) Upholstered furniture, carpets, and rugs that have been treated with stain-resistant coatings.

(b) *Representation.* By submission of its offer, the Offeror represents that it is not providing as part of its offer any covered items containing PFOS or PFOA.

(End of provision)

252.225-7966 Prohibition Regarding Russian Fossil Fuel Business Operations-Representation (Deviation 2024-O0006, Revision 1) (Mar 2024) Deviation 2024-O0006 (Mar 2024)

PROHIBITION REGARDING RUSSIAN FOSSIL FUEL BUSINESS OPERATIONS—REPRESENTATION (DEVIATION 2024-O0006, REVISION 1) (MAR 2024)

(a) *Definitions.* The terms *business operations* and *fossil fuel company* have the meanings given in the 252.225-7967 clause of this solicitation.

(b) *Representation.* By submission of an offer, the Offeror represents it is not, or that it does not knowingly have fossil fuel business operations with an entity or individual that is, 50 percent or more owned, individually or collectively, by-

(1) An authority of the government of the Russian Federation; or

(2) A fossil fuel company that operates in the Russian Federation, except if the fossil fuel company transports oil or gas-

(i) Through the Russian Federation for sale outside of the Russian Federation; and

(ii) That was extracted from a country other than the Russian Federation with respect to the energy sector of which the President has not imposed sanctions as of the date on which the contract is awarded.

(End of provision)

252.225-7973 Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems—Representation. (DEVIATION 2024-O0014) (Aug 2024) Deviation 2024-O0014 (Aug 2024)

PROHIBITION ON THE PROCUREMENT OF FOREIGN-MADE UNMANNED AIRCRAFT SYSTEMS—REPRESENTATION (AUG 2024) (DEVIATION 2024-O0014)

(a) *Definition.* As used in this provision, “covered foreign country” has the meaning given in the 252.225-7972, Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems (DEVIATION 2024-O0014), clause of this solicitation.

(b) *Prohibition.* Section 848 of the National Defense Authorization Act (NDAA) for Fiscal Year (FY) 2020 (Pub. L. 116-92) and section 817 of the NDAA for FY 2023 (Pub. L. 117-263) prohibit DoD from—

(1) Using or procuring an unmanned aircraft system (UAS), or any related services or equipment, that—

(i) Is manufactured in a covered foreign country, or by an entity domiciled in a covered foreign country;

(ii) Uses flight controllers, radios, data transmission devices, cameras, or gimbals manufactured in a covered foreign country, or by an entity domiciled in a covered foreign country;

(iii) Uses a ground control system or operating software developed in a covered foreign country, or by an entity domiciled in a covered foreign country; or

(iv) Uses network connectivity or data storage located in, or administered by an entity domiciled in, a covered foreign country;

(2) Using or procuring a system for the detection or identification of a UAS, or any related services or equipment, that is manufactured in a covered foreign country or by an entity domiciled in a covered foreign country; or

(3) On or after October 1, 2024, entering into or renewing a contract with an entity that operates, as determined by the Secretary of Defense, equipment from—

(i) Da-Jiang Innovations (or any subsidiary or affiliate of Da-Jiang Innovations);

(ii) Any entity that produces or provides unmanned aircraft systems and is included on the Consolidated Screening List maintained by the International Trade Administration of the Department of Commerce (<https://www.trade.gov/consolidated-screening-list>); or

(iii) Any entity that produces or provides unmanned aircraft systems and—

(A) Is domiciled in a covered foreign country; or

(B) Is subject to unmitigated foreign ownership, control, or influence by a covered foreign country, as determined by the Secretary of Defense in accordance with the National Industrial Security Program.

(c) *Representations.*

(1) By submission of its offer, the Offeror represents that—

(i) It will not provide or use a UAS, as described in paragraph (b)(1) of this provision, in the performance of any contract, subcontract, or other contractual instrument resulting from this solicitation; and

(ii) It will not provide or use a system for the detection or identification of a UAS, as described in paragraph (b)(2) of this provision, in the performance of any contract, subcontract, or other contractual instrument resulting from this solicitation.

(2) It is not an entity described in paragraph (b)(3) of this provision.

(End of provision)

252.232-7006 Wide Area WorkFlow Payment Instructions.

(Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023) [TO BE COMPLETED AT TIME OF AWARD]

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

Navy Construction / Facilities Management Invoice

(2) *Inspection/acceptance location.* The Contractor shall select the following inspection/acceptance location(s) in WAWF, as specified by the contracting officer.

Inspection -

Acceptance -

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	<u>N68732</u>
Issue By DoDAAC	<u>N62742</u>
Admin DoDAAC	
Inspect By DoDAAC	
Ship To Code	
Ship From Code	
Mark For Code	
Service Approver (DoDAAC)	
Service Acceptor (DoDAAC)	
Accept at Other DoDAAC	
LPO DoDAAC	
DCAA Auditor DoDAAC	
Other DoDAAC(s)	

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

252.236-7001 Contract Drawings and Specifications.

(Aug 2000)

CONTRACT DRAWINGS AND SPECIFICATIONS (AUG 2000)

(a) The Government will provide to the Contractor, without charge, one set of contract drawings and specifications, except publications incorporated into the technical provisions by reference, in electronic or paper media as chosen by the Contracting Officer.

(b) The Contractor shall-

- (1) Check all drawings furnished immediately upon receipt;
- (2) Compare all drawings and verify the figures before laying out the work;
- (3) Promptly notify the Contracting Officer of any discrepancies;
- (4) Be responsible for any errors that might have been avoided by complying with this paragraph (b); and
- (5) Reproduce and print contract drawings and specifications as needed.

(c) In general--

- (1) Large-scale drawings shall govern small-scale drawings; and
- (2) The Contractor shall follow figures marked on drawings in preference to scale measurements.

(d) Omissions from the drawings or specifications or the misdescription of details of work that are manifestly necessary to carry out the intent of the drawings and specifications, or that are customarily performed, shall not relieve the Contractor from performing such omitted or misdescribed details of the work. The Contractor shall perform such details as if fully and correctly set forth and described in the drawings and specifications.

(e) The work shall conform to the specifications and the contract drawings identified on the following index of drawings:

Document 00 01 15, "List of Drawings" is made part of this Contract by this reference.

(End of clause)

252.236-7008 Contract Prices--Bidding Schedules.

(Dec 1991)

CONTRACT PRICES--BIDDING SCHEDULES (DEC 1991)

(a) The Government's payment for the items listed in the Bidding Schedule shall constitute full compensation to the Contractor for-

- (1) Furnishing all plant, labor, equipment, appliances, and materials; and
- (2) Performing all operations required to complete the work in conformity with the drawings and specifications.

(b) The Contractor shall include in the prices for the items listed in the Bidding Schedule all costs for work in the specifications, whether or not specifically listed in the Bidding Schedule.

(End of provision)

252.236-7010 Overseas Military Construction--Preference for United States Firms.

(Jan 1997)

OVERSEAS MILITARY CONSTRUCTION--PREFERENCE FOR UNITED STATES FIRMS (JAN 1997)

(a) *Definition.* " United States firm," as used in this provision, means a firm incorporated in the United States that complies with the following:

(1) The corporate headquarters are in the United States ;

(2) The firm has filed corporate and employment tax returns in the United States for a minimum of 2 years (if required), has filed State and Federal income tax returns (if required) for 2 years, and has paid any taxes due as a result of these filings; and

(3) The firm employs United States citizens in key management positions.

(b) *Evaluation.* Offers from firms that do not qualify as United States firms will be evaluated by adding 20 percent to the offer.

(c) *Status.* The offeror ____ is, ____ is not a United States firm.

(End of provision)

252.239-7098 Prohibition on Contracting to Maintain or Establish a Computer Network Unless Such Network is Designed to Block Access to Certain Websites - Representation (Deviation 2021-O0003) (Apr 2021) Deviation 2021-O0003 (Apr 2021)

PROHIBITION ON CONTRACTING TO MAINTAIN OR ESTABLISH A COMPUTER NETWORK UNLESS SUCH NETWORK IS DESIGNED TO BLOCK ACCESS TO CERTAIN WEBSITES—REPRESENTATION (DEVIATION 2021-O0003) (APRIL 2021)

(a) In accordance with section 8116 of Division C of the Consolidated Appropriations Act, 2021 (Pub. L. 116-260), or any other Act that extends to fiscal year 2021 funds the same prohibitions, none of the funds appropriated (or otherwise made available) by this or any other Act for DoD may be used to enter into a contract to maintain or establish a computer network unless such network is designed to block access to pornography websites. This prohibition does not limit the use of funds necessary for any Federal, State, tribal, or local law enforcement agency or any other entity carrying out criminal investigations, prosecution, or adjudication activities, or for any activity necessary for the national defense, including intelligence activities.

(b) Representation. By submission of its offer, the Offeror represents that it is not providing as part of its offer a proposal to maintain or establish a computer network unless such network is designed to block access to pornography websites.

(End of provision)

252.240-7998 Prohibition on the Procurement of Covered Semiconductor Products and Services from Companies Providing Covered Semiconductor Products and Services to Huawei - Representation. (DEVIATION 2025-O0007) (Sep 2025) Deviation 2025-O0007 (Sep 2025)

PROHIBITION ON THE PROCUREMENT OF COVERED SEMICONDUCTOR PRODUCTS AND SERVICES FROM COMPANIES PROVIDING COVERED SEMICONDUCTOR PRODUCTS AND SERVICES TO HUAWEI - REPRESENTATION (SEP 2025) (DEVIATION 2025-O0007)

(a) *Prohibition.* Section 853 of the National Defense Authorization Act for Fiscal Year 2025 (Pub. L. 118-159) prohibits DoD from entering into or renewing a contract for the procurement of any covered semiconductor products and services for the Department of Defense with any entity that knowingly provides covered semiconductor products and services to Huawei.

(b) *Definitions.*

(1) "Covered semiconductor products and services" means—

(i) Semiconductors;

(ii) Equipment for manufacturing semiconductors; and

(iii) Tools for designing semiconductors.

(2) "Huawei" means—

(i) Huawei Technologies Company;

(ii) Any entity that is a subsidiary, owner, beneficial owner, affiliate, or successor of Huawei Technologies Company; and

(iii) Any entity that is directly or indirectly controlled by Huawei Technologies Company.

(c) *Representation.* By submission of its offer, the Offeror represents that it will not knowingly provide covered semiconductor products and services to Huawei, as described in paragraphs (a) and (b) of this provision, in the performance of any contract resulting from this solicitation.

(End of provision)

Section 00 71 00 - Contracting Definitions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.202-1	Definitions.	Jun 2020		

Section 00 73 00 - Supplementary Conditions

1.1 AUTHORITY

- a. No person other than the Contracting Officer has authority to bind the Government with respect to this contract.
- b. No action or omission of any government employee or representative other than the Contracting Officer shall increase or decrease the scope of this contract or shall otherwise modify the terms and conditions of this contract.
- c. In no event shall any of the following be effective or binding on the Government or imputed to the Contracting Officer with respect to this contract:
 - (1) An understanding or agreement between the Contractor and anyone other than the Contracting Officer;
 - (2) A purported modification or change order issued by anyone other than the Contracting Officer;
 - (3) A promise by anyone other than the Contracting Officer to provide additional funding or make payments; or
 - (4) An order, direction, consent, or permission from anyone other than the Contracting Officer to:
 - (a) Incur costs in excess of a specified estimated cost, allotment of funds, or other ceiling; or
 - (b) Expend hours in excess of a specified level of effort.

1.2 ORGANIZATIONAL CONFLICTS OF INTEREST

Review of FAR Subpart 9.5, Organizational and Consultant Conflicts of Interest is encouraged. The intent is to identify and evaluate potential conflicts of interest prior to contract award. Generally, if the Contractor / affiliates /subcontractors under this contract prepares or assists in preparing a statement of work, specifications and plans, the Contractor and its affiliates and any subcontractors /subconsultants may be ineligible to bid or participate, in any capacity, in any contractual effort which is based on such statement of work or specifications and plans as a prime contractor, subcontractor, consultant or in any similar capacity. In addition, the Contractor and its affiliates and/or subcontractors under this contract are ineligible to bid or participate, in any capacity, in any contractual effort which is based upon a statement of work, specifications and plans which the Contractor and its affiliates and/or subcontractors previously prepared or assisted in preparing.

1.3 COMMENCEMENT, PROSECUTION, AND COMPLETION OF WORK

The Contractor shall be required to

- (a) Commence work under this contract within 15 calendar days after the date the Contractor receives the notice to proceed,
- (b) Prosecute the work diligently, and
- (c) Complete the entire work ready for use not later than 1,157 calendar days after notice to proceed.

The time stated for completion shall include final cleanup of the premises.

A "Notice to Proceed" is deemed to be given by the Government to the Contractor 21 calendar days after the contract award date. No formal written notice will be issued by the Government. Within 21 calendar days following the contract award date, the Contractor is obligated to submit performance and payment bonds in a form acceptable to the Government. The Government shall notify the Contractor of the acceptability of the performance and payment bonds within 5 working days of receipt of these documents. If these documents are not submitted in their proper form acceptable to the Government within 21 calendar days of contract award, any delays resulting thereby will be at the sole expense of the Contractor. The contract completion date will not be extended due to the Government's review of the acceptability of the Contractor's bonds, except where the Government's review of said documents extends beyond 5 working days.

1.4 NOTICE OF BONDING REQUIREMENTS

Within 21 days after receipt of award, the offeror to whom the award is made shall furnish the bonds required by FAR Clause 52.228-15 Performance and Payment Bonds--Construction.

Offerors are hereby notified that the contract time for purposes of fixing the completion date, default, and liquidated damages will be as stated in 1.3 Commencement, Prosecution, and Completion of Work, regardless of when performance and payment bonds or deposits in lieu of surety are executed.

1.5 VARIATION IN ESTIMATED QUANTITY

If the quantity of a unit-priced item in this contract is an estimated quantity and the actual quantity of the unit-priced item varies more than 15 percent above or below the estimated quantity, an equitable adjustment in the contract price shall be made upon demand of either party. The equitable adjustment shall be based upon any increase or decrease in costs due solely to the variation above 115 percent or below 85 percent of the estimated quantity. If the quantity variation is such as to cause an increase in the time necessary for completion, the Contractor may request, in writing, an extension of time, to be received by the Contracting Officer within 10 days from the beginning of the delay, or within such further period as may be granted by the Contracting Officer before the date of final settlement of the contract. Upon the receipt of a written request for an extension, the Contracting Officer shall ascertain the facts and make an adjustment for extending the completion date as, in the judgement of the Contracting Officer, is justified.

1.6 UTILITIES FOR CONSTRUCTION AND TESTING

The Contractor shall be responsible for obtaining, either from available Government sources or local utility companies, all utilities required for construction and testing. The Contractor shall provide these utilities at his expense, paid for at the current utility rate delivered to the job site. The Contractor shall provide and maintain all temporary utility connections and distribution lines, and all meters required to measure the amount of each utility used.

1.7 NOTICE CONCERNING LABOR RATES

The Construction Wage Requirements statute (formerly known as the Davis-Bacon Act) will apply. The attached Guam General Wage Decision No. GU20260002 Modification No. 0, Publication Date 01/02/2026 will remain in effect for the duration of the project, unless modified.

Federal Acquisition Regulation (FAR) 22.403(c) requires incorporation of a wage determination received by the contracting office prior to award. If the contracting office receives a modification to the wage determination after receipt of proposals but prior award, at the discretion of the contracting officer, award of a contract resulting from this solicitation may be made without incorporation of the current wage determination prior to award and a modification will be issued after award to incorporate the wage determination effective as of the date of contract award.

1.8 NOTICE CONCERNING TEMPORARY SERVICE OR LABOR (8 U.S.C. 1101(a)(15)(H)(ii)b)) (hereinafter referred to as "H-2B") FOR WORK IN GUAM RELATED TO THE MILITARY REALIGNMENT OF MILITARY TO GUAM

It is DOD's view that the prime contract is directly connected to the military realignment occurring on Guam. Work performed under this contract may meet the requirements for use of H-2B nonimmigrant laborers under the exemptions provided in 48 U.S.C. 1806(b)(1)(B) as implemented by the U.S. Citizenship and Immigration Services (USCIS). Companies performing work under this contract seeking to obtain a statement from the Department of Defense regarding whether DOD views the work as directly connected to or associated with the military realignment on Guam should contact Greg Massey at the Guam Department of Labor, Alien Labor Processing and Certification Division at: greg.massey@dol.guam.gov or via phone at 671-475-8005 for information on how to obtain a statement from the Department of Defense. Any denials or delays in obtaining a statement from DoD regarding DOD's views of whether work is directly connected to or associated with the military realignment on Guam shall not affect the performance of work under this contract. The contractor seeking the statement bears all risk of denial or delay in obtaining a DoD statement. USCIS alone will adjudicate any petitions for use of H-2B nonimmigrant laborers and USCIS alone will make all determinations regarding whether petitions meet the NDAA exemption requirements. Any denials or delays in adjudication by the USCIS shall not affect the performance of work under this contract and the contractor petitioning the USCIS bears all risk of USCIS denial or delay in approval.

1.9 NOTICE CONCERNING RECRUITMENT STANDARDS FOR TEMPORARY H2-B SERVICE OR LABOR (8 U.S.C. 1101(a)(15)(H)(ii)b)) FOR WORK IN GUAM RELATED TO THE MILITARY REALIGNMENT OF MILITARY TO GUAM

a. **Purpose.** In addition to complying with all USCIS and Guam Department of Labor requirements relating to recruitment of foreign labor, the contractor shall comply with the following recruitment standards designed to recruit U.S. workers. Compliance with these standards are required to support a contractor request to employ H-2B visa workers. The standards are designed to support a Governor of Guam certification, as required under Federal law, that no Guam base realignment construction project work may be performed by a person holding an H-2B visa under the Immigration and Nationality Act until the Governor of Guam, in consultation with the Secretary of Labor, certifies that:

(1) There is an insufficient number of U.S. workers that are able, willing, qualified, and available to perform the work; and

(2) The employment of workers holding H-2B visas will not have an adverse effect on either the wages or the working conditions of workers in Guam.

b. **Recruitment Standards.** The contractor shall take the following actions to recruit U.S. workers.

(1) At least 60 days before the start date of workers under a base realignment construction contract, and annually thereafter for the length of the contract, contractors shall:

(a) Submit job postings via completed Job Orders (Guam Form GES 514) in person at the Guam Employment Service office, which is open Monday to Friday (except holidays) from 8 a.m. to 5 p.m. at 710 Marine Corps Drive, Suite 301, Bell Tower Plaza, Hagatna (for assistance call 671-475-7000). The job postings must be posted on the GDOL Job Bank for at least 21 consecutive days;

(b) Submit job postings with the Commonwealth of the Northern Mariana Islands workforce agency Internet job board at <https://marianaslabor.net/employer.asp>.

(c) Submit job postings on the workforce agency Internet job board in every State of the Union. Internet sites for state job banks can be found at Department of Labor sponsored website: www.careeronestop.org.

(d) Submit job postings focused on recruiting qualified veterans at the Department of Labor website: www.veterans.gov.

(e) Post a help wanted ad in the local newspaper for American Samoa and have a notice posted in the American Samoa Human Resources agency office. For assistance with these tasks, please see the American Samoa Human Resource agency contacts listed at www.jobbankinfo.org.

(f) For contractors needing assistance with job postings, additional contact information and a link to the required Guam form GES 514 are listed at www.jobbankinfo.org. Each job posting must be posted for at least 21 consecutive days.

(g) Submit job postings with an internet-based job bank that :

1. Is national in scope, including the entire U.S., Guam, the Commonwealth of the Northern Mariana Islands, American Samoa, the Virgin Islands, and the Commonwealth of Puerto Rico;

2. Allows job postings for all occupations; and

3. Is free of charge for job seekers and their intermediaries in American Job Centers (also known as One-Stop Career Centers) and the U.S. employment service delivery system nationwide.

(h) Where the occupation or industry is customarily unionized, contact the local union in Guam in writing to seek U.S. workers who are qualified and who will be available for the job opportunities.

(2) Each job posting must include, at a minimum, the following information:

(a) The contractor's name and appropriate contact information for applicants to inquire about the job opportunity, or to send applications and/or resumes directly to the employer;

(b) The geographic area of employment, with enough specificity to apprise applicants of any travel requirements and where applicants will likely have to reside to perform the services or labor;

(c) A statement indicating whether or not the employer will pay for the worker's transportation to Guam;

(d) If the employer provides it, a statement that daily transportation to and from the worksite(s) will be provided by the employer;

(e) A description of the job opportunity with sufficient information to apprise U.S. workers of the services or labor to be performed, including the duties, the minimum education and experience requirements, the work hours and days, and the anticipated start and end dates of the job opportunity;

(f) If the employer makes on-the-job training available, a statement that it will be provided to the worker;

(g) If required by law, a statement that overtime will be available to the worker and the wage offer for working any overtime hours;

(h) The wage offer, and the benefits, if any, offered;

(i) A statement that the position is temporary;

(j) The total number of job openings the employer intends to fill; and

(k) If the employer provides the worker with the option of board, lodging, or other facilities, including fringe benefits, or intends to assist workers to secure such lodging, a statement disclosing the provision and cost of the board, lodging, or other facilities, including fringe benefits or assistance to be provided.

(3) During the 28-day recruitment period, which begins on the earliest job posting date, contractor must interview all qualified and available Guam and U.S. construction workers who have applied for the employment opportunity.

(4) After the close of the recruitment period, and no later than 30 days before the start date of workers under a contract, contractor must provide a report including the following information via email to GDOL at ndaa.recruitment@dol.guam.gov, documenting its efforts to recruit U.S. workers from the U.S. and all U.S. territories.

(a) Indicate all the recruitment approaches used to recruit realignment workers, including an identification of the Internet job banks where the postings occurred, the occupation or trade, a description of wages and other terms and conditions of employment, the dates of each posting, and the job order or requisition number;

(b) A copy of each job posting;

(c) How each job posting and response was handled, including

1. The number of job applications received;
2. The name of each applicant;
3. The position applied for; and
4. The final employment determination for each applicant or job candidate.

(d) **Hire American:** for each U.S. job applicant not hired, the contractor shall identify the specific, lawful, job-related reason for rejecting the applicant for employment, which shall include a comparison of the job applicant's skills and experience against the terms listed in the original job posting.

(e) Compliance with the above procedures shall not be construed as or require approval of a recruitment action. The Guam Department of Labor and USCIS are approval authorities. Any denials or delays in approval by the Guam Department of Labor or the USCIS shall not affect the performance of the prime contract and the contractor bears all risk of USCIS denial or delay in approval.

"General Decision Number: GU20260002 01/02/2026

Superseded General Decision Number: GU20250002

State: Guam

Construction Type: Building

County: Guam Statewide.

Building Construction (Applies only to projects funded under the National Defense Authorization Act of 2010 - Guam Realignment Fund - Defense Policy Review Initiative)

BUILDING CONSTRUCTION PROJECTS (does not include single family homes or apartments up to and including 4 stories).

Modification Number Publication Date
0 01/02/2026

SUGU2022-001 10/31/2023

	Rates	Fringes
CARPENTER.....	\$ 18.03	0.00
CEMENT MASON/CONCRETE FINISHER...	\$ 16.49	0.00
ELECTRICIAN.....	\$ 18.59	0.00
FORM WORKER.....	\$ 15.48	0.00
HVAC MECHANIC: HVAC UNIT INSTALLATION.....	\$ 19.36	1.09
IRONWORKER, REINFORCING.....	\$ 17.78	0.00
IRONWORKER, STRUCTURAL.....	\$ 17.09	0.00
LABORER: Common or General.....	\$ 12.58	0.00
LABORER: Landscape.....	\$ 13.03	0.00
OPERATOR: Backhoe/Excavator/Trackhoe.....	\$ 18.71	0.00
OPERATOR: Crane.....	\$ 21.30	0.00
PAINTER.....	\$ 15.66	0.00
PLUMBER.....	\$ 19.37	0.00
SHEET METAL WORKER.....	\$ 17.76	0.30
TRUCK DRIVER: Dump Truck.....	\$ 16.68	0.00

WELDERS - Receive rate prescribed for craft performing operation to which welding is incidental.

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Unlisted classifications needed for work not included within

the scope of the classifications listed may be added after award only as provided in the labor standards contract clauses (29CFR 5.5 (a) (1) (iii)).

The body of each wage determination lists the classifications and wage rates that have been found to be prevailing for the type(s) of construction and geographic area covered by the wage determination. The classifications are listed in alphabetical order under rate identifiers indicating whether the particular rate is a union rate (current union negotiated rate), a survey rate, a weighted union average rate, a state adopted rate, or a supplemental classification rate.

Union Rate Identifiers

A four-letter identifier beginning with characters other than ""SU"", ""UAVG"", ?SA?, or ?SC? denotes that a union rate was prevailing for that classification in the survey. Example: PLUM0198-005 07/01/2024. PLUM is an identifier of the union whose collectively bargained rate prevailed in the survey for this classification, which in this example would be Plumbers. 0198 indicates the local union number or district council number where applicable, i.e., Plumbers Local 0198. The next number, 005 in the example, is an internal number used in processing the wage determination. The date, 07/01/2024 in the example, is the effective date of the most current negotiated rate.

Union prevailing wage rates are updated to reflect all changes over time that are reported to WHD in the rates in the collective bargaining agreement (CBA) governing the classification.

Union Average Rate Identifiers

The UAVG identifier indicates that no single rate prevailed for those classifications, but that 100% of the data reported for the classifications reflected union rates. EXAMPLE: UAVG-OH-0010 01/01/2024. UAVG indicates that the rate is a weighted union average rate. OH indicates the State of Ohio. The next number, 0010 in the example, is an internal number used in producing the wage determination. The date, 01/01/2024 in the example, indicates the date the wage determination was updated to reflect the most current union average rate.

A UAVG rate will be updated once a year, usually in January, to reflect a weighted average of the current rates in the collective bargaining agreements on which the rate is based.

Survey Rate Identifiers

The ""SU"" identifier indicates that either a single non-union rate prevailed (as defined in 29 CFR 1.2) for this classification in the survey or that the rate was derived by computing a weighted average rate based on all the rates reported in the survey for that classification. As a weighted average rate includes all rates reported in the survey, it may include both union and non-union rates. Example: SUFL2022-007 6/27/2024. SU indicates the rate is a single non-union prevailing rate or a weighted average of survey data for that classification. FL indicates the State of Florida. 2022 is the year of the survey on which these classifications and rates are

based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 6/27/2024 in the example, indicates the survey completion date for the classifications and rates under that identifier.

?SU? wage rates typically remain in effect until a new survey is conducted. However, the Wage and Hour Division (WHD) has the discretion to update such rates under 29 CFR 1.6(c)(1).

State Adopted Rate Identifiers

The "SA" identifier indicates that the classifications and prevailing wage rates set by a state (or local) government were adopted under 29 C.F.R 1.3(g)-(h). Example: SAME2023-007 01/03/2024. SA reflects that the rates are state adopted. ME refers to the State of Maine. 2023 is the year during which the state completed the survey on which the listed classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 01/03/2024 in the example, reflects the date on which the classifications and rates under the ?SA? identifier took effect under state law in the state from which the rates were adopted.

WAGE DETERMINATION APPEALS PROCESS

1) Has there been an initial decision in the matter? This can be:

- a) a survey underlying a wage determination
- b) an existing published wage determination
- c) an initial WHD letter setting forth a position on a wage determination matter
- d) an initial conformance (additional classification and rate) determination

On survey related matters, initial contact, including requests for summaries of surveys, should be directed to the WHD Branch of Wage Surveys. Requests can be submitted via email to davisbaconinfo@dol.gov or by mail to:

Branch of Wage Surveys
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

Regarding any other wage determination matter such as conformance decisions, requests for initial decisions should be directed to the WHD Branch of Construction Wage Determinations. Requests can be submitted via email to BCWD-Office@dol.gov or by mail to:

Branch of Construction Wage Determinations
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

2) If an initial decision has been issued, then any interested party (those affected by the action) that disagrees with the decision can request review and reconsideration from the Wage and Hour Administrator (See 29 CFR Part 1.8 and 29 CFR Part 7).

Requests for review and reconsideration can be submitted via email to dba.reconsideration@dol.gov or by mail to:

Wage and Hour Administrator
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

The request should be accompanied by a full statement of the interested party's position and any information (wage payment data, project description, area practice material, etc.) that the requestor considers relevant to the issue.

3) If the decision of the Administrator is not favorable, an interested party may appeal directly to the Administrative Review Board (formerly the Wage Appeals Board). Write to:

Administrative Review Board
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210.

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END OF GENERAL DECISION

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Section 01 00 00 - General Requirements

Requirements

JFY 2022 PROJECT J-875, BATTLE STAFF TRAINING FACILITY, U.S. NAVSUPPACT, MCB CAMP
BLAZ, GUAM